

# STATE OF NEW YORK

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3005--B

## IN ASSEMBLY

January 22, 2025

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A BUDGET BILL, submitted by the Governor pursuant to article seven of the Constitution -- read once and referred to the Committee on Ways and Means -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- again reported from said committee with amendments, ordered reprinted as amended and recommitted to said committee

AN ACT to amend chapter 887 of the laws of 1983, amending the correction law relating to the psychological testing of candidates, in relation to the effectiveness thereof; to amend chapter 428 of the laws of 1999, amending the executive law and the criminal procedure law relating to expanding the geographic area of employment of certain police officers, in relation to extending the expiration of such chapter; to amend chapter 886 of the laws of 1972, amending the correction law and the penal law relating to prisoner furloughs in certain cases and the crime of absconding therefrom, in relation to the effectiveness thereof; to amend chapter 261 of the laws of 1987, amending chapters 50, 53 and 54 of the laws of 1987, the correction law, the penal law and other chapters and laws relating to correctional facilities, in relation to the effectiveness thereof; to amend chapter 339 of the laws of 1972, amending the correction law and the penal law relating to inmate work release, furlough and leave, in relation to the effectiveness thereof; to amend chapter 60 of the laws of 1994 relating to certain provisions which impact upon expenditure of certain appropriations made by chapter 50 of the laws of 1994 enacting the state operations budget, in relation to the effectiveness thereof; to amend chapter 55 of the laws of 1992, amending the tax law and other laws relating to taxes, surcharges, fees and funding, in relation to extending the expiration of certain provisions of such chapter; to amend chapter 907 of the laws of 1984, amending the correction law, the New York city criminal court act and the executive law relating to prison and jail housing and alternatives to detention and incarceration programs, in relation to extending the expiration of certain provisions of such chapter; to amend chapter 166 of the laws of 1991, amending the tax law and other laws relating to taxes, in relation to extending the expiration of certain provisions of such chapter; to amend the vehicle and traffic law, in relation to extending the expiration of the mandatory surcharge and victim assistance fee; to amend

EXPLANATION--Matter in *italics* (underscored) is new; matter in brackets [ ] is old law to be omitted.

LBD12570-03-5

chapter 713 of the laws of 1988, amending the vehicle and traffic law relating to the ignition interlock device program, in relation to extending the expiration thereof; to amend chapter 435 of the laws of 1997, amending the military law and other laws relating to various provisions, in relation to extending the expiration date of the merit provisions of the correction law and the penal law of such chapter; to amend chapter 412 of the laws of 1999, amending the civil practice law and rules and the court of claims act relating to prisoner litigation reform, in relation to extending the expiration of the inmate filing fee provisions of the civil practice law and rules and general filing fee provision and inmate property claims exhaustion requirement of the court of claims act of such chapter; to amend chapter 222 of the laws of 1994 constituting the family protection and domestic violence intervention act of 1994, in relation to extending the expiration of certain provisions of the criminal procedure law requiring the arrest of certain persons engaged in family violence; to amend chapter 505 of the laws of 1985, amending the criminal procedure law relating to the use of closed-circuit television and other protective measures for certain child witnesses, in relation to extending the expiration of the provisions thereof; to amend chapter 3 of the laws of 1995, enacting the sentencing reform act of 1995, in relation to extending the expiration of certain provisions of such chapter; to amend chapter 689 of the laws of 1993 amending the criminal procedure law relating to electronic court appearance in certain counties, in relation to extending the expiration thereof; to amend chapter 688 of the laws of 2003, amending the executive law relating to enacting the interstate compact for adult offender supervision, in relation to the effectiveness thereof; to amend chapter 56 of the laws of 2009, amending the correction law relating to limiting the closing of certain correctional facilities, providing for the custody by the department of correctional services of inmates serving definite sentences, providing for custody of federal prisoners and requiring the closing of certain correctional facilities, in relation to the effectiveness of such chapter; to amend chapter 152 of the laws of 2001 amending the military law relating to military funds of the organized militia, in relation to the effectiveness thereof; to amend chapter 554 of the laws of 1986, amending the correction law and the penal law relating to providing for community treatment facilities and establishing the crime of absconding from the community treatment facility, in relation to the effectiveness thereof; and to amend chapter 55 of the laws of 2018, amending the criminal procedure law relating to the pre-criminal proceeding settlements in the City of New York, in relation to the effectiveness thereof (Part A); intentionally omitted (Part B); to amend the public officers law, in relation to residency requirements for certain positions as a correction officer; to amend the retirement and social security law, in relation to mandatory retirement for certain members or officers of the state police; to amend the executive law, in relation to eligibility for appointment as a sworn member of the state police; and to amend the civil service law, in relation to the requirements for appointment of police officers (Part C); intentionally omitted (Part D); intentionally omitted (Part E); intentionally omitted (Part F); to amend the executive law, in relation to expanding support services for victims of financial abuse and homicide (Part G); to amend the executive law and the public health law, in relation to expanding protections and services to survivors of sexual assault (Part H); to amend the social services law, in relation to

public assistance for survivors of gender-based violence; and to repeal subdivision four of section 349-a of the social services law relating thereto (Part I); to amend the state finance law and the executive law, in relation to a model gender-based violence and the workplace policy (Part J); intentionally omitted (Part K); intentionally omitted (Part L); intentionally omitted (Part M); intentionally omitted (Part N); intentionally omitted (Part O); intentionally omitted (Part P); to amend chapter 396 of the laws of 2010 amending the alcoholic beverage control law relating to liquidator's permits and temporary retail permits, in relation to the effectiveness thereof (Part Q); to amend the public authorities law, in relation to the bonding limit of the New York city transitional finance authority (Part R); intentionally omitted (Part S); intentionally omitted (Part T); intentionally omitted (Part U); to amend the civil service law, in relation to extending the waiver of certain state civil service examination fees; and to amend part EE of chapter 55 of the laws of 2023, amending the civil service law relating to waiving state civil service examination fees between July 1, 2023 and December 31, 2025, in relation to the effectiveness thereof (Part V); to amend the state finance law, in relation to directing the governor's office of employee relations to conduct a study on the feasibility of eliminating payroll lag for executive branch employees; and providing for the repeal of such provisions upon expiration thereof (Part W); intentionally omitted (Part X); intentionally omitted (Part Y); intentionally omitted (Part Z); intentionally omitted (Part AA); intentionally omitted (Part BB); intentionally omitted (Part CC); intentionally omitted (Part DD); in relation to providing for the administration of certain funds and accounts related to the 2025-2026 budget, authorizing certain payments and transfers; to amend the state finance law, in relation to the administration of certain funds and accounts, in relation to the effectiveness thereof, and in relation to interest owed on outstanding balances of debt; to amend part XX of chapter 56 of the laws of 2024, amending the state finance law and other laws relating to providing for the administration of certain funds and accounts related to the 2023-2024 budget, in relation to the effectiveness thereof; authorizing the comptroller to transfer up to \$25,000,000 from various state bond funds to the general debt service fund for the purposes of redeeming or defeasing outstanding state bonds; to amend the private housing finance law, in relation to housing program bonds and notes; to amend the public authorities law, in relation to the issuance of bonds and notes by the dedicated highway and bridge trust fund; to amend the public authorities law, in relation to the issuance of bonds and notes for city university facilities; to amend the public authorities law, in relation to the issuance of bonds for library construction projects; to amend the public authorities law, in relation to the issuance of bonds for state university educational facilities; to amend the public authorities law, in relation to the issuance of bonds and notes for locally sponsored community colleges; to amend the New York state medical care facilities finance agency act, in relation to the issuance of mental health services facilities improvement bonds and notes; to amend part K of chapter 81 of the laws of 2002, relating to providing for the administration of certain funds and accounts related to the 2002-2003 budget, in relation to the issuance of bonds and notes to finance capital costs related to homeland security; to amend the urban development corporation act, in relation to the issuance of bonds and notes

for purposes of funding office of information technology services project costs; to amend chapter 329 of the laws of 1991, amending the state finance law and other laws relating to the establishment of the dedicated highway and bridge trust fund, in relation to the issuance of funds to the thruway authority; to amend the urban development corporation act, in relation to the issuance of bonds and notes to fund costs for statewide equipment; to amend the public authorities law, in relation to the issuance of bonds for purposes of financing environmental infrastructure projects; to amend part D of chapter 389 of the laws of 1997, relating to the financing of the correctional facilities improvement fund and the youth facility improvement fund, in relation to the issuance of bonds and notes for the youth facilities improvement fund; to amend the public authorities law, in relation to the issuance of bonds and notes for the purpose of financing peace bridge projects and capital costs of state and local highways; to amend the urban development corporation act, in relation to the issuance of bonds for economic development initiatives; to amend part Y of chapter 61 of the laws of 2005, relating to providing for the administration of certain funds and accounts related to the 2005-2006 budget, in relation to the issuance of bonds and notes for the purpose of financing capital projects for the division of military and naval affairs and initiative of the state police; to amend the public authorities law, in relation to the issuance of bonds and notes for the purpose of financing the construction of the New York state agriculture and markets food laboratory; to amend the public authorities law, in relation to authorization for the issuance of bonds for the capital restructuring financing program, the health care facility transformation programs, and the essential health care provider program; to amend the public authorities law, in relation to the issuance of bonds or notes for the purpose of assisting the metropolitan transportation authority in the financing of transportation facilities; to amend part D of chapter 389 of the laws of 1997, relating to the financing of the correctional facilities improvement fund and the youth facility improvement fund, in relation to the issuance of certain bonds and notes; to amend the public authorities law, in relation to funds for the department of health and financing through the dormitory authority; to amend part D of chapter 63 of the laws of 2005, relating to the composition and responsibilities of the New York state higher education capital matching grant board, in relation to higher education capital matching grants; to amend the public health law, in relation to the department of health income fund; to amend the state finance law, in relation to refunding and redemption of bonds; to repeal certain provisions of the state finance law relating to the accident prevention course internet, and other technology pilot program fund, relating to the required contents of the budget and relating to the deposit of receipts derived from certain indirect cost assessments; and providing for the repeal of certain provisions upon expiration thereof (Part EE); to amend the administrative code of city of New York, in relation to amortization and valuation methods used for contributions to the New York city employees' retirement system, the New York city teachers' retirement system, and the board of education retirement system of such city (Part FF); to amend the correction law, in relation to addressing accountability within the department of corrections and community supervision (Part GG); to amend the correction law, in relation to the functions, powers and duties of the state commission of correction (Part HH); in relation to authorizing

the department of corrections and community supervision to close up to five correctional facilities in the 2025--2026 state fiscal year; and providing for the repeal of such provisions upon expiration thereof (Part II); to amend chapter 729 of the laws of 2023, constituting the New York State community commission on reparations remedies, in relation to extending the time the New York State community commission on reparations remedies has to submit a written report of its findings and recommendations to the legislature and the governor (Part JJ); to amend chapter 141 of the laws of 1994, amending the legislative law and the state finance law relating to the operation and administration of the legislature, in relation to extending such provisions (Part KK); to amend the correction law, in relation to reports on data collected from the office of special investigations (Part LL); to amend the executive law, in relation to establishing the office of gun violence prevention and a mass violence response unit; and to repeal certain provisions of the public health law related thereto (Part MM); and to amend the state finance law, the family court act, and the criminal procedure law, in relation to local share requirements associated with increasing the age of juvenile jurisdiction above fifteen years of age, and developing plans for juvenile intake (Part NN)

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. This act enacts into law major components of legislation  
2 necessary to implement the state public protection and general govern-  
3 ment budget for the 2025-2026 state fiscal year. Each component is whol-  
4 ly contained within a Part identified as Parts A through NN. The effec-  
5 tive date for each particular provision contained within such Part is  
6 set forth in the last section of such Part. Any provision in any section  
7 contained within a Part, including the effective date of the Part, which  
8 makes a reference to a section "of this act", when used in connection  
9 with that particular component, shall be deemed to mean and refer to the  
10 corresponding section of the Part in which it is found. Section three of  
11 this act sets forth the general effective date of this act.

12 PART A

13 Section 1. Section 2 of chapter 887 of the laws of 1983, amending the  
14 correction law relating to the psychological testing of candidates, as  
15 amended by section 1 of part A of chapter 55 of the laws of 2023, is  
16 amended to read as follows:

17 § 2. This act shall take effect on the one hundred eightieth day after  
18 it shall have become a law and shall remain in effect until September 1,  
19 ~~2025~~ 2027.

20 § 2. Section 3 of chapter 428 of the laws of 1999, amending the execu-  
21 tive law and the criminal procedure law relating to expanding the  
22 geographic area of employment of certain police officers, as amended by  
23 section 2 of part A of chapter 55 of the laws of 2023, is amended to  
24 read as follows:

25 § 3. This act shall take effect on the first day of November next  
26 succeeding the date on which it shall have become a law, and shall  
27 remain in effect until the first day of September, ~~2025~~ 2027, when it  
28 shall expire and be deemed repealed.

§ 3. Section 3 of chapter 886 of the laws of 1972, amending the correction law and the penal law relating to prisoner furloughs in certain cases and the crime of absconding therefrom, as amended by section 3 of part A of chapter 55 of the laws of 2023, is amended to read as follows:

§ 3. This act shall take effect 60 days after it shall have become a law and shall remain in effect until September 1, ~~2025~~ 2027.

§ 4. Section 20 of chapter 261 of the laws of 1987, amending chapters 50, 53 and 54 of the laws of 1987, the correction law, the penal law and other chapters and laws relating to correctional facilities, as amended by section 4 of part A of chapter 55 of the laws of 2023, is amended to read as follows:

§ 20. This act shall take effect immediately except that section thirteen of this act shall expire and be of no further force or effect on and after September 1, ~~2025~~ 2027 and shall not apply to persons committed to the custody of the department after such date, and provided further that the commissioner of corrections and community supervision shall report each January first and July first during such time as the earned eligibility program is in effect, to the ~~chairmen~~ chairs of the senate crime victims, crime and correction committee, the senate codes committee, the assembly correction committee, and the assembly codes committee, the standards in effect for earned eligibility during the prior six-month period, the number of ~~inmates~~ incarcerated individuals subject to the provisions of earned eligibility, the number who actually received certificates of earned eligibility during that period of time, the number of ~~inmates~~ incarcerated individuals with certificates who are granted parole upon their first consideration for parole, the number with certificates who are denied parole upon their first consideration, and the number of individuals granted and denied parole who did not have earned eligibility certificates.

§ 5. Subdivision (q) of section 427 of chapter 55 of the laws of 1992, amending the tax law and other laws relating to taxes, surcharges, fees and funding, as amended by section 5 of part A of chapter 55 of the laws of 2023, is amended to read as follows:

(q) the provisions of section two hundred eighty-four of this act shall remain in effect until September 1, ~~2025~~ 2027 and be applicable to all persons entering the program on or before August 31, ~~2025~~ 2027.

§ 6. Section 10 of chapter 339 of the laws of 1972, amending the correction law and the penal law relating to inmate work release, furlough and leave, as amended by section 6 of part A of chapter 55 of the laws of 2023, is amended to read as follows:

§ 10. This act shall take effect 30 days after it shall have become a law and shall remain in effect until September 1, ~~2025~~ 2027, and provided further that the commissioner of correctional services shall report each January first, and July first, to the ~~chairman~~ chairs of the senate crime victims, crime and correction committee, the senate codes committee, the assembly correction committee, and the assembly codes committee, the number of eligible ~~inmates~~ incarcerated individuals in each facility under the custody and control of the commissioner who have applied for participation in any program offered under the provisions of work release, furlough, or leave, and the number of such ~~inmates~~ incarcerated individuals who have been approved for participation.

§ 7. Subdivision (c) of section 46 of chapter 60 of the laws of 1994, relating to certain provisions which impact upon expenditure of certain appropriations made by chapter 50 of the laws of 1994, enacting the

1 state operations budget, as amended by section 7 of part A of chapter 55  
2 of the laws of 2023, is amended to read as follows:

3 (c) sections forty-one and forty-two of this act shall expire Septem-  
4 ber 1, ~~2025~~ 2027; provided, that the provisions of section forty-two  
5 of this act shall apply to ~~inmates~~ incarcerated individuals entering  
6 the work release program on or after such effective date; and

7 § 8. Subdivision (aa) of section 427 of chapter 55 of the laws of  
8 1992, amending the tax law and other laws relating to taxes, surcharges,  
9 fees and funding, as amended by section 8 of part A of chapter 55 of the  
10 laws of 2023, is amended to read as follows:

11 (aa) the provisions of sections three hundred eighty-two, three  
12 hundred eighty-three and three hundred eighty-four of this act shall  
13 expire on September 1, ~~2025~~ 2027;

14 § 9. Section 12 of chapter 907 of the laws of 1984, amending the  
15 correction law, the New York city criminal court act and the executive  
16 law relating to prison and jail housing and alternatives to detention  
17 and incarceration programs, as amended by section 9 of part A of chapter  
18 55 of the laws of 2023, is amended to read as follows:

19 § 12. This act shall take effect immediately, except that the  
20 provisions of sections one through ten of this act shall remain in full  
21 force and effect until September 1, ~~2025~~ 2027 on which date those  
22 provisions shall be deemed to be repealed.

23 § 10. Subdivision (p) of section 406 of chapter 166 of the laws of  
24 1991, amending the tax law and other laws relating to taxes, as amended  
25 by section 10 of part A of chapter 55 of the laws of 2023, is amended to  
26 read as follows:

27 (p) The amendments to section 1809 of the vehicle and traffic law made  
28 by sections three hundred thirty-seven and three hundred thirty-eight of  
29 this act shall not apply to any offense committed prior to such effec-  
30 tive date; provided, further, that section three hundred forty-one of  
31 this act shall take effect immediately and shall expire November 1, 1993  
32 at which time it shall be deemed repealed; sections three hundred  
33 forty-five and three hundred forty-six of this act shall take effect  
34 July 1, 1991; sections three hundred fifty-five, three hundred fifty-  
35 six, three hundred fifty-seven and three hundred fifty-nine of this act  
36 shall take effect immediately and shall expire June 30, 1995 and shall  
37 revert to and be read as if this act had not been enacted; section three  
38 hundred fifty-eight of this act shall take effect immediately and shall  
39 expire June 30, 1998 and shall revert to and be read as if this act had  
40 not been enacted; section three hundred sixty-four through three hundred  
41 sixty-seven of this act shall apply to claims filed on or after such  
42 effective date; sections three hundred sixty-nine, three hundred seven-  
43 ty-two, three hundred seventy-three, three hundred seventy-four, three  
44 hundred seventy-five and three hundred seventy-six of this act shall  
45 remain in effect until September 1, ~~2025~~ 2027, at which time they  
46 shall be deemed repealed; provided, however, that the mandatory  
47 surcharge provided in section three hundred seventy-four of this act  
48 shall apply to parking violations occurring on or after said effective  
49 date; and provided further that the amendments made to section 235 of  
50 the vehicle and traffic law by section three hundred seventy-two of this  
51 act, the amendments made to section 1809 of the vehicle and traffic law  
52 by sections three hundred thirty-seven and three hundred thirty-eight of  
53 this act and the amendments made to section 215-a of the labor law by  
54 section three hundred seventy-five of this act shall expire on September  
55 1, ~~2025~~ 2027 and upon such date the provisions of such subdivisions  
56 and sections shall revert to and be read as if the provisions of this



act had not been enacted; the amendments to subdivisions 2 and 3 of section 400.05 of the penal law made by sections three hundred seventy-seven and three hundred seventy-eight of this act shall expire on July 1, 1992 and upon such date the provisions of such subdivisions shall revert and shall be read as if the provisions of this act had not been enacted; the state board of law examiners shall take such action as is necessary to assure that all applicants for examination for admission to practice as an attorney and counsellor at law shall pay the increased examination fee provided for by the amendment made to section 465 of the judiciary law by section three hundred eighty of this act for any examination given on or after the effective date of this act notwithstanding that an applicant for such examination may have prepaid a lesser fee for such examination as required by the provisions of such section 465 as of the date prior to the effective date of this act; the provisions of section 306-a of the civil practice law and rules as added by section three hundred eighty-one of this act shall apply to all actions pending on or commenced on or after September 1, 1991, provided, however, that for the purposes of this section service of such summons made prior to such date shall be deemed to have been completed on September 1, 1991; the provisions of section three hundred eighty-three of this act shall apply to all money deposited in connection with a cash bail or a partially secured bail bond on or after such effective date; and the provisions of sections three hundred eighty-four and three hundred eighty-five of this act shall apply only to jury service commenced during a judicial term beginning on or after the effective date of this act; provided, however, that nothing contained herein shall be deemed to affect the application, qualification, expiration or repeal of any provision of law amended by any section of this act and such provisions shall be applied or qualified or shall expire or be deemed repealed in the same manner, to the same extent and on the same date as the case may be as otherwise provided by law;

§ 11. Subdivision 8 of section 1809 of the vehicle and traffic law, as amended by section 11 of part A of chapter 55 of the laws of 2023, is amended to read as follows:

8. The provisions of this section shall only apply to offenses committed on or before September first, two thousand [~~twenty-five~~] twenty-seven.

§ 12. Section 6 of chapter 713 of the laws of 1988, amending the vehicle and traffic law relating to the ignition interlock device program, as amended by section 12 of part A of chapter 55 of the laws of 2023, is amended to read as follows:

§ 6. This act shall take effect on the first day of April next succeeding the date on which it shall have become a law; provided, however, that effective immediately, the addition, amendment or repeal of any rule or regulation necessary for the implementation of the foregoing sections of this act on their effective date is authorized and directed to be made and completed on or before such effective date and shall remain in full force and effect until the first day of September, [~~2025~~] 2027 when upon such date the provisions of this act shall be deemed repealed.

§ 13. Paragraph a of subdivision 6 of section 76 of chapter 435 of the laws of 1997, amending the military law and other laws relating to various provisions, as amended by section 13 of part A of chapter 55 of the laws of 2023, is amended to read as follows:

a. sections forty-three through forty-five of this act shall expire and be deemed repealed on September 1, [~~2025~~] 2027;



§ 14. Section 4 of part D of chapter 412 of the laws of 1999, amending the civil practice law and rules and the court of claims act relating to prisoner litigation reform, as amended by section 14 of part A of chapter 55 of the laws of 2023, is amended to read as follows:

§ 4. This act shall take effect 120 days after it shall have become a law and shall remain in full force and effect until September 1, ~~2025~~ 2027, when upon such date it shall expire.

§ 15. Subdivision 2 of section 59 of chapter 222 of the laws of 1994, constituting the family protection and domestic violence intervention act of 1994, as amended by section 15 of part A of chapter 55 of the laws of 2023, is amended to read as follows:

2. Subdivision 4 of section 140.10 of the criminal procedure law as added by section thirty-two of this act shall take effect January 1, 1996 and shall expire and be deemed repealed on September 1, ~~2025~~ 2027.

§ 16. Section 5 of chapter 505 of the laws of 1985, amending the criminal procedure law relating to the use of closed-circuit television and other protective measures for certain child witnesses, as amended by section 16 of part A of chapter 55 of the laws of 2023, is amended to read as follows:

§ 5. This act shall take effect immediately and shall apply to all criminal actions and proceedings commenced prior to the effective date of this act but still pending on such date as well as all criminal actions and proceedings commenced on or after such effective date and its provisions shall expire on September 1, ~~2025~~ 2027, when upon such date the provisions of this act shall be deemed repealed.

§ 17. Subdivision d of section 74 of chapter 3 of the laws of 1995, enacting the sentencing reform act of 1995, as amended by section 17 of part A of chapter 55 of the laws of 2023, is amended to read as follows:

d. Sections one-a through twenty, twenty-four through twenty-eight, thirty through thirty-nine, forty-two and forty-four of this act shall be deemed repealed on September 1, ~~2025~~ 2027;

§ 18. Section 2 of chapter 689 of the laws of 1993, amending the criminal procedure law relating to electronic court appearance in certain counties, as amended by section 18 of part A of chapter 55 of the laws of 2023, is amended to read as follows:

§ 2. This act shall take effect immediately, except that the provisions of this act shall be deemed to have been in full force and effect since July 1, 1992 and the provisions of this act shall expire September 1, ~~2025~~ 2027 when upon such date the provisions of this act shall be deemed repealed.

§ 19. Section 3 of chapter 688 of the laws of 2003, amending the executive law relating to enacting the interstate compact for adult offender supervision, as amended by section 19 of part A of chapter 55 of the laws of 2023, is amended to read as follows:

§ 3. This act shall take effect immediately, except that section one of this act shall take effect on the first of January next succeeding the date on which it shall have become a law, and shall remain in effect until the first of September, ~~2025~~ 2027, upon which date this act shall be deemed repealed and have no further force and effect; provided that section one of this act shall only take effect with respect to any compacting state which has enacted an interstate compact entitled "Interstate compact for adult offender supervision" and having an identical effect to that added by section one of this act and provided further that with respect to any such compacting state, upon the effective date of section one of this act, section 259-m of the executive law

1 is hereby deemed REPEALED and section 259-mm of the executive law, as  
2 added by section one of this act, shall take effect; and provided  
3 further that with respect to any state which has not enacted an inter-  
4 state compact entitled "Interstate compact for adult offender super-  
5 vision" and having an identical effect to that added by section one of  
6 this act, section 259-m of the executive law shall take effect and the  
7 provisions of section one of this act, with respect to any such state,  
8 shall have no force or effect until such time as such state shall adopt  
9 an interstate compact entitled "Interstate compact for adult offender  
10 supervision" and having an identical effect to that added by section one  
11 of this act in which case, with respect to such state, effective imme-  
12 diately, section 259-m of the executive law is deemed repealed and  
13 section 259-mm of the executive law, as added by section one of this  
14 act, shall take effect.

15 § 20. Section 8 of part H of chapter 56 of the laws of 2009, amending  
16 the correction law relating to limiting the closing of certain correc-  
17 tional facilities, providing for the custody by the department of  
18 correctional services of inmates serving definite sentences, providing  
19 for custody of federal prisoners and requiring the closing of certain  
20 correctional facilities, as amended by section 20 of part A of chapter  
21 55 of the laws of 2023, is amended to read as follows:

22 § 8. This act shall take effect immediately; provided, however that  
23 sections five and six of this act shall expire and be deemed repealed  
24 September 1, [2025] 2027.

25 § 21. Section 3 of part C of chapter 152 of the laws of 2001, amending  
26 the military law relating to military funds of the organized militia, as  
27 amended by section 21 of part A of chapter 55 of the laws of 2023, is  
28 amended to read as follows:

29 § 3. This act shall take effect immediately; provided however that the  
30 amendments made to subdivision 1 of section 221 of the military law by  
31 section two of this act shall expire and be deemed repealed September 1,  
32 [2025] 2027.

33 § 22. Section 5 of chapter 554 of the laws of 1986, amending the  
34 correction law and the penal law relating to providing for community  
35 treatment facilities and establishing the crime of absconding from the  
36 community treatment facility, as amended by section 22 of part A of  
37 chapter 55 of the laws of 2023, is amended to read as follows:

38 § 5. This act shall take effect immediately and shall remain in full  
39 force and effect until September 1, [2025] 2027, and provided further  
40 that the commissioner of correctional services shall report each January  
41 first and July first during such time as this legislation is in effect,  
42 to the [chairmen] chairs of the senate crime victims, crime and  
43 correction committee, the senate codes committee, the assembly  
44 correction committee, and the assembly codes committee, the number of  
45 individuals who are released to community treatment facilities during  
46 the previous six-month period, including the total number for each date  
47 at each facility who are not residing within the facility, but who are  
48 required to report to the facility on a daily or less frequent basis.

49 § 23. Section 2 of part F of chapter 55 of the laws of 2018, amending  
50 the criminal procedure law relating to pre-criminal proceeding settle-  
51 ments in the city of New York, as amended by section 23 of part A of  
52 chapter 55 of the laws of 2023, is amended to read as follows:

53 § 2. This act shall take effect immediately and shall remain in full  
54 force and effect until March 31, [2025] 2027, when it shall expire and  
55 be deemed repealed.

56 § 24. This act shall take effect immediately.

1

## PART B

2

Intentionally Omitted

3

## PART C

4 Section 1. Section 3 of the public officers law is amended by adding  
5 a new subdivision 9-a to read as follows:

6 9-a. The provisions of this section requiring a person to be a resi-  
7 dent of the state shall not apply to any person employed as a correction  
8 officer trainee or correction officer who is employed at a state correc-  
9 tional facility.

10 § 2. Subdivision e of section 381-b of the retirement and social  
11 security law, as amended by chapter 97 of the laws of 2008, is amended  
12 to read as follows:

13 e. Mandatory retirement. A member subject to the provisions of this  
14 section shall be retired on December thirty-first of the year in which  
15 [~~he or she~~] such member attains [~~sixty~~] sixty-three years of age.

16 Notwithstanding the foregoing, any member in service in the division  
17 on August fifteenth, two thousand seven, and who on that date was enti-  
18 tled to receive retirement benefits on the thirty-first day of December  
19 in the year in which [~~he or she~~] such member attained fifty-seven years  
20 of age as provided in paragraph three of subdivision b of this section,  
21 may elect to retain such entitlement, provided the member remains in  
22 service on the thirtieth day of December in the year in which [~~he or~~  
23 ~~she~~] such member attains fifty-seven years of age, and any member in  
24 service in the division on August thirty-first, two thousand twenty-  
25 five, and who on that date was entitled to receive retirement benefits  
26 on the thirty-first day of December in the year in which such member  
27 attained sixty years of age as provided in paragraph three of subdivi-  
28 sion b of this section, may elect to retain such entitlement, provided  
29 the member remains in service on the thirtieth day of December in the  
30 year in which such member attains sixty years of age. The provisions of  
31 this subdivision shall not apply to the superintendent.

32 § 3. Subdivision 3 of section 215 of the executive law, as amended by  
33 chapter 478 of the laws of 2004, is amended to read as follows:

34 3. The sworn members of the New York state police shall be appointed  
35 by the superintendent and permanent appointees may be removed by the  
36 superintendent only after a hearing. No person shall be appointed to the  
37 New York state police force as a sworn member unless [~~he or she~~] such  
38 person shall be a citizen of the United States, between the ages of  
39 twenty-one and [~~twenty-nine~~] thirty-four years except that in the super-  
40 intendent's discretion, the maximum age may be extended to [~~thirty-five~~]  
41 forty years. Notwithstanding any other provision of law or any general  
42 or special law to the contrary the time spent on military duty, not  
43 exceeding a total of six years, shall be subtracted from the age of any  
44 applicant who has passed [~~his or her twenty-ninth~~] their thirty-fourth  
45 birthday, solely for the purpose of permitting qualification as to age  
46 and for no other purpose. Such limitations as to age however shall not  
47 apply to persons appointed to the positions of counsel, first assistant  
48 counsel, assistant counsel, and assistant deputy superintendent for  
49 employee relations nor to any person appointed to the bureau of criminal  
50 investigation pursuant to section two hundred sixteen of this article  
51 nor shall any person be appointed unless [~~he or she~~] such person has  
52 fitness and good moral character and shall have passed a physical and

1 mental examination based upon standards provided by the rules and regu-  
2 lations of the superintendent. Appointments shall be made for a proba-  
3 tionary period which, in the case of appointees required to attend and  
4 complete a basic training program at the state police academy, shall  
5 include such time spent attending the basic school and terminate one  
6 year after successful completion thereof. All other sworn members shall  
7 be subject to a probationary period of one year from the date of  
8 appointment. Following satisfactory completion of the probationary peri-  
9 od the member shall be a permanent appointee. Voluntary resignation or  
10 withdrawal from the New York state police during such appointment shall  
11 be submitted to the superintendent for approval. Reasonable time shall  
12 be required to account for all equipment issued or for debts or obli-  
13 gations to the state to be satisfied. Resignation or withdrawal from the  
14 division during a time of emergency, so declared by the governor, shall  
15 not be approved if contrary to the best interest of the state and shall  
16 be a misdemeanor. No sworn member removed from the New York state police  
17 shall be eligible for reappointment. The superintendent shall make rules  
18 and regulations subject to approval by the governor for the discipline  
19 and control of the New York state police and for the examination and  
20 qualifications of applicants for appointment as members thereto and such  
21 examinations shall be held and conducted by the superintendent subject  
22 to such rules and regulations. The superintendent is authorized to  
23 charge a fee of twenty dollars as an application fee for any person  
24 applying to take a competitive examination for the position of trooper,  
25 and a fee of five dollars for any competitive examination for a civilian  
26 position. The superintendent shall promulgate regulations subject to the  
27 approval of the director of the budget, to provide for a waiver of the  
28 application fee when the fee would cause an unreasonable hardship on the  
29 applicant and to establish a fee schedule and charge fees for the use of  
30 state police facilities.

31 § 4. Section 58 of the civil service law, as amended by chapter 560 of  
32 the laws of 1978, subdivisions 1 and 2 as amended by chapter 244 of the  
33 laws of 2013, paragraphs (c) and (d) of subdivision 1 as amended by  
34 section 16 and subdivision 5 as amended by section 17 of part BBB of  
35 chapter 59 of the laws of 2021, subdivision 1-b as added by chapter 1016  
36 of the laws of 1983, subdivision 1-c as added by chapter 840 of the laws  
37 of 1985, subdivision 3 and paragraphs (a) and (b) of subdivision 4 as  
38 amended by chapter 561 of the laws of 2015, subdivision 4 as separately  
39 amended by chapters 375 and 397 of the laws of 1990, paragraph (c) of  
40 subdivision 4 as amended by chapter 190 of the laws of 2008, subpara-  
41 graphs (ii) and (iv) of paragraph (c) of subdivision 4 as amended by  
42 section 58 of subpart B of part C of chapter 62 of the laws of 2011 and  
43 subdivision 6 as added by chapter 558 of the laws of 1979, is amended to  
44 read as follows:

45 § 58. Requirements for ~~[provisional or permanent]~~ appointment of  
46 certain police officers. 1. Notwithstanding any other provision of this  
47 law or any general, special or local law to the contrary, no person  
48 shall be eligible for ~~[provisional or permanent]~~ appointment ~~[in the~~  
49 ~~competitive class of the civil service]~~ as a police officer of the  
50 department of environmental conservation or of any police force or  
51 police department of any county, city, town, village, housing authority  
52 or police district unless ~~[he or she]~~ they shall satisfy the following  
53 basic requirements:

54 (a) ~~[he or she is]~~ they are not less than twenty years of age as of  
55 the date of appointment nor more than ~~[thirty-five]~~ forty years of age  
56 as of the date when the applicant takes the written examination,

provided that the maximum age requirement of ~~[thirty-five]~~ forty years of age as set forth in this paragraph shall not apply to eligible lists finalized pursuant to an examination administered prior to May thirty-first, nineteen hundred ninety-nine or a police officer in the department of environmental conservation, provided, however, that:

(i) time spent on military duty or on terminal leave, not exceeding a total of six years, shall be subtracted from the age of any applicant who has passed ~~[his or her thirty-fifth]~~ their fortieth birthday as provided in subdivision ten-a of section two hundred forty-three of the military law;

(ii) such maximum age requirement of ~~[thirty-five]~~ forty years shall not apply to any police officer as defined in subdivision thirty-four of section 1.20 of the criminal procedure law, who was continuously employed by the Buffalo municipal housing authority between January first, two thousand five and June thirtieth, two thousand five and who takes the next written exam offered after the effective date of this subparagraph by the city of Buffalo civil service commission for employment as a police officer in the city of Buffalo police department, or June thirtieth, two thousand six, whichever is later; and

(iii) such maximum age requirement of ~~[thirty-five]~~ forty years shall not apply to any police officer of any county, town, city or village police force not otherwise provided for in this section if the eligible list has been exhausted and there are no other eligible candidates; provided, however, the police officer themselves are on the eligible list of such county, town, city or village and meet all other requirements of merit and fitness set forth by this chapter and do not exceed the maximum age of ~~[thirty-nine]~~ forty-four;

(b) ~~[he or she is]~~ they are a high school graduate or a holder of a high school equivalency diploma issued by an education department of any of the states of the United States or a holder of a comparable diploma issued by any commonwealth, territory or possession of the United States or by the Canal Zone or a holder of a report from the United States armed forces certifying ~~[his or her]~~ their successful completion of the tests of general educational development, high school level;

(c) ~~[he or she satisfies]~~ they satisfy the height, weight, physical and psychological fitness requirements prescribed by the municipal police training council pursuant to the provisions of section eight hundred forty of the executive law; and

(d) ~~[he or she is]~~ they are of good moral character as determined in accordance with the background investigation standards of the municipal police training council pursuant to the provisions of section eight hundred forty of the executive law.

1-b. Notwithstanding the provisions of any other section of law, general, special or local, in political subdivisions maintaining a police department serving a population of one hundred fifty thousand or less, no person shall be eligible for appointment nor shall ~~[he or she]~~ they be appointed to any rank above the rank of police officer unless ~~[he or she has]~~ they have been appointed a police officer from an eligible list established according to merit and fitness as provided by section six of article five of the constitution of the state of New York or has previously served as a member of the New York state police.

1-c. Notwithstanding the provisions of any other section of law, general, special or local, any political subdivision maintaining a police department serving a population of one hundred fifty thousand or less and with positions for more than four full-time police officers, shall maintain the office of chief of police.



2. The provisions of this section shall not prevent any county, city, town, village, housing authority, transit authority, police district or the department of environmental conservation from setting more restrictive requirements of eligibility for its police officers, except the maximum age to be a police officer as provided in paragraph (a) of subdivision one of this section.

3. As used in this section, the term "police officer" means a police officer in the department of environmental conservation, the state university police, a member of the regional state park police or a police force, police department, or other organization of a county, city, town, village, housing authority, transit authority or police district, who is responsible for the prevention and detection of crime and the enforcement of the general criminal laws of the state, but shall not include any person serving as such solely by virtue of ~~[his or her]~~ occupying any other office or position, nor shall such term include a sheriff, under-sheriff, commissioner of police, deputy or assistant commissioner of police, chief of police, deputy or assistant chief of police or any person having an equivalent title who is appointed or employed to exercise equivalent supervisory authority.

4. (a) Any person who has received provisional or permanent appointment in the competitive class of the civil service as a police officer of the regional state park police, the state university of New York police, the department of environmental conservation or any police force or police department of any county, city, town, village, housing authority, transit authority or police district shall be eligible to resign from any police force or police department, and to be appointed as a police officer in the same or any other police force or police department without satisfying the age requirements set forth in paragraph (a) of subdivision one of this section at the time of such second or subsequent appointment, provided such second or subsequent appointment occurs within thirty days of the date of resignation.

(b) Any person who has received permanent appointment in the competitive class of the civil service as a police officer of the regional state park police, the state university of New York police, the department of environmental conservation or any police force or police department of any county, city, town, village, housing authority, transit authority or police district shall be eligible to resign from any police force or police department and, subject to such civil service rules as may be applicable, shall be eligible for reinstatement in the same police force or police department or in any other police force or police department to which ~~[he or she was]~~ they were eligible for transfer, without satisfying the age requirements set forth in paragraph (a) of subdivision one of this section at the time of such reinstatement, provided such reinstatement occurs within one year of the date of resignation.

(c) (i) Legislative findings and declaration. The legislature hereby finds and declares that it is frequently impracticable to ascertain fitness for the positions of detective and investigator within various police or sheriffs departments around the state by means of a competitive examination due to the unique nature of the duties assigned and the intangible personal qualities needed to perform such duties. The legislature further finds that competitive examination has never been employed in many police, correction or sheriffs departments, to ascertain fitness for the positions of detective and investigator within such police, correction or sheriffs departments; such fitness has always been determined by evaluation of the capabilities of an individual (who has



1 in any case received permanent appointment to the position of police  
2 officer, correction officer of any rank or deputy sheriff) by superviso-  
3 ry personnel. The legislature further finds that an individual who  
4 performs in an investigatory position in a manner sufficiently satisfac-  
5 tory to the appropriate supervisors to hold such an assignment for a  
6 period of eighteen months, has demonstrated fitness for the position of  
7 detective or investigator within such police, correction or sheriffs  
8 department at least as sufficiently as could be ascertained by means of  
9 a competitive examination.

10 (ii) Notwithstanding any other provision of law, in any jurisdiction,  
11 other than a city with a population of one million or more or the state  
12 department of corrections and community supervision, which does not  
13 administer examinations for designation to detective or investigator,  
14 any person who has received permanent appointment to the position of  
15 police officer, correction officer of any rank or deputy sheriff and is  
16 temporarily assigned to perform the duties of detective or investigator  
17 shall, whenever such assignment to the duties of a detective or investi-  
18 gator exceeds eighteen months, be permanently designated as a detective  
19 or investigator and receive the compensation ordinarily paid to persons  
20 in such designation.

21 (iii) Nothing contained in subparagraph (ii) of this paragraph shall  
22 be construed to limit any jurisdiction's ability to administer examina-  
23 tions for appointment to the positions of detective and investigator,  
24 provided however that any person temporarily assigned to perform the  
25 duties of detective or investigator within the period commencing Septem-  
26 ber twenty-third, nineteen hundred ninety-three through and including  
27 the date upon which this paragraph shall have become a law and who has  
28 not been designated as a detective or investigator and who has not been  
29 subject to an examination for which there is a certified eligible list,  
30 shall be permanently designated as a detective or investigator whenever  
31 such assignment to the duties of detective or investigator exceeds eigh-  
32 teen months.

33 (iv) Detectives and investigators designated since September twenty-  
34 third, nineteen hundred ninety and prior to February twenty-fourth,  
35 nineteen hundred ninety-five by any state, county, town, village or city  
36 (other than a city with a population of one million or more or the state  
37 department of corrections and community supervision) police, correction  
38 or sheriffs department, pursuant to the provisions of this paragraph in  
39 effect during such period, who continue to serve in such positions,  
40 shall retain their detective or investigator status without any right to  
41 retroactive financial entitlement.

42 5. The provisions of this section shall not apply to the investigatory  
43 personnel of the office of the district attorney in any county, includ-  
44 ing any county within the city of New York.

45 6. The provisions of this section shall not apply to any individual  
46 holding the position of deputy sheriff in Westchester county prior to  
47 July first, nineteen hundred seventy-nine upon the transfer of such  
48 individual to service in the Westchester county department of public  
49 safety services.

50 § 5. This act shall take effect September 1, 2025.

51 PART D

52 Intentionally Omitted

## 1 PART E

2 Intentionally Omitted

## 3 PART F

4 Intentionally Omitted

## 5 PART G

6 Section 1. Paragraphs (i), (j) and (k) of subdivision 1 of section 624  
7 of the executive law, paragraph (i) as amended by section 9 of part A-1  
8 of chapter 56 of the laws of 2010, paragraph (j) as amended by chapter  
9 427 of the laws of 1999, paragraph (k) as amended by chapter 117 of the  
10 laws of 2017, are amended and a new paragraph (l) is added to read as  
11 follows:

12 (i) a surviving spouse of a crime victim who died from causes not  
13 directly related to the crime when such victim died prior to filing a  
14 claim with the office or subsequent to filing a claim but prior to the  
15 rendering of a decision by the office. Such award shall be limited to  
16 out-of-pocket loss incurred as a direct result of the crime; ~~and~~

17 (j) a spouse, child or stepchild of a victim of a crime who has  
18 sustained personal physical injury as a direct result of a crime~~[-];~~

19 (k) a surviving spouse, grandparent, parent, stepparent, guardian,  
20 ~~[brother, sister, stepbrother, stepsister,]~~ sibling, stepsibling, child,  
21 stepchild, or grandchild of a victim of a crime who died as a direct  
22 result of such crime and where such crime occurred in the residence  
23 shared by such family member or members and the victim~~[-]; and~~

24 (l) any person not otherwise eligible under this subdivision who has  
25 paid for or incurred the crime scene cleanup expenses, provided that  
26 such person shall only be eligible to receive an award under this arti-  
27 cle for crime scene cleanup.

28 § 2. Subdivisions 2, 5, 9 and 18 of section 631 of the executive law,  
29 subdivision 2 as amended by chapter 233 of the laws of 2020, subdivision  
30 5 as amended by section 22 of part A-1 of chapter 56 of the laws of  
31 2010, paragraph (e) of subdivision 5 as amended by chapter 70 of the  
32 laws of 2020, paragraph (f) of subdivision 5 as added by section 5 of  
33 part H of chapter 55 of the laws of 2017, paragraph (g) of subdivision 5  
34 as added by chapter 494 of the laws of 2018, subdivision 9 as amended by  
35 section 1 of part I of chapter 55 of the laws of 2022, and subdivision  
36 18 as added by chapter 119 of the laws of 2013, are amended to read as  
37 follows:

38 2. Any award made pursuant to this article shall be in an amount not  
39 exceeding out-of-pocket expenses, including indebtedness reasonably  
40 incurred for medical or other services necessary as a result of the  
41 injury upon which the claim is based; loss of earnings or support  
42 resulting from such injury not to exceed thirty thousand dollars; loss  
43 of savings not to exceed thirty thousand dollars; burial expenses not  
44 exceeding ~~[six]~~ twelve thousand dollars of a victim who died on or after  
45 November first, nineteen ninety-six as a direct result of a crime; the  
46 costs of crime scene cleanup and securing of a crime scene not exceeding  
47 twenty-five hundred dollars; reasonable relocation expenses not exceed-  
48 ing twenty-five hundred dollars; reasonable employment-related transpor-  
49 tation expenses, not exceeding twenty-five hundred dollars and the unre-

1 imbursement cost of repair or replacement of articles of essential personal  
2 property lost, damaged or destroyed as a direct result of the crime. An  
3 award for loss of earnings shall include earnings lost by a parent or  
4 guardian as a result of the hospitalization of a child victim under age  
5 eighteen for injuries sustained as a direct result of a crime. In addi-  
6 tion to the medical or other services necessary as a result of the inju-  
7 ry upon which the claim is based, an award may be made for rehabilita-  
8 tive occupational training for the purpose of job retraining or similar  
9 employment-oriented rehabilitative services based upon the claimant's  
10 medical and employment history. For the purpose of this subdivision,  
11 rehabilitative occupational training shall include but not be limited to  
12 educational training and expenses. An award for rehabilitative occupa-  
13 tional training may be made to a victim, or to a family member of a  
14 victim where necessary as a direct result of a crime. An award for  
15 employment-related transportation expenses shall be limited to the time  
16 period necessary due to the personal physical injuries sustained as a  
17 direct result of the crime upon which the claim is based, as determined  
18 by the medical information collected during the investigation of the  
19 claim.

20 5. (a) ~~[In]~~ Except as provided in paragraph (g) of this subdivision,  
21 in determining the amount of an award, the office shall determine wheth-  
22 er, because of ~~[his]~~ such victim's conduct, the victim of such crime  
23 contributed to the infliction of ~~[his]~~ such victim's injury, and the  
24 office shall reduce the amount of the award or reject the claim alto-  
25 gether, in accordance with such determination.

26 (b) Notwithstanding the provisions of paragraph (a) of this subdivi-  
27 sion, the office shall disregard for this purpose the responsibility of  
28 the victim for ~~[his]~~ such victim's own injury where the record shows  
29 that the person injured was acting as a good samaritan, as defined in  
30 this article.

31 (c) Notwithstanding any inconsistent provision of this article, where  
32 the person injured acted as a good samaritan, the office may, without  
33 regard to the financial difficulty of the claimant, make an award for  
34 out-of-pocket losses. Such award may also include compensation for any  
35 loss of property up to five thousand dollars suffered by the victim  
36 during the course of ~~[his]~~ such victim's actions as a good samaritan.

37 (d) Notwithstanding any inconsistent provision of this article, where  
38 a person acted as a good samaritan, and was killed as a direct result of  
39 the crime, the office may, without regard to the financial difficulty of  
40 the claimant, make a lump sum award to such claimant for actual loss of  
41 support not to exceed thirty thousand dollars.

42 (e) Notwithstanding any inconsistent provision of this article, where  
43 a police officer or firefighter, both paid and volunteer, dies from  
44 injuries received in the line of duty as a direct result of a crime, the  
45 office may, without regard to the financial difficulty of the claimant,  
46 make an award for the unreimbursed counseling expenses of the eligible  
47 spouse, domestic partner, parents, ~~[brothers, sisters]~~ siblings or chil-  
48 dren of such victim, and/or the reasonable burial expenses incurred by  
49 the claimant.

50 (f) Notwithstanding the provisions of paragraph (a) of this subdivi-  
51 sion, the office shall disregard for this purpose the responsibility of  
52 the victim for ~~[his or her]~~ such victim's own loss of savings.

53 (g) Notwithstanding the provisions of paragraph (a) of this subdivi-  
54 sion, when determining a claim made by a person eligible under paragraph  
55 (b), (c) or (d) of subdivision one of section six hundred twenty-four of  
56 this article, if the crime upon which the claim is based resulted in the

1 death of the victim, the office shall [~~determine~~] not consider whether,  
2 because of [~~his or her~~] their conduct, the victim of such crime contrib-  
3 uted to [~~the infliction of his or her injury, and the office may reduce~~  
4 ~~the amount of the award by no more than fifty percent, in accordance~~  
5 ~~with such determination~~] their death.

6 9. (a) Any award made for the cost of repair or replacement of essen-  
7 tial personal property, including cash losses of essential personal  
8 property, shall be limited to an amount of twenty-five hundred dollars,  
9 except that all cash losses of essential personal property shall be  
10 limited to the amount of one hundred dollars. In the case of medically  
11 necessary life-sustaining equipment which was lost or damaged as the  
12 direct result of a crime, the award shall be limited to the amount of  
13 ten thousand dollars.

14 (b) Notwithstanding the provisions of paragraph (a) of this subdivi-  
15 sion, in the case of cash losses which were the result of an act or  
16 series of acts of larceny as defined in article one hundred fifty-five  
17 of the penal law, perpetrated by the same actor indicated by a report or  
18 reports obtained from a criminal justice agency as defined in subdivi-  
19 sion one of this section, and a receipt, receipts or similar documenta-  
20 tion is provided showing such cash loss or losses, a single claim may be  
21 filed and an award may be made for cash losses of essential personal  
22 property for each act up to a cumulative amount of no more than twenty-  
23 five hundred dollars.

24 18. Notwithstanding any inconsistent provision of this article and  
25 subject to any applicable maximum award limitations contained in this  
26 section, where a victim has died as a direct result of the crime upon  
27 which the claim is based and the crime occurred in the residence of a  
28 person eligible pursuant to [~~paragraph~~] paragraphs (k) and (l) of subdivi-  
29 sion one of section six hundred twenty-four of this article, the  
30 office may make no more than one award for crime scene clean-up related  
31 to such residence.

32 § 3. Subdivision 10 of section 621 of the executive law, as added by  
33 chapter 688 of the laws of 1985, is amended to read as follows:

34 10. "Disabled victim" shall mean a person who has [~~(a)~~] a physical,  
35 mental or medical impairment [~~from anatomical, physiological or neuro-~~  
36 ~~logical conditions~~], as evidenced by medical records, which prevents the  
37 exercise of a normal bodily function [~~or is demonstrable by medically~~  
38 ~~accepted clinical or laboratory diagnostic techniques or (b) a record of~~  
39 ~~such an impairment or (c) a condition regarded by others as such an~~  
40 ~~impairment~~] at the time of the crime.

41 § 4. Subdivision 2 of section 630 of the executive law, as amended by  
42 chapter 494 of the laws of 2018, is amended to read as follows:

43 2. Notwithstanding the provisions of subdivision one of this section,  
44 if the crime upon which the claim is based resulted in the death of the  
45 victim, and it appears to the office that such claim is one with respect  
46 to which an award probably will be made, and undue hardship will result  
47 to the claimant if immediate payment is not made, the office may make  
48 one or more emergency awards to the claimant for reasonable burial  
49 expenses pending a final decision of the office or payment of an award  
50 in the case; provided, however, that the total amount of an emergency  
51 award or awards for reasonable burial expenses shall not exceed [~~three~~]  
52 six thousand dollars. The amount of such emergency award or awards shall  
53 be deducted from any final award made to the claimant, and the excess of  
54 the amount of any such award or awards over the amount of the final  
55 award, of the full amount of an emergency award or awards if no final  
56 award is made, shall be repaid by the claimant to the office.

1 § 5. This act shall take effect on the one hundred eightieth day after  
2 it shall have become a law and shall apply to all claims filed on or  
3 after such effective date.

4 PART H

5 Section 1. Subdivision 13 of section 631 of the executive law, as  
6 amended by section 3 of subpart S of part XX of chapter 55 of the laws  
7 of 2020, is amended to read as follows:

8 13. (a) Notwithstanding any other provision of law, rule, or regu-  
9 lation to the contrary, when any New York state accredited hospital,  
10 accredited sexual assault examiner program, or licensed health care  
11 provider furnishes services to any sexual assault survivor, including  
12 but not limited to a health care forensic examination in accordance with  
13 the sex offense evidence collection protocol and standards established  
14 by the department of health, such hospital, sexual assault examiner  
15 program, or licensed healthcare provider shall provide such services to  
16 the person without charge and shall bill the office directly. The  
17 office, in consultation with the department of health, shall define the  
18 specific services to be covered by the sexual assault forensic exam  
19 reimbursement fee, which must include at a minimum forensic examiner  
20 services, hospital or healthcare facility services related to the exam,  
21 and any necessary related laboratory tests or pharmaceuticals based upon  
22 the department of health's Medicaid reimbursement rates; including but  
23 not limited to HIV post-exposure prophylaxis provided by a hospital  
24 emergency room at the time of the forensic rape examination pursuant to  
25 paragraph (c) of subdivision one of section twenty-eight hundred five-i  
26 of the public health law. ~~[For a person eighteen years of age or older,~~  
27 ~~follow-up HIV post-exposure prophylaxis costs shall continue to be reim-~~  
28 ~~bursed according to established office procedure.]~~ The office, in  
29 consultation with the department of health, shall also generate the  
30 necessary ~~[regulations and]~~ forms for the direct reimbursement procedure  
31 and regulations setting the usual and customary rates for the itemized  
32 charges related to an exam of a sexual assault survivor.

33 (b) The rate for reimbursement shall be the amount of itemized charg-  
34 es, to be reimbursed at the ~~[Medicaid rate and]~~ usual and customary  
35 rates as established pursuant to this subdivision and which shall  
36 cumulatively not exceed (1) eight hundred dollars for an exam of a sexu-  
37 al assault survivor where no sexual offense evidence collection kit is  
38 used; (2) one thousand two hundred dollars for an exam of a sexual  
39 assault survivor where a sexual offense evidence collection kit is used;  
40 and (3) ~~[one thousand five hundred dollars for an exam of a sexual~~  
41 ~~assault survivor who is eighteen years of age or older, with or without~~  
42 ~~the use of a sexual offense evidence collection kit, and with the~~  
43 ~~provision of a necessary HIV post-exposure prophylaxis seven day starter~~  
44 ~~pack; and (4)]~~ two thousand five hundred dollars for an exam of a sexual  
45 assault survivor ~~[who is less than eighteen years of age]~~, with or with-  
46 out the use of a sexual offense evidence collection kit, and with the  
47 provision of the full regimen of necessary HIV post-exposure prophylax-  
48 is. The hospital, sexual assault examiner program, or licensed health  
49 care provider must accept this fee as payment in full for these speci-  
50 fied services. No additional billing of the survivor for said services  
51 is permissible. A sexual assault survivor may voluntarily assign any  
52 private insurance benefits to which ~~[she or he is]~~ they are entitled for  
53 the healthcare forensic examination, in which case the hospital or  
54 healthcare provider may not charge the office; provided, however, in the



1 event the sexual assault survivor assigns any private health insurance  
2 benefit, such coverage shall not be subject to annual deductibles or  
3 coinsurance or balance billing by the hospital, sexual assault examiner  
4 program or licensed health care provider. A hospital, sexual assault  
5 examiner program or licensed health care provider shall, at the time of  
6 the initial visit, request assignment of any private health insurance  
7 benefits to which the sexual assault survivor is entitled on a form  
8 prescribed by the office; provided, however, such sexual assault survi-  
9 vor shall be advised orally and in writing that [~~he or she~~] they may  
10 decline to provide such information regarding private health insurance  
11 benefits if [~~he or she believes~~] they believe that the provision of such  
12 information would substantially interfere with [~~his or her~~] their  
13 personal privacy or safety and in such event, the sexual assault foren-  
14 sic exam fee shall be paid by the office. Such sexual assault survivor  
15 shall also be advised that providing such information may provide addi-  
16 tional resources to pay for services to other sexual assault victims.  
17 Such sexual assault survivor shall also be advised that the direct  
18 reimbursement program established by this subdivision does not automat-  
19 ically make them eligible for any other compensation benefits available  
20 from the office including, but not limited to, reimbursement for mental  
21 health counseling expenses, relocation expenses, and loss of earnings,  
22 and that such compensation benefits may only be made available to them  
23 should the sexual assault survivor or other person eligible to file  
24 pursuant to section six hundred twenty-four of this article, file a  
25 compensation application with the office. If [~~he or she~~] such sexual  
26 assault survivor declines to provide such health insurance information,  
27 [~~he or she~~] they shall indicate such decision on the form provided by  
28 the hospital, sexual assault examiner program or licensed health care  
29 provider, which form shall be prescribed by the office.

30 § 2. Paragraph (c) of subdivision 1 of section 2805-i of the public  
31 health law, as amended by section 1 of subpart S of part XX of chapter  
32 55 of the laws of 2020, is amended to read as follows:

33 (c) offering and making available appropriate HIV post-exposure treat-  
34 ment therapies; including [~~a seven day starter pack of HIV post-exposure~~  
35 ~~prophylaxis for a person eighteen years of age or older, or~~] the full  
36 regimen of HIV post-exposure prophylaxis [~~for a person less than eigh-~~  
37 ~~teen years of age,~~] in cases where it has been determined, in accordance  
38 with guidelines issued by the commissioner, that a significant exposure  
39 to HIV has occurred, and informing the victim that payment assistance  
40 for such therapies and other crime related expenses may be available  
41 from the office of victim services pursuant to the provisions of article  
42 twenty-two of the executive law. With the consent of the victim of a  
43 sexual assault, the hospital emergency room department shall provide or  
44 arrange for an appointment for medical follow-up related to HIV post-ex-  
45 posure prophylaxis and other care as appropriate; and

46 § 3. This act shall take effect on the two hundred seventieth day  
47 after it shall have become a law and apply to all exams performed on or  
48 after such effective date. Effective immediately, the addition, amend-  
49 ment and/or repeal of any rule or regulation necessary for the implemen-  
50 tation of this act on its effective date are authorized to be made and  
51 completed on or before such effective date.

## 52 PART I

53 Section 1. Subdivision 4 of section 349-a of the social services law  
54 is REPEALED.



§ 2. Subdivision 5 of section 349-a of the social services law, as added by section 36 of part B of chapter 436 of the laws of 1997, is amended to read as follows:

~~[5. Upon a determination that the individual's allegation is credible]~~  
4. Following referral to a domestic violence liaison, (a) the individual shall be informed by the domestic violence liaison of services, which shall be available on a voluntary basis; and (b) the domestic violence liaison shall conduct an assessment to determine if and to what extent domestic violence is a barrier to the individual's compliance with public assistance requirements or to employment and such assessment shall be based upon an attestation or the relevant information and corroborating evidence provided by the individual alleging such abuse; and (c) the domestic violence liaison shall ~~[assess the need for]~~ grant any appropriate waivers of such program requirements based on such assessment. Such waivers shall, to the extent permitted by federal law, include, but not be limited to, residency requirements, child support cooperation requirements and employment and training requirements; provided, however, that exemptions from the sixty month limit on receipt of benefits under the federal temporary assistance to needy families block grant program shall be available only when the individual would not be required to participate in work or training activities because of an independently verified physical or mental impairment resulting from domestic violence, anticipated to last for three months or longer, or if the individual is unable to work because of the need to care for a dependent child who is disabled as a result of domestic violence. Provided, however, that pursuant to section one hundred forty-two of the welfare reform act of 1997 victims of domestic violence may be exempted from the application of subdivision two of section three hundred forty-nine of this article on the basis of hardship.

§ 3. Subdivisions 6 and 7 of section 349-a of the social services law are renumbered subdivisions 5 and 6 and a new subdivision 7 is added to read as follows:

7. When used in this section, the term statewide domestic violence advocacy groups shall mean an organization designated by the federal department of health and human services to coordinate statewide improvements within local communities, social services systems, and programming regarding the prevention and intervention of domestic violence in New York state.

§ 4. This act shall take effect on the two hundred seventieth day after it shall have become a law.

## PART J

Section 1. The state finance law is amended by adding a new section 139-m to read as follows:

§ 139-m. Statement on gender-based violence and the workplace, in bids. 1. (a) Every bid hereafter made to the state or any public department or agency thereof, where competitive bidding is required by statute, rule or regulation, for work or services performed or to be performed or goods sold or to be sold, shall contain the following statement subscribed by the bidder and affirmed by such bidder as true under the penalty of perjury:

"By submission of this bid, each bidder and each person signing on behalf of any bidder certifies, and in the case of a joint bid each party thereto certifies as to its own organization, under penalty of perjury, that the bidder has and has implemented a written policy

1 addressing gender-based violence and the workplace and has provided such  
2 policy to all of its employees, directors and board members. Such policy  
3 shall, at a minimum, meet the requirements of subdivision 11 of section  
4 five hundred seventy-five of the executive law."

5 (b) Every bid hereafter made to the state or any public department or  
6 agency thereof, where competitive bidding is not required by statute,  
7 rule or regulation, for work or services performed or to be performed or  
8 goods sold or to be sold, may contain, at the discretion of the depart-  
9 ment, agency or official, the certification required pursuant to para-  
10 graph (a) of this subdivision.

11 2. Notwithstanding the foregoing, the statement required by paragraph  
12 (a) of subdivision one of this section may be submitted electronically  
13 in accordance with the provisions of subdivision seven of section one  
14 hundred sixty-three of this chapter.

15 3. A bid shall not be considered for award, nor shall any award be  
16 made to a bidder who has not complied with subdivision one of this  
17 section; provided, however, that if the bidder cannot make the foregoing  
18 certification, such bidder shall so state and shall furnish with the bid  
19 a signed statement which sets forth in detail the reasons therefor.

20 4. Any bid hereafter made to the state or any public department, agen-  
21 cy or official thereof, by a corporate bidder for work or services  
22 performed or to be performed or goods sold or to be sold, where such bid  
23 contains the statement required by subdivision one of this section,  
24 shall be deemed to have been authorized by the board of directors of  
25 such bidder, and such authorization shall be deemed to include the sign-  
26 ing and submission of such bid and the inclusion therein of such state-  
27 ment as the act and deed of the corporation.

28 § 2. Subdivisions 7 and 7-a of section 163 of the state finance law,  
29 subdivision 7 as amended and subdivision 7-a as added by section 3 of  
30 part R of chapter 55 of the laws of 2023, are amended to read as  
31 follows:

32 7. Method of procurement. Consistent with the requirements of subdivi-  
33 sions three and four of this section, state agencies shall select among  
34 permissible methods of procurement including, but not limited to, an  
35 invitation for bid, request for proposals or other means of solicitation  
36 pursuant to guidelines issued by the state procurement council. State  
37 agencies may accept bids electronically including submission of the  
38 statement of non-collusion required by section one hundred thirty-nine-d  
39 of this chapter, and the statement of certification required by section  
40 one hundred thirty-nine-l and section one hundred thirty-nine-m of this  
41 chapter. Except where otherwise provided by law, procurements shall be  
42 competitive, and state agencies shall conduct formal competitive  
43 procurements to the maximum extent practicable. State agencies shall  
44 document the determination of the method of procurement and the basis of  
45 award in the procurement record. Where the basis for award is the best  
46 value offer, the state agency shall document, in the procurement record  
47 and in advance of the initial receipt of offers, the determination of  
48 the evaluation criteria, which whenever possible, shall be quantifiable,  
49 and the process to be used in the determination of best value and the  
50 manner in which the evaluation process and selection shall be conducted.

51 7-a. Notwithstanding the electronic bid provisions set forth in subdivi-  
52 sion seven of this section, starting April first, two thousand twen-  
53 ty-three, and ending March thirty-first, two thousand twenty-seven,  
54 state agencies may require electronic submission as the sole method for  
55 the submission of bids for commodity, service and technology contracts,  
56 including submission of the statement of non-collusion required by

1 section one hundred thirty-nine-d of this chapter, and the statement of  
2 certification required by section one hundred thirty-nine-l and section  
3 one hundred thirty-nine-m of this chapter, and may require electronic  
4 signatures on all documents required for submission of a bid, any  
5 resulting contracts, and required submissions during the term of any  
6 contract. Prior to requiring the electronic submission of bids, the  
7 agency shall make a determination, which shall be documented in the  
8 procurement record, that electronic submission affords a fair and equal  
9 opportunity for offerers to submit responsive offers, and that the elec-  
10 tronic signature complies with the provisions of article three of the  
11 state technology law.

12 § 3. The executive law is amended by adding a new section 170-i to  
13 read as follows:

14 § 170-i. Gender-based violence and the workplace. 1. Each state agen-  
15 cy shall formulate and issue a gender-based violence and the workplace  
16 policy for such agency. In formulating such policy, the state agency  
17 shall refer to the model gender-based violence and the workplace policy  
18 distributed by the office for the prevention of domestic violence pursu-  
19 ant to subdivision eleven of section five hundred seventy-five of this  
20 chapter, and adopt its provisions as appropriate.

21 2. Each state agency shall designate at least one domestic violence  
22 agency liaison who shall ensure agency compliance with the domestic  
23 violence provisions of the gender-based violence and the workplace poli-  
24 cy, be trained to assist victimized employees, and serve as the primary  
25 contact for the policy distributed by the agency.

26 3. Each state agency, in formulating or revising its gender-based  
27 violence and the workplace policy, shall give due regard to the impor-  
28 tance of increasing awareness of gender-based violence and informing  
29 employees of available resources for assistance; clearly specifying how  
30 to reach the domestic violence agency liaison; ensuring that personnel  
31 policies and procedures are fair to domestic and gender-based violence  
32 victims and survivors, and responsive to their needs; developing work-  
33 place safety response plans; complying with state and federal law  
34 including restrictions of possession of firearms by a person convicted  
35 of a domestic violence related crime or subject to an order of  
36 protection; encouraging and promoting gender-based violence education  
37 and training for employees; and holding accountable employees who misuse  
38 state resources or authority or violate their job duties in committing  
39 an act of gender-based violence. Each state agency, when it issues its  
40 gender-based violence and the workplace policy, shall provide a copy of  
41 that policy and the information for its designated domestic violence  
42 agency liaison to the office for the prevention of domestic violence,  
43 and shall notify the office of any subsequent modifications of the poli-  
44 cy or the contact information for the domestic violence agency liaison.

45 4. (a) Every covered employee shall participate in a gender-based  
46 violence and the workplace training developed by the office for the  
47 prevention of domestic violence and made available on the statewide  
48 learning management system annually.

49 (b) As used in this subdivision, "covered employee" shall mean all  
50 officers and employees working in the executive chamber in the office of  
51 the governor and New York State agencies who supervise other officers  
52 and employees, who serve as the domestic violence agency liaison, or who  
53 are employed in a human resources position. "Officers and employees"  
54 shall have the meaning given to "state officer or employee" in section  
55 seventy-three of the public officers law.

1 5. Each state agency shall cooperate with the office for the  
2 prevention of domestic violence and furnish such information, reporting,  
3 and assistance as the office determines is reasonably necessary to  
4 accomplish the purposes of this section.

5 § 4. Section 575 of the executive law is amended by adding a new  
6 subdivision 11 to read as follows:

7 11. Gender-based violence and the workplace policies. The office shall  
8 consult with the division of human rights, department of labor, an  
9 organization designated by the federal department of health and human  
10 services to coordinate statewide improvements within local communities,  
11 social services systems, and programming regarding the prevention and  
12 intervention of domestic violence in New York state, and an organization  
13 designated by the federal department of justice to provide direct  
14 support to member rape and crisis centers in New York state through  
15 funding, training and technical assistance, public awareness, and public  
16 policy advocacy to create and publish a model gender-based violence and  
17 the workplace policy that employers may utilize in their adoption of a  
18 gender-based violence and the workplace policy required by section one  
19 hundred thirty-nine-m of the state finance law. The office shall also  
20 publish a model gender-based violence and the workplace policy for exec-  
21 utive agencies that such agencies may utilize in their adoption of a  
22 gender-based violence and the workplace policy required by section one  
23 hundred seventy-i of this chapter. Such model gender-based violence and  
24 the workplace policy shall be publicly available and posted on the  
25 websites of the office, the department of labor and the division of  
26 human rights.

27 § 5. This act shall take effect on the one hundred eightieth day after  
28 it shall have become a law; provided, however, that the amendments to  
29 section 163 of the state finance law made by section two of this act  
30 shall not affect the repeal of such section and shall be deemed repealed  
31 therewith.

32 PART K

33 Intentionally Omitted

34 PART L

35 Intentionally Omitted

36 PART M

37 Intentionally Omitted

38 PART N

39 Intentionally Omitted

40 PART O

41 Intentionally Omitted

## 1 PART P

2 Intentionally Omitted

## 3 PART Q

4 Section 1. Section 5 of chapter 396 of the laws of 2010 amending the  
5 alcoholic beverage control law relating to liquidator's permits and  
6 temporary retail permits, as amended by section 1 of part K of chapter  
7 55 of the laws of 2024, is amended to read as follows:

8 § 5. This act shall take effect on the sixtieth day after it shall  
9 have become a law, provided that paragraph (b) of subdivision 1 of  
10 section 97-a of the alcoholic beverage control law as added by section  
11 two of this act shall expire and be deemed repealed October 12, [2025]  
12 2026.

13 § 2. This act shall take effect immediately.

## 14 PART R

15 Section 1. Subdivision 1 of section 2799-gg of the public authorities  
16 law, as amended by section 1 of part TT of chapter 56 of the laws of  
17 2024, is amended to read as follows:

18 1. The authority shall have the power and is hereby authorized from  
19 time to time to issue bonds, in conformity with applicable provisions of  
20 the uniform commercial code, in such principal amounts as it may deter-  
21 mine to be necessary pursuant to section twenty-seven hundred ninety-  
22 nine-ff of this title to pay the cost of any project and to fund  
23 reserves to secure such bonds, including incidental expenses in  
24 connection therewith.

25 The aggregate principal amount of such bonds, notes or other obli-  
26 gations outstanding shall not exceed, beginning July first, two thousand  
27 twenty-four, twenty-one billion five hundred million dollars  
28 (\$21,500,000,000) and beginning July first, two thousand twenty-five,  
29 [twenty-seven] thirty billion five hundred million dollars  
30 [(\$27,500,000,000)] (\$30,500,000,000), excluding bonds, notes or other  
31 obligations issued pursuant to sections twenty-seven hundred ninety-  
32 nine-ss and twenty-seven hundred ninety-nine-tt of this title; provided,  
33 however, that upon any refunding or repayment of bonds (which term shall  
34 not, for this purpose, include bond anticipation notes), the total  
35 aggregate principal amount of outstanding bonds, notes or other obli-  
36 gations may be greater than, beginning July first, two thousand twenty-  
37 four, twenty-one billion five hundred million dollars (\$21,500,000,000),  
38 and beginning July first, two thousand twenty-five, [twenty-seven] thir-  
39 ty billion five hundred million dollars [(\$27,500,000,000)]  
40 (\$30,500,000,000), only if the refunding or repayment bonds, notes or  
41 other obligations were issued in accordance with the provisions of  
42 subparagraph (a) of subdivision two of paragraph b of section 90.10 of  
43 the local finance law, as amended from time to time. Notwithstanding the  
44 foregoing, bonds, notes or other obligations issued by the authority may  
45 be outstanding in an amount greater than the amount permitted by the  
46 preceding sentence, provided that such additional amount at issuance,  
47 together with the amount of indebtedness contracted by the city of New  
48 York, shall not exceed the limit prescribed by section 104.00 of the  
49 local finance law. The authority shall have the power from time to time  
50 to refund any bonds of the authority by the issuance of new bonds wheth-

er the bonds to be refunded have or have not matured, and may issue bonds partly to refund bonds of the authority then outstanding and partly to pay the cost of any project pursuant to section twenty-seven hundred ninety-nine-ff of this title. Bonds issued by the authority shall be payable solely out of particular revenues or other moneys of the authority as may be designated in the proceedings of the authority under which the bonds shall be authorized to be issued, subject to any agreements entered into between the authority and the city, and subject to any agreements with the holders of outstanding bonds pledging any particular revenues or moneys.

§ 1-a. The New York city transitional finance authority shall issue bonds in the amount of three billion dollars (\$3,000,000,000) to pay the city of New York's share of the capital costs related to projects contained in the Metropolitan Transportation Authority 2025-2029 capital program as required under Part M of a chapter of the laws of 2025 enacting into law major components of legislation necessary to implement the state transportation, economic development and environmental conservation budget for the 2025-2026 state fiscal year, as proposed in legislative bill numbers S.3008A and A.3008A.

§ 2. This act shall take effect immediately and shall be deemed to have been in full force and effect on and after April 1, 2025.

#### PART S

Intentionally Omitted

#### PART T

Intentionally Omitted

#### PART U

Intentionally Omitted

#### PART V

Section 1. Paragraph (b) of subdivision 5 of section 50 of the civil service law, as amended by section 1 of part EE of chapter 55 of the laws of 2023, is amended to read as follows:

(b) Notwithstanding the provisions of paragraph (a) of this subdivision, the state civil service department, subject to the approval of the director of the budget, a municipal commission, subject to the approval of the governing board or body of the city or county, as the case may be, or a regional commission or personnel officer, pursuant to governmental agreement, may elect to waive application fees, or to abolish fees for specific classes of positions or types of examinations or candidates, or to establish a uniform schedule of reasonable fees different from those prescribed in paragraph (a) of this subdivision, specifying in such schedule the classes of positions or types of examinations or candidates to which such fees shall apply; provided, however, that fees shall be waived for candidates who certify to the state civil service department, a municipal commission or a regional commission that they are unemployed and primarily responsible for the support



1 of a household, or are receiving public assistance. Provided further,  
2 the state civil service department shall waive the state application fee  
3 for examinations for original appointment for all veterans. Provided  
4 further, the state civil service department shall, and a municipal  
5 commission may, subject to the approval of the governing board or body  
6 of the city or county, as the case may be, or a regional commission or  
7 personnel officer, pursuant to governmental agreement, waive application  
8 fees for all examinations held between July first, two thousand twenty-  
9 three and December thirty-first, two thousand ~~twenty-five~~  
10 twenty-seven. Notwithstanding any other provision of law, for purposes  
11 of this section, the term "veteran" shall mean a person who has served  
12 in the armed forces of the United States or the reserves thereof, or in  
13 the army national guard, air national guard, New York guard, or the New  
14 York naval militia, and who (1) has been honorably discharged or  
15 released from such service under honorable conditions, or (2) has a  
16 qualifying condition, as defined in section one of the veterans'  
17 services law, and has received a discharge other than bad conduct or  
18 dishonorable from such service, or (3) is a discharged LGBT veteran, as  
19 defined in section one of the veterans' services law, and has received a  
20 discharge other than bad conduct or dishonorable from such service. The  
21 term "armed forces" shall mean the army, navy, air force, marine corps,  
22 and coast guard.

23 § 2. Section 2 of part EE of chapter 55 of the laws of 2023, amending  
24 the civil service law relating to waiving state civil service examina-  
25 tion fees between July 1, 2023 and December 31, 2025, is amended to read  
26 as follows:

27 § 2. This act shall take effect immediately and shall expire and be  
28 deemed repealed on December 31, ~~2025~~ 2027; provided that this act  
29 shall be deemed to have been in full force and effect on and after April  
30 1, 2023.

31 § 3. This act shall take effect immediately; provided, however, that  
32 the amendments to paragraph (b) of subdivision 5 of section 50 of the  
33 civil service law made by section one of this act shall not affect the  
34 expiration of such paragraph and shall expire and be deemed repealed  
35 therewith.

## 36 PART W

37 Section 1. The state finance law is amended by adding a new section  
38 210 to read as follows:

39 § 210. Study on eliminating payroll lag. Notwithstanding any law to  
40 the contrary, the governor's office of employee relations shall conduct  
41 a study on the feasibility of eliminating the lag payroll for executive  
42 branch employees and deliver a report of its findings and recommenda-  
43 tions based on such study to the governor, the temporary president of  
44 the senate, and the speaker of the assembly on or before the first of  
45 October, two thousand twenty-five. The director of the governor's office  
46 of employee relations shall consult with the office of the state comp-  
47 troller, state agencies, and other stakeholders as needed to conduct  
48 such study which shall include, but not be limited to:

49 (a) current state systems and processes that prohibit the elimination  
50 of the lag pay;

51 (b) needed technological upgrades;

52 (c) needed legislative and regulatory changes, if any; and

53 (d) other items as the governor's office of employee relations deems  
54 necessary.

1 § 2. This act shall take effect immediately and shall expire December  
2 31, 2025 when upon such date the provisions of this act shall be deemed  
3 repealed.

4 PART X

5 Intentionally Omitted

6 PART Y

7 Intentionally Omitted

8 PART Z

9 Intentionally Omitted

10 PART AA

11 Intentionally Omitted

12 PART BB

13 Intentionally Omitted

14 PART CC

15 Intentionally Omitted

16 PART DD

17 Intentionally Omitted

18 PART EE

19 Section 1. The state comptroller is hereby authorized and directed to  
20 loan money in accordance with the provisions set forth in subdivision 5  
21 of section 4 of the state finance law to the following funds and/or  
22 accounts:

- 23 1. DOL-Child performer protection account (20401).
- 24 2. Local government records management account (20501).
- 25 3. Child health plus program account (20810).
- 26 4. EPIC premium account (20818).
- 27 5. Education - New (20901).
- 28 6. VLT - Sound basic education fund (20904).
- 29 7. Sewage treatment program management and administration fund  
30 (21000).
- 31 8. Hazardous bulk storage account (21061).
- 32 9. Utility environmental regulatory account (21064).
- 33 10. Federal grants indirect cost recovery account (21065).

- 1 11. Low level radioactive waste account (21066).
- 2 12. Recreation account (21067).
- 3 13. Public safety recovery account (21077).
- 4 14. Environmental regulatory account (21081).
- 5 15. Natural resource account (21082).
- 6 16. Mined land reclamation program account (21084).
- 7 17. Great lakes restoration initiative account (21087).
- 8 18. Environmental protection and oil spill compensation fund (21200).
- 9 19. Public transportation systems account (21401).
- 10 20. Metropolitan mass transportation (21402).
- 11 21. Operating permit program account (21451).
- 12 22. Mobile source account (21452).
- 13 23. Statewide planning and research cooperative system account
- 14 (21902).
- 15 24. New York state thruway authority account (21905).
- 16 25. Financial control board account (21911).
- 17 26. Regulation of racing account (21912).
- 18 27. State university dormitory income reimbursable account (21937).
- 19 28. Criminal justice improvement account (21945).
- 20 29. Environmental laboratory reference fee account (21959).
- 21 30. Training, management and evaluation account (21961).
- 22 31. Clinical laboratory reference system assessment account (21962).
- 23 32. Indirect cost recovery account (21978).
- 24 33. Multi-agency training account (21989).
- 25 34. Bell jar collection account (22003).
- 26 35. Industry and utility service account (22004).
- 27 36. Real property disposition account (22006).
- 28 37. Parking account (22007).
- 29 38. Courts special grants (22008).
- 30 39. Asbestos safety training program account (22009).
- 31 40. Batavia school for the blind account (22032).
- 32 41. Investment services account (22034).
- 33 42. Surplus property account (22036).
- 34 43. Financial oversight account (22039).
- 35 44. Regulation of Indian gaming account (22046).
- 36 45. Rome school for the deaf account (22053).
- 37 46. Seized assets account (22054).
- 38 47. Administrative adjudication account (22055).
- 39 48. New York City assessment account (22062).
- 40 49. Cultural education account (22063).
- 41 50. Local services account (22078).
- 42 51. DHCR mortgage servicing account (22085).
- 43 52. Housing indirect cost recovery account (22090).
- 44 53. Voting Machine Examinations account (22099).
- 45 54. DHCR-HCA application fee account (22100).
- 46 55. Low income housing monitoring account (22130).
- 47 56. Restitution account (22134).
- 48 57. Corporation administration account (22135).
- 49 58. New York State Home for Veterans in the Lower-Hudson Valley
- 50 account (22144).
- 51 59. Deferred compensation administration account (22151).
- 52 60. Rent revenue other New York City account (22156).
- 53 61. Rent revenue account (22158).
- 54 62. Transportation aviation account (22165).
- 55 63. Tax revenue arrearage account (22168).
- 56 64. New York State Campaign Finance Fund account (22211).

1 65. New York state medical indemnity fund account (22240).  
2 66. Behavioral health parity compliance fund (22246).  
3 67. Pharmacy benefit manager regulatory fund (22255).  
4 68. Virtual currency assessments account (22262).  
5 69. State university general income offset account (22654).  
6 70. Lake George park trust fund account (22751).  
7 71. Highway safety program account (23001).  
8 72. DOH drinking water program account (23102).  
9 73. NYCCC operating offset account (23151).  
10 74. Commercial gaming revenue account (23701).  
11 75. Commercial gaming regulation account (23702).  
12 76. Highway use tax administration account (23801).  
13 77. New York state secure choice administrative account (23806).  
14 78. New York state cannabis revenue fund (24800).  
15 79. Cannabis education account (24801).  
16 80. Fantasy sports administration account (24951).  
17 81. Mobile sports wagering fund (24955).  
18 82. Highway and bridge capital account (30051).  
19 83. State university residence hall rehabilitation fund (30100).  
20 84. State parks infrastructure account (30351).  
21 85. Clean water/clean air implementation fund (30500).  
22 86. Hazardous waste remedial cleanup account (31506).  
23 87. Youth facilities improvement account (31701).  
24 88. Housing assistance fund (31800).  
25 89. Housing program fund (31850).  
26 90. Highway facility purpose account (31951).  
27 91. New York racing account (32213).  
28 92. Capital miscellaneous gifts account (32214).  
29 93. Information technology capital financing account (32215).  
30 94. New York environmental protection and spill remediation account  
31 (32219).  
32 95. Department of financial services IT modernization capital account  
33 (32230).  
34 96. Mental hygiene facilities capital improvement fund (32300).  
35 97. Correctional facilities capital improvement fund (32350).  
36 98. New York State Storm Recovery Capital Fund (33000).  
37 99. OGS convention center account (50318).  
38 100. Empire Plaza Gift Shop (50327).  
39 101. Unemployment Insurance Benefit Fund, Interest Assessment Account  
40 (50651).  
41 102. Centralized services fund (55000).  
42 103. Archives records management account (55052).  
43 104. Federal single audit account (55053).  
44 105. Civil service administration account (55055).  
45 106. Civil service EHS occupational health program account (55056).  
46 107. Banking services account (55057).  
47 108. Cultural resources survey account (55058).  
48 109. Neighborhood work project account (55059).  
49 110. Automation & printing chargeback account (55060).  
50 111. OFT NYT account (55061).  
51 112. Data center account (55062).  
52 113. Intrusion detection account (55066).  
53 114. Domestic violence grant account (55067).  
54 115. Centralized technology services account (55069).  
55 116. Labor contact center account (55071).  
56 117. Human services contact center account (55072).

1 118. Tax contact center account (55073).  
2 119. Department of law civil recoveries account (55074).  
3 120. Executive direction internal audit account (55251).  
4 121. CIO Information technology centralized services account (55252).  
5 122. Health insurance internal service account (55300).  
6 123. Civil service employee benefits division administrative account  
7 (55301).  
8 124. Correctional industries revolving fund (55350).  
9 125. Employees health insurance account (60201).  
10 126. Medicaid management information system escrow fund (60900).  
11 127. Animal shelter regulation account.  
12 128. Climate initiative account.  
13 129. Employers Assessment account.  
14 § 2. The state comptroller is hereby authorized and directed to loan  
15 money in accordance with the provisions set forth in subdivision 5 of  
16 section 4 of the state finance law to any account within the following  
17 federal funds, provided the comptroller has made a determination that  
18 sufficient federal grant award authority is available to reimburse such  
19 loans:  
20 1. Federal USDA-food and nutrition services fund (25000).  
21 2. Federal health and human services fund (25100).  
22 3. Federal education fund (25200).  
23 4. Federal block grant fund (25250).  
24 5. Federal miscellaneous operating grants fund (25300).  
25 6. Federal unemployment insurance administration fund (25900).  
26 7. Federal unemployment insurance occupational training fund (25950).  
27 8. Federal emergency employment act fund (26000).  
28 9. Federal capital projects fund (31350).  
29 § 3. Notwithstanding any law to the contrary, and in accordance with  
30 section 4 of the state finance law, the comptroller is hereby authorized  
31 and directed to transfer, upon request of the director of the budget, on  
32 or before March 31, 2026, up to the unencumbered balance or the follow-  
33 ing amounts:  
34 Economic Development and Public Authorities:  
35 1. An amount up to the unencumbered balance from the miscellaneous  
36 special revenue fund, underground facilities safety training account  
37 (22172), to the general fund.  
38 2. An amount up to the unencumbered balance from the miscellaneous  
39 special revenue fund, business and licensing services account (21977),  
40 to the general fund.  
41 3. \$19,810,000 from the miscellaneous special revenue fund, code  
42 enforcement account (21904), to the general fund.  
43 4. \$3,000,000 from the general fund to the miscellaneous special  
44 revenue fund, tax revenue arrearage account (22168).  
45 Education:  
46 1. \$2,590,856,000 from the general fund to the state lottery fund,  
47 education account (20901), as reimbursement for disbursements made from  
48 such fund for supplemental aid to education pursuant to section 92-c of  
49 the state finance law that are in excess of the amounts deposited in  
50 such fund for such purposes pursuant to section 1612 of the tax law.  
51 2. \$1,135,000,000 from the general fund to the state lottery fund, VLT  
52 education account (20904), as reimbursement for disbursements made from  
53 such fund for supplemental aid to education pursuant to section 92-c of  
54 the state finance law that are in excess of the amounts deposited in  
55 such fund for such purposes pursuant to section 1612 of the tax law.

1 3. \$132,800,000 from the general fund to the New York state commercial  
2 gaming fund, commercial gaming revenue account (23701), as reimbursement  
3 for disbursements made from such fund for supplemental aid to education  
4 pursuant to section 97-nnnn of the state finance law that are in excess  
5 of the amounts deposited in such fund for purposes pursuant to section  
6 1352 of the racing, pari-mutuel wagering and breeding law.

7 4. \$1,418,000,000 from the general fund to the mobile sports wagering  
8 fund, education account (24955), as reimbursement for disbursements made  
9 from such fund for supplemental aid to education pursuant to section  
10 92-c of the state finance law that are in excess of the amounts deposit-  
11 ed in such fund for such purposes pursuant to section 1367 of the  
12 racing, pari-mutuel wagering and breeding law.

13 5. \$5,000,000 from the interactive fantasy sports fund, fantasy sports  
14 education account (24950), to the state lottery fund, education account  
15 (20901), as reimbursement for disbursements made from such fund for  
16 supplemental aid to education pursuant to section 92-c of the state  
17 finance law.

18 6. \$4,856,000 from the cannabis revenue fund cannabis education  
19 account (24801), to the state lottery fund, education account (20901),  
20 as reimbursement for disbursements made from such fund for supplemental  
21 aid to education pursuant to section 99-ii of the state finance law.

22 7. An amount up to the unencumbered balance in the fund on March 31,  
23 2025 from the charitable gifts trust fund, elementary and secondary  
24 education account (24901), to the general fund, for payment of general  
25 support for public schools pursuant to section 3609-a of the education  
26 law.

27 8. Moneys from the state lottery fund (20900) up to an amount deposit-  
28 ed in such fund pursuant to section 1612 of the tax law in excess of the  
29 current year appropriation for supplemental aid to education pursuant to  
30 section 92-c of the state finance law.

31 9. \$300,000 from the New York state local government records manage-  
32 ment improvement fund, local government records management account  
33 (20501), to the New York state archives partnership trust fund, archives  
34 partnership trust maintenance account (20351).

35 10. \$900,000 from the general fund to the miscellaneous special reven-  
36 ue fund, Batavia school for the blind account (22032).

37 11. \$900,000 from the general fund to the miscellaneous special reven-  
38 ue fund, Rome school for the deaf account (22053).

39 12. \$343,400,000 from the state university dormitory income fund  
40 (40350) to the miscellaneous special revenue fund, state university  
41 dormitory income reimbursable account (21937).

42 13. Intentionally omitted.

43 14. \$24,000,000 from any of the state education department's special  
44 revenue and internal service funds to the miscellaneous special revenue  
45 fund, indirect cost recovery account (21978).

46 15. \$4,200,000 from any of the state education department's special  
47 revenue or internal service funds to the capital projects fund (30000).

48 16. \$30,013,000 from the general fund to the miscellaneous special  
49 revenue fund, HESC-insurance premium payments account (21960).

50 17. \$312,000,000 from the state university hospitals income reimbursa-  
51 ble account (22656), and/or state university-wide hospital reimbursable  
52 account (22658), to the General Fund for the payment of SUNY Hospitals  
53 Health Insurance premiums.

54 18. \$25,000,000 from the general fund to the miscellaneous capital  
55 projects fund, state university of New York green energy loan fund.

56 Environmental Affairs:



1 1. \$16,000,000 from any of the department of environmental conserva-  
2 tion's special revenue federal funds, and/or federal capital funds, to  
3 the environmental conservation special revenue fund, federal indirect  
4 recovery account (21065).

5 2. \$5,000,000 from any of the department of environmental conserva-  
6 tion's special revenue federal funds, and/or federal capital funds, to  
7 the conservation fund (21150) or Marine Resources Account (21151) as  
8 necessary to avoid diversion of conservation funds.

9 3. \$3,000,000 from any of the office of parks, recreation and historic  
10 preservation capital projects federal funds and special revenue federal  
11 funds to the miscellaneous special revenue fund, federal grant indirect  
12 cost recovery account (22188).

13 4. \$100,000,000 from the general fund to the environmental protection  
14 fund, environmental protection fund transfer account (30451).

15 5. \$10,000,000 from the general fund to the hazardous waste remedial  
16 fund, hazardous waste cleanup account (31506).

17 6. An amount up to or equal to the cash balance within the special  
18 revenue-other waste management & cleanup account (21053) to the capital  
19 projects fund (30000) for services and capital expenses related to the  
20 management and cleanup program as put forth in section 27-1915 of the  
21 environmental conservation law.

22 7. \$1,800,000 from the miscellaneous special revenue fund, public  
23 service account (22011) to the miscellaneous special revenue fund, util-  
24 ity environmental regulatory account (21064).

25 8. \$7,000,000 from the general fund to the enterprise fund, state fair  
26 account (50051).

27 9. \$3,000,000 from the waste management & cleanup account (21053) to  
28 the general fund.

29 10. \$3,000,000 from the waste management & cleanup account (21053) to  
30 the environmental protection fund transfer account (30451).

31 11. \$14,000,000 from the general fund to the miscellaneous special  
32 revenue fund, patron services account (22163).

33 12. \$15,000,000 from the enterprise fund, golf account (50332) to the  
34 state park infrastructure fund, state park infrastructure account  
35 (30351).

36 13. \$10,000,000 from the general fund to the environmental protection  
37 and oil spill compensation fund (21203).

38 14. \$5,000,000 from the general fund to the enterprise fund, golf  
39 account (50332).

40 Family Assistance:

41 1. \$7,000,000 from any of the office of children and family services,  
42 office of temporary and disability assistance, or department of health  
43 special revenue federal funds and the general fund, in accordance with  
44 agreements with social services districts, to the miscellaneous special  
45 revenue fund, office of human resources development state match account  
46 (21967).

47 2. \$4,000,000 from any of the office of children and family services  
48 or office of temporary and disability assistance special revenue federal  
49 funds to the miscellaneous special revenue fund, family preservation and  
50 support services and family violence services account (22082).

51 3. \$18,670,000 from any of the office of children and family services,  
52 office of temporary and disability assistance, or department of health  
53 special revenue federal funds and any other miscellaneous revenues  
54 generated from the operation of office of children and family services  
55 programs to the general fund.

- 1 4. \$205,000,000 from any of the office of temporary and disability  
2 assistance or department of health special revenue funds to the general  
3 fund.
- 4 5. \$2,500,000 from any of the office of temporary and disability  
5 assistance special revenue funds to the miscellaneous special revenue  
6 fund, office of temporary and disability assistance program account  
7 (21980).
- 8 6. \$35,000,000 from any of the office of children and family services,  
9 office of temporary and disability assistance, department of labor, and  
10 department of health special revenue federal funds to the office of  
11 children and family services miscellaneous special revenue fund, multi-  
12 agency training contract account (21989).
- 13 7. \$205,000,000 from the miscellaneous special revenue fund, youth  
14 facility per diem account (22186), to the general fund.
- 15 8. \$788,000 from the general fund to the combined gifts, grants, and  
16 bequests fund, WB Hoyt Memorial account (20128).
- 17 9. \$5,000,000 from the miscellaneous special revenue fund, state  
18 central registry (22028), to the general fund.
- 19 10. \$900,000 from the general fund to the Veterans' Remembrance and  
20 Cemetery Maintenance and Operation account (20201).
- 21 11. \$5,000,000 from the general fund to the housing program fund  
22 (31850).
- 23 12. \$15,000,000 from any of the office of children and family services  
24 special revenue federal funds to the office of court administration  
25 special revenue other federal iv-e funds account.
- 26 13. \$10,000,000 from any of the office of children and family services  
27 special revenue federal funds to the office of indigent legal services  
28 special revenue other federal iv-e funds account.
- 29 General Government:
- 30 1. \$9,000,000 from the general fund to the health insurance revolving  
31 fund (55300).
- 32 2. \$292,400,000 from the health insurance reserve receipts fund  
33 (60550) to the general fund.
- 34 3. \$150,000 from the general fund to the not-for-profit revolving loan  
35 fund (20650).
- 36 4. \$150,000 from the not-for-profit revolving loan fund (20650) to the  
37 general fund.
- 38 5. \$3,000,000 from the miscellaneous special revenue fund, surplus  
39 property account (22036), to the general fund.
- 40 6. \$19,000,000 from the miscellaneous special revenue fund, revenue  
41 arrearage account (22024), to the general fund.
- 42 7. \$3,828,000 from the miscellaneous special revenue fund, revenue  
43 arrearage account (22024), to the miscellaneous special revenue fund,  
44 authority budget office account (22138).
- 45 8. \$1,000,000 from the miscellaneous special revenue fund, parking  
46 account (22007), to the general fund, for the purpose of reimbursing the  
47 costs of debt service related to state parking facilities.
- 48 9. \$11,460,000 from the general fund to the agencies internal service  
49 fund, central technology services account (55069), for the purpose of  
50 enterprise technology projects.
- 51 10. \$10,000,000 from the general fund to the agencies internal service  
52 fund, state data center account (55062).
- 53 11. \$12,000,000 from the miscellaneous special revenue fund, parking  
54 account (22007), to the centralized services, building support services  
55 account (55018).

1 12. \$33,000,000 from the general fund to the internal service fund,  
2 business services center account (55022).  
3 13. \$9,500,000 from the general fund to the internal service fund,  
4 building support services account (55018).  
5 14. \$1,500,000 from the combined expendable trust fund, plaza special  
6 events account (20120), to the general fund.  
7 15. \$50,000,000 from the New York State cannabis revenue fund (24800)  
8 to the general fund.  
9 16. A transfer from the general fund to the miscellaneous special  
10 revenue fund, New York State Campaign Finance Fund Account (22211), up  
11 to an amount equal to total reimbursements due to qualified candidates.  
12 17. \$6,000,000 from the miscellaneous special revenue fund, standards  
13 and purchasing account (22019), to the general fund.  
14 18. \$12,400,000 from the banking department special revenue fund  
15 (21970) funded by the assessment to defray operating expenses authorized  
16 by section 206 of the financial services law to the IT Modernization  
17 Capital Fund.  
18 19. \$12,400,000 from the insurance department special revenue fund  
19 (21994) funded by the assessment to defray operating expenses authorized  
20 by section 206 of the financial services law to the IT Modernization  
21 Capital Fund.  
22 20. \$1,550,000 from the pharmacy benefits bureau special revenue fund  
23 (22255) funded by the assessment to defray operating expenses authorized  
24 by section 206 of the financial services law, to the IT Modernization  
25 Capital Fund.  
26 21. \$4,650,000 from the virtual currency special revenue fund (22262)  
27 funded by the assessment to defray operating expenses authorized by  
28 section 206 of the financial services law, to the IT Modernization Capital  
29 Fund.  
30 Health:  
31 1. A transfer from the general fund to the combined gifts, grants and  
32 bequests fund, breast cancer research and education account (20155), up  
33 to an amount equal to the monies collected and deposited into that  
34 account in the previous fiscal year.  
35 2. A transfer from the general fund to the combined gifts, grants and  
36 bequests fund, prostate cancer research, detection, and education  
37 account (20183), up to an amount equal to the moneys collected and  
38 deposited into that account in the previous fiscal year.  
39 3. A transfer from the general fund to the combined gifts, grants and  
40 bequests fund, Alzheimer's disease research and assistance account  
41 (20143), up to an amount equal to the moneys collected and deposited  
42 into that account in the previous fiscal year.  
43 4. \$3,600,000 from the miscellaneous special revenue fund, certificate  
44 of need account (21920), to the miscellaneous capital projects fund,  
45 healthcare IT capital subfund (32216).  
46 5. \$4,000,000 from the miscellaneous special revenue fund, vital  
47 health records account (22103), to the miscellaneous capital projects  
48 fund, healthcare IT capital subfund (32216).  
49 6. \$6,000,000 from the miscellaneous special revenue fund, profes-  
50 sional medical conduct account (22088), to the miscellaneous capital  
51 projects fund, healthcare IT capital subfund (32216).  
52 7. \$127,000,000 from the HCRA resources fund (20800) to the capital  
53 projects fund (30000).  
54 8. \$6,550,000 from the general fund to the medical cannabis trust  
55 fund, health operation and oversight account (23755).

9. An amount up to the unencumbered balance from the charitable gifts trust fund, health charitable account (24900), to the general fund, for payment of general support for primary, preventive, and inpatient health care, dental and vision care, hunger prevention and nutritional assistance, and other services for New York state residents with the overall goal of ensuring that New York state residents have access to quality health care and other related services.

10. \$500,000 from the miscellaneous special revenue fund, New York State cannabis revenue fund (24800), to the miscellaneous special revenue fund, environmental laboratory fee account (21959).

11. An amount up to the unencumbered balance from the public health emergency charitable gifts trust fund (23816), to the general fund, for payment of goods and services necessary to respond to a public health disaster emergency or to assist or aid in responding to such a disaster.

12. \$1,000,000,000 from the general fund to the health care transformation fund (24850).

13. \$2,590,000 from the miscellaneous special revenue fund, patient safety center account (22139), to the general fund.

14. \$1,000,000 from the miscellaneous special revenue fund, nursing home receivership account (21925), to the general fund.

15. \$130,000 from the miscellaneous special revenue fund, quality of care account (21915), to the general fund.

16. \$2,200,000 from the miscellaneous special revenue fund, adult home quality enhancement account (22091), to the general fund.

17. \$17,283,000 from the general fund, to the miscellaneous special revenue fund, helen hayes hospital account (22140).

18. \$3,672,000 from the general fund, to the miscellaneous special revenue fund, New York city veterans' home account (22141).

19. \$2,731,000 from the general fund, to the miscellaneous special revenue fund, New York state home for veterans' and their dependents at oxford account (22142).

20. \$1,455,000 from the general fund, to the miscellaneous special revenue fund, western New York veterans' home account (22143).

21. \$4,683,000 from the general fund, to the miscellaneous special revenue fund, New York state for veterans in the lower-hudson valley account (22144).

22. \$350,000,000 from the general fund, to the miscellaneous special revenue fund, healthcare stability fund account (22267).

23. \$5,000,000 from the general fund to the occupational health clinics account (22177).

24. \$88,000 from the miscellaneous special revenue fund, veterans home assistance account (20208), to the miscellaneous special revenue fund, New York city veterans' home account (22141).

25. \$88,000 from the miscellaneous special revenue fund, veterans home assistance account (20208), to the miscellaneous special revenue fund, New York state home for veterans' and their dependents at oxford account (22142).

26. \$88,000 from the miscellaneous special revenue fund, veterans assistance account (20208), to the miscellaneous special revenue fund, western New York veterans' home account (22143).

27. \$88,000 from the miscellaneous special revenue fund, veterans assistance account (20208), to the miscellaneous special revenue fund, New York state for veterans in the lower-Hudson valley account (22144).

28. \$88,000 from the miscellaneous special revenue fund, veterans assistance account (20208), to the state university income fund, Long Island Veterans' Home Account (22652).

## 1 Labor:

2 1. \$600,000 from the miscellaneous special revenue fund, DOL fee and  
3 penalty account (21923), to the child performer's protection fund, child  
4 performer protection account (20401).

5 2. \$11,700,000 from the unemployment insurance interest and penalty  
6 fund, unemployment insurance special interest and penalty account  
7 (23601), to the general fund.

8 3. \$50,000,000 from the DOL fee and penalty account (21923), unemploy-  
9 ment insurance special interest and penalty account (23601), and public  
10 work enforcement account (21998), to the general fund.

11 4. \$850,000 from the miscellaneous special revenue fund, DOL elevator  
12 safety program fund (22252) to the miscellaneous special revenue fund,  
13 DOL fee and penalty account (21923).

14 5. \$22,000,000 from the miscellaneous special revenue fund, Interest  
15 and Penalty Account (23601), to the Training and Education Program on  
16 Occupation Safety and Health Fund, OSHA Training and Education Account  
17 (21251).

18 6. \$1,000,000 from the miscellaneous special revenue fund, Public Work  
19 Enforcement account (21998), to the Training and Education Program on  
20 Occupation Safety and Health Fund, OSHA Training and Education Account  
21 (21251).

22 7. \$7,000,000,000 from the general fund to the enterprise fund, unem-  
23 ployment insurance benefit fund, interest assessment account (50651).

24 8. \$4,000,000 from the miscellaneous special revenue fund, Public Work  
25 Enforcement account (21998), to the Training and Education Program on  
26 Occupational Safety and Health Fund, OSHA Inspection Account (21252).

## 27 Mental Hygiene:

28 1. \$2,000,000 from the general fund, to the mental hygiene facilities  
29 capital improvement fund (32300).

30 2. \$20,000,000 from the opioid settlement fund (23817) to the miscel-  
31 laneous capital projects fund, opioid settlement capital account  
32 (32200).

33 3. \$20,000,000 from the miscellaneous capital projects fund, opioid  
34 settlement capital account (32200) to the opioid settlement fund  
35 (23817).

## 36 Public Protection:

37 1. \$2,587,000 from the general fund to the miscellaneous special  
38 revenue fund, recruitment incentive account (22171).

39 2. \$23,773,000 from the general fund to the correctional industries  
40 revolving fund, correctional industries internal service account  
41 (55350).

42 3. \$2,000,000,000 from any of the division of homeland security and  
43 emergency services special revenue federal funds to the general fund.

44 4. \$115,420,000 from the state police motor vehicle law enforcement  
45 and motor vehicle theft and insurance fraud prevention fund, state  
46 police motor vehicle enforcement account (22802), to the general fund  
47 for state operation expenses of the division of state police.

48 5. \$138,272,000 from the general fund to the correctional facilities  
49 capital improvement fund (32350).

50 6. \$5,000,000 from the general fund to the dedicated highway and  
51 bridge trust fund (30050) for the purpose of work zone safety activities  
52 provided by the division of state police for the department of transpor-  
53 tation.

54 7. \$10,000,000 from the miscellaneous special revenue fund, statewide  
55 public safety communications account (22123), to the capital projects  
56 fund (30000).

1 8. \$9,830,000 from the miscellaneous special revenue fund, legal  
2 services assistance account (22096), to the general fund.

3 9. \$1,000,000 from the general fund to the agencies internal service  
4 fund, neighborhood work project account (55059).

5 10. \$7,980,000 from the miscellaneous special revenue fund, finger-  
6 print identification & technology account (21950), to the general fund.

7 11. \$1,100,000 from the state police motor vehicle law enforcement and  
8 motor vehicle theft and insurance fraud prevention fund, motor vehicle  
9 theft and insurance fraud account (22801), to the general fund.

10 12. \$38,938,000 from the general fund to the miscellaneous special  
11 revenue fund, criminal justice improvement account (21945).

12 13. \$6,000,000 from the general fund to the miscellaneous special  
13 revenue fund, hazard mitigation revolving loan account (22266).

14 14. \$234,000,000 from the indigent legal services fund, indigent legal  
15 services account (23551) to the general fund.

16 Transportation:

17 1. \$20,000,000 from the general fund to the mass transportation oper-  
18 ating assistance fund, public transportation systems operating assist-  
19 ance account (21401), of which \$12,000,000 constitutes the base need for  
20 operations.

21 2. \$727,500,000 from the general fund to the dedicated highway and  
22 bridge trust fund (30050).

23 3. \$244,250,000 from the general fund to the MTA financial assistance  
24 fund, mobility tax trust account (23651).

25 4. \$477,000 from the miscellaneous special revenue fund, traffic adju-  
26 dication account (22055), to the general fund.

27 5. \$5,000,000 from the miscellaneous special revenue fund, transporta-  
28 tion regulation account (22067) to the general fund, for disbursements  
29 made from such fund for motor carrier safety that are in excess of the  
30 amounts deposited in the general fund for such purpose pursuant to  
31 section 94 of the transportation law.

32 Miscellaneous:

33 1. \$250,000,000 from the general fund to any funds or accounts for the  
34 purpose of reimbursing certain outstanding accounts receivable balances.

35 2. \$500,000,000 from the general fund to the debt reduction reserve  
36 fund (40000).

37 3. \$450,000,000 from the New York state storm recovery capital fund  
38 (33000) to the revenue bond tax fund (40152).

39 4. \$15,500,000 from the general fund, community projects account GG  
40 (10256), to the general fund, state purposes account (10050).

41 5. \$100,000,000 from any special revenue federal fund to the general  
42 fund, state purposes account (10050).

43 6. An amount up to the unencumbered balance from the special revenue  
44 federal fund, ARPA-Fiscal Recovery Fund (25546) to the general fund.

45 7. \$1,000,000,000 from the general fund to the hazardous waste cleanup  
46 account (31506), State parks infrastructure account (30351), environ-  
47 mental protection fund transfer account (30451), the correctional facil-  
48 ities capital improvement fund (32350), housing program fund (31850), or  
49 the Mental hygiene facilities capital improvement fund (32300), up to an  
50 amount equal to certain outstanding accounts receivable balances.

51 § 4. Notwithstanding any law to the contrary, and in accordance with  
52 section 4 of the state finance law, the comptroller is hereby authorized  
53 and directed to transfer, on or before March 31, 2026:

54 1. Upon request of the commissioner of environmental conservation, up  
55 to \$12,745,400 from revenues credited to any of the department of envi-  
56 ronmental conservation special revenue funds, including \$4,000,000 from



1 the environmental protection and oil spill compensation fund (21200),  
2 and \$1,834,600 from the conservation fund (21150), to the environmental  
3 conservation special revenue fund, indirect charges account (21060).

4 2. Upon request of the commissioner of agriculture and markets, up to  
5 \$3,000,000 from any special revenue fund or enterprise fund within the  
6 department of agriculture and markets to the general fund, to pay appro-  
7 priate administrative expenses.

8 3. Upon request of the commissioner of the division of housing and  
9 community renewal, up to \$6,221,000 from revenues credited to any divi-  
10 sion of housing and community renewal federal or miscellaneous special  
11 revenue fund to the miscellaneous special revenue fund, housing indirect  
12 cost recovery account (22090).

13 4. Upon request of the commissioner of the division of housing and  
14 community renewal, up to \$5,500,000 may be transferred from any miscel-  
15 laneous special revenue fund account, to any miscellaneous special  
16 revenue fund.

17 5. Upon request of the commissioner of health up to \$13,694,000 from  
18 revenues credited to any of the department of health's special revenue  
19 funds, to the miscellaneous special revenue fund, administration account  
20 (21982).

21 6. Upon the request of the attorney general, up to \$5,000,000 from  
22 revenues credited to the federal health and human services fund, federal  
23 health and human services account (25117) or the miscellaneous special  
24 revenue fund, recoveries and revenue account (22041), to the miscella-  
25 neous special revenue fund, litigation settlement and civil recovery  
26 account (22117).

27 § 5. On or before March 31, 2026, the comptroller is hereby authorized  
28 and directed to deposit earnings that would otherwise accrue to the  
29 general fund that are attributable to the operation of section 98-a of  
30 the state finance law, to the agencies internal service fund, banking  
31 services account (55057), for the purpose of meeting direct payments  
32 from such account.

33 § 6. Notwithstanding any law to the contrary, and in accordance with  
34 section 4 of the state finance law, the comptroller is hereby authorized  
35 and directed to transfer, upon request of the director of the budget and  
36 upon consultation with the state university chancellor or their desig-  
37 nee, on or before March 31, 2026, up to \$16,000,000 from the state  
38 university income fund general revenue account (22653) to the state  
39 general fund for debt service costs related to campus supported capital  
40 project costs for the NY-SUNY 2020 challenge grant program at the  
41 University at Buffalo.

42 § 7. Notwithstanding any law to the contrary, and in accordance with  
43 section 4 of the state finance law, the comptroller is hereby authorized  
44 and directed to transfer, upon request of the director of the budget and  
45 upon consultation with the state university chancellor or their desig-  
46 nee, on or before March 31, 2026, up to \$6,500,000 from the state  
47 university income fund general revenue account (22653) to the state  
48 general fund for debt service costs related to campus supported capital  
49 project costs for the NY-SUNY 2020 challenge grant program at the  
50 University at Albany.

51 § 8. Notwithstanding any law to the contrary, the state university  
52 chancellor or their designee is authorized and directed to transfer  
53 estimated tuition revenue balances from the state university collection  
54 fund (61000) to the state university income fund, state university  
55 general revenue offset account (22655) on or before March 31, 2026.

§ 8-a. Notwithstanding any law to the contrary, and in accordance with section 4 of the state finance law, the comptroller is hereby authorized and directed to transfer, upon request of the director of the budget, a total of up to \$100,000,000 from the general fund to the state university income fund, state university general revenue offset account (22655) and/or the state university income fund, state university hospitals income reimbursable account (22656) during the period July 1, 2025 through June 30, 2026 to pay costs attributable to the state university health science center at Brooklyn and/or the state university of New York hospital at Brooklyn, respectively, pursuant to a plan approved by the director of the budget.

§ 9. Notwithstanding any law to the contrary, and in accordance with section 4 of the state finance law, the comptroller is hereby authorized and directed to transfer, upon request of the director of the budget, up to \$1,523,044,500 from the general fund to the state university income fund, state university general revenue offset account (22655) during the period of July 1, 2025 through June 30, 2026 to support operations at the state university.

§ 10. Notwithstanding any law to the contrary, and in accordance with section 4 of the state finance law, the comptroller is hereby authorized and directed to transfer, upon request of the director of the budget, up to \$55,848,000 from the general fund to the state university income fund, state university general revenue offset account (22655) during the period of July 1, 2025 to June 30, 2026 for general fund operating support pursuant to subparagraph (4-b) of paragraph h of subdivision 2 of section three hundred fifty-five of the education law.

§ 11. Notwithstanding any law to the contrary, upon the direction of the director of the budget and the chancellor of the state university of New York or their designee, and in accordance with section 4 of the state finance law, the comptroller is hereby authorized and directed to transfer monies from any special revenue fund of the state university of New York to the state university of New York green energy loan fund for the discrete purposes of the state university of New York green energy loan fund and from the state university of New York green energy loan fund to any special revenue fund of the state university of New York to support such activity in an amount not to exceed \$25,000,000 from each fund for the time period of July 1 to June 30 annually.

§ 12. Notwithstanding any law to the contrary, and in accordance with section 4 of the state finance law, the comptroller is hereby authorized and directed to transfer, upon request of the state university chancellor or their designee, up to \$55,000,000 from the state university income fund, state university hospitals income reimbursable account (22656), for services and expenses of hospital operations and capital expenditures at the state university hospitals; and the state university income fund, Long Island veterans' home account (22652) to the state university capital projects fund (32400) on or before June 30, 2026.

§ 13. Notwithstanding any law to the contrary, and in accordance with section 4 of the state finance law, the comptroller, after consultation with the state university chancellor or their designee, is hereby authorized and directed to transfer moneys, in the first instance, from the state university collection fund, Stony Brook hospital collection account (61006), Brooklyn hospital collection account (61007), and Syracuse hospital collection account (61008) to the state university income fund, state university hospitals income reimbursable account (22656) in the event insufficient funds are available in the state university income fund, state university hospitals income reimbursable account

(22656) to permit the full transfer of moneys authorized for transfer, to the general fund for payment of debt service related to the SUNY hospitals. Notwithstanding any law to the contrary, the comptroller is also hereby authorized and directed, after consultation with the state university chancellor or their designee, to transfer moneys from the state university income fund to the state university income fund, state university hospitals income reimbursable account (22656) in the event insufficient funds are available in the state university income fund, state university hospitals income reimbursable account (22656) to pay hospital operating costs or to permit the full transfer of moneys authorized for transfer, to the general fund for payment of debt service related to the SUNY hospitals on or before March 31, 2026.

§ 14. Notwithstanding any law to the contrary, upon the direction of the director of the budget and the chancellor of the state university of New York or their designee, and in accordance with section 4 of the state finance law, the comptroller is hereby authorized and directed to transfer monies from the state university dormitory income fund (40350) to the state university residence hall rehabilitation fund (30100), and from the state university residence hall rehabilitation fund (30100) to the state university dormitory income fund (40350), in an amount not to exceed \$125 million from each fund.

§ 15. Notwithstanding any law to the contrary, and in accordance with section 4 of the state finance law, the comptroller is hereby authorized and directed to transfer, at the request of the director of the budget, up to \$700,000,000 from the unencumbered balance of any special revenue fund or account, agency fund or account, internal service fund or account, enterprise fund or account, or any combination of such funds and accounts, to the general fund. The amounts transferred pursuant to this authorization shall be in addition to any other transfers expressly authorized in the 2025-26 budget. Transfers from federal funds, debt service funds, capital projects funds, the community projects fund, or funds that would result in the loss of eligibility for federal benefits or federal funds pursuant to federal law, rule, or regulation as assented to in chapter 683 of the laws of 1938 and chapter 700 of the laws of 1951 are not permitted pursuant to this authorization.

§ 16. Notwithstanding any law to the contrary, and in accordance with section 4 of the state finance law, the comptroller is hereby authorized and directed to transfer, at the request of the director of the budget, up to \$100 million from any non-general fund or account, or combination of funds and accounts, to the miscellaneous special revenue fund, technology financing account (22207), the miscellaneous capital projects fund, the federal capital projects account (31350), information technology capital financing account (32215), or the centralized technology services account (55069), for the purpose of consolidating technology procurement and services. The amounts transferred to the miscellaneous special revenue fund, technology financing account (22207) pursuant to this authorization shall be equal to or less than the amount of such monies intended to support information technology costs which are attributable, according to a plan, to such account made in pursuance to an appropriation by law. Transfers to the technology financing account shall be completed from amounts collected by non-general funds or accounts pursuant to a fund deposit schedule or permanent statute, and shall be transferred to the technology financing account pursuant to a schedule agreed upon by the affected agency commissioner. Transfers from funds that would result in the loss of eligibility for federal benefits or federal funds pursuant to federal law, rule, or regulation as assent-

ed to in chapter 683 of the laws of 1938 and chapter 700 of the laws of 1951 are not permitted pursuant to this authorization.

§ 17. Notwithstanding any law to the contrary, and in accordance with section 4 of the state finance law, the comptroller is hereby authorized and directed to transfer, at the request of the director of the budget, up to \$400 million from any non-general fund or account, or combination of funds and accounts, to the general fund for the purpose of consolidating technology procurement and services. The amounts transferred pursuant to this authorization shall be equal to or less than the amount of such monies intended to support information technology costs which are attributable, according to a plan, to such account made in pursuance to an appropriation by law. Transfers to the general fund shall be completed from amounts collected by non-general funds or accounts pursuant to a fund deposit schedule. Transfers from funds that would result in the loss of eligibility for federal benefits or federal funds pursuant to federal law, rule, or regulation as assented to in chapter 683 of the laws of 1938 and chapter 700 of the laws of 1951 are not permitted pursuant to this authorization.

§ 18. Notwithstanding any provision of law to the contrary, as deemed feasible and advisable by its trustees, the power authority of the state of New York is authorized and directed to transfer to the state treasury to the credit of the general fund up to \$10,000,000 for the state fiscal year commencing April 1, 2025, the proceeds of which will be utilized to support energy-related state activities.

§ 19. Notwithstanding any provision of law to the contrary, as deemed feasible and advisable by its trustees, the power authority of the state of New York is authorized to transfer to the state treasury to the credit of the general fund up to \$25,000,000 for the state fiscal year commencing April 1, 2025, the proceeds of which will be utilized to support programs established or implemented by or within the department of labor, including but not limited to the office of just energy transition and programs for workforce training and retraining, to prepare workers for employment for work in the renewable energy field.

§ 20. Notwithstanding any provision of law, rule or regulation to the contrary, the New York state energy research and development authority is authorized and directed to contribute \$913,000 to the state treasury to the credit of the general fund on or before March 31, 2026.

§ 21. Notwithstanding any provision of law, rule or regulation to the contrary, the New York state energy research and development authority is authorized and directed to transfer five million dollars to the credit of the Environmental Protection Fund on or before March 31, 2026 from proceeds collected by the authority from the auction or sale of carbon dioxide emission allowances allocated by the department of environmental conservation.

§ 22. Section 56 of part XX of chapter 56 of the laws of 2024, amending the state finance law and other laws relating to providing for the administration of certain funds and accounts related to the 2023-2024 budget, authorizing certain payments and transfers, is amended to read as follows:

§ 56. This act shall take effect immediately and shall be deemed to have been in full force and effect on and after April 1, 2024; provided, however, that the provisions of sections one, two, three, four, five, six, seven, eight, fourteen, fifteen, sixteen, seventeen, eighteen, nineteen, twenty, twenty-one, twenty-two, ~~twenty-three,~~ and twenty-four of this act shall expire March 31, 2025; and provided, further, that sections twenty-five and twenty-six of this act shall expire March

31, 2027, when upon such dates the provisions of such sections shall be deemed repealed.

§ 23. Subdivision 5 of section 97-rrr of the state finance law, as amended by section 23 of part XX of chapter 56 of the laws of 2024, is amended to read as follows:

5. Notwithstanding the provisions of section one hundred seventy-one-a of the tax law, as separately amended by chapters four hundred eighty-one and four hundred eighty-four of the laws of nineteen hundred eighty-one, and notwithstanding the provisions of chapter ninety-four of the laws of two thousand eleven, or any other provisions of law to the contrary, during the fiscal year beginning April first, two thousand ~~[twenty-four]~~ twenty-five, the state comptroller is hereby authorized and directed to deposit to the fund created pursuant to this section from amounts collected pursuant to article twenty-two of the tax law and pursuant to a schedule submitted by the director of the budget, up to ~~[\$1,575,393,000]~~ \$1,396,911,000 as may be certified in such schedule as necessary to meet the purposes of such fund for the fiscal year beginning April first, two thousand ~~[twenty-four]~~ twenty-five.

§ 24. The opening paragraph of subdivision 3 of section 93-b of the state finance law, as amended by section 23 of part JJJ of chapter 59 of the laws of 2021, is amended to read as follows:

Notwithstanding any other provisions of law to the contrary, commencing on April first, two thousand twenty-one, and continuing through March thirty-first, two thousand ~~[twenty-five]~~ thirty, the comptroller is hereby authorized to transfer monies from the dedicated infrastructure investment fund to the general fund, and from the general fund to the dedicated infrastructure investment fund, in an amount determined by the director of the budget to the extent moneys are available in the fund; provided, however, that the comptroller is only authorized to transfer monies from the dedicated infrastructure investment fund to the general fund in the event of an economic downturn as described in paragraph (a) of this subdivision; and/or to fulfill disallowances and/or settlements related to over-payments of federal medicare and medicaid revenues in excess of one hundred million dollars from anticipated levels, as determined by the director of the budget and described in paragraph (b) of this subdivision.

§ 25. Subdivision 2 of section 8-b of the state finance law is REPEALED.

§ 26. Notwithstanding any law to the contrary, the comptroller is hereby authorized and directed to transfer, upon request of the director of the budget, on or before March 31, 2026, the following amounts from the following special revenue accounts to the capital projects fund (30000), for the purposes of reimbursement to such fund for expenses related to the maintenance and preservation of state assets:

1. \$43,000 from the miscellaneous special revenue fund, administrative program account (21982).

2. \$1,583,110 from the miscellaneous special revenue fund, helen hayes hospital account (22140).

3. \$488,220 from the miscellaneous special revenue fund, New York city veterans' home account (22141).

4. \$610,790 from the miscellaneous special revenue fund, New York state home for veterans' and their dependents at oxford account (22142).

5. \$182,310 from the miscellaneous special revenue fund, western New York veterans' home account (22143).

6. \$422,524 from the miscellaneous special revenue fund, New York state for veterans in the lower-hudson valley account (22144).

1 7. \$2,550,000 from the miscellaneous special revenue fund, patron  
2 services account (22163).

3 8. \$11,909,000 from the miscellaneous special revenue fund, state  
4 university general income reimbursable account (22653).

5 9. \$182,988,000 from the miscellaneous special revenue fund, state  
6 university revenue offset account (22655).

7 10. \$55,103,000 from the state university dormitory income fund, state  
8 university dormitory income fund (40350).

9 11. \$1,000,000 from the miscellaneous special revenue fund, litigation  
10 settlement and civil recovery account (22117).

11 § 27. Section 89-g of the state finance law is REPEALED.

12 § 28. Intentionally omitted.

13 § 29. Intentionally omitted.

14 § 30. Intentionally omitted.

15 § 31. Notwithstanding any law to the contrary, the comptroller is  
16 hereby authorized and directed to transfer, upon request of the director  
17 of the budget, on or before March 31, 2026 the following amounts from  
18 the following special revenue accounts or enterprise funds to the gener-  
19 al fund, for the purposes of offsetting principal and interest costs,  
20 incurred by the state pursuant to section 52 of part RR of chapter 56 of  
21 the laws of 2023, provided that the annual amount of the transfer shall  
22 be no more than the principal and interest that would have otherwise  
23 been due to the power authority of the state of New York, from any state  
24 agency, in a given state fiscal year. Amounts pertaining to special  
25 revenue accounts assigned to the state university of New York shall be  
26 considered interchangeable between the designated special revenue  
27 accounts as to meet the requirements of this section and section 52 of  
28 part RR of chapter 56 of the laws of 2023:

29 1. \$15,000,000 from the miscellaneous special revenue fund, state  
30 university general income reimbursable account (22653).

31 2. \$5,000,000 from state university dormitory income fund, state  
32 university dormitory income fund (40350).

33 3. \$5,000,000 from the enterprise fund, city university senior college  
34 operating fund (60851).

35 § 32. Notwithstanding any law to the contrary, the comptroller is  
36 hereby authorized to transfer, on or before March 31, 2026, up to  
37 \$25,000,000 from various state bond funds (30600 through 30690) to the  
38 general debt service fund (40150), for the purposes of redeeming or  
39 defeasing outstanding state bonds.

40 § 33. Paragraph (a) of subdivision 2 of section 47-e of the private  
41 housing finance law, as amended by section 29 of part XX of chapter 56  
42 of the laws of 2024, is amended to read as follows:

43 (a) Subject to the provisions of chapter fifty-nine of the laws of two  
44 thousand, in order to enhance and encourage the promotion of housing  
45 programs and thereby achieve the stated purposes and objectives of such  
46 housing programs, the agency shall have the power and is hereby author-  
47 ized from time to time to issue negotiable housing program bonds and  
48 notes in such principal amount as shall be necessary to provide suffi-  
49 cient funds for the repayment of amounts disbursed (and not previously  
50 reimbursed) pursuant to law or any prior year making capital appropri-  
51 ations or reappropriations for the purposes of the housing program;  
52 provided, however, that the agency may issue such bonds and notes in an  
53 aggregate principal amount not exceeding ~~fourteen billion five hundred~~  
54 ~~twenty-six million eighty-nine thousand dollars \$14,526,089,000, plus a~~  
55 ~~principal amount of bonds issued to fund the debt service reserve fund~~  
56 ~~in accordance with the debt service reserve fund requirement established~~



~~by the agency and to fund any other reserves that the agency reasonably deems necessary for the security or marketability of such bonds and to provide for the payment of fees and other charges and expenses, including underwriters' discount, trustee and rating agency fees, bond insurance, credit enhancement and liquidity enhancement related to the issuance of such bonds and notes]~~ eighteen billion seven hundred thirty-three million nine hundred sixty-four thousand dollars \$18,733,964,000, excluding bonds issued after April first, two thousand twenty-five to (i) fund one or more debt service reserve funds, (ii) pay costs of issuance of such bonds, and (iii) refund or otherwise repay such bonds or notes previously issued, provided that nothing herein shall affect the exclusion of refunding debt issued prior to such date.

No reserve fund securing the housing program bonds shall be entitled or eligible to receive state funds apportioned or appropriated to maintain or restore such reserve fund at or to a particular level, except to the extent of any deficiency resulting directly or indirectly from a failure of the state to appropriate or pay the agreed amount under any of the contracts provided for in subdivision four of this section.

§ 34. Paragraph (b) of subdivision 1 of section 385 of the public authorities law, as amended by section 30 of part XX of chapter 56 of the laws of 2024, is amended to read as follows:

(b) The authority is hereby authorized, as additional corporate purposes thereof solely upon the request of the director of the budget: (i) to issue special emergency highway and bridge trust fund bonds and notes for a term not to exceed thirty years and to incur obligations secured by the moneys appropriated from the dedicated highway and bridge trust fund established in section eighty-nine-b of the state finance law; (ii) to make available the proceeds in accordance with instructions provided by the director of the budget from the sale of such special emergency highway and bridge trust fund bonds, notes or other obligations, net of all costs to the authority in connection therewith, for the purposes of financing all or a portion of the costs of activities for which moneys in the dedicated highway and bridge trust fund established in section eighty-nine-b of the state finance law are authorized to be utilized or for the financing of disbursements made by the state for the activities authorized pursuant to section eighty-nine-b of the state finance law; and (iii) to enter into agreements with the commissioner of transportation pursuant to section ten-e of the highway law with respect to financing for any activities authorized pursuant to section eighty-nine-b of the state finance law, or agreements with the commissioner of transportation pursuant to sections ten-f and ten-g of the highway law in connection with activities on state highways pursuant to these sections, and (iv) to enter into service contracts, contracts, agreements, deeds and leases with the director of the budget or the commissioner of transportation and project sponsors and others to provide for the financing by the authority of activities authorized pursuant to section eighty-nine-b of the state finance law, and each of the director of the budget and the commissioner of transportation are hereby authorized to enter into service contracts, contracts, agreements, deeds and leases with the authority, project sponsors or others to provide for such financing. The authority shall not issue any bonds or notes in an amount in excess of ~~[twenty-one billion four hundred fifty-eight million three hundred nine thousand dollars \$21,458,309,000]~~ twenty-two billion three hundred nine million two hundred ninety-four thousand dollars \$22,309,294,000, plus a principal amount of bonds or notes: (A) to fund capital reserve funds; (B) to provide capitalized



interest; and, (C) to fund other costs of issuance. In computing for the purposes of this subdivision, the aggregate amount of indebtedness evidenced by bonds and notes of the authority issued pursuant to this section, as amended by a chapter of the laws of nineteen hundred ninety-six, there shall be excluded the amount of bonds or notes issued that would constitute interest under the United States Internal Revenue Code of 1986, as amended, and the amount of indebtedness issued to refund or otherwise repay bonds or notes.

§ 35. Paragraph (c) of subdivision 14 of section 1680 of the public authorities law, as amended by section 31 of part XX of chapter 56 of the laws of 2024, is amended to read as follows:

(c) Subject to the provisions of chapter fifty-nine of the laws of two thousand, (i) the dormitory authority shall not deliver a series of bonds for city university community college facilities, except to refund or to be substituted for or in lieu of other bonds in relation to city university community college facilities pursuant to a resolution of the dormitory authority adopted before July first, nineteen hundred eighty-five or any resolution supplemental thereto, if the principal amount of bonds so to be issued when added to all principal amounts of bonds previously issued by the dormitory authority for city university community college facilities, except to refund or to be substituted in lieu of other bonds in relation to city university community college facilities will exceed the sum of four hundred twenty-five million dollars and (ii) the dormitory authority shall not deliver a series of bonds issued for city university facilities, including community college facilities, pursuant to a resolution of the dormitory authority adopted on or after July first, nineteen hundred eighty-five, except to refund or to be substituted for or in lieu of other bonds in relation to city university facilities and except for bonds issued pursuant to a resolution supplemental to a resolution of the dormitory authority adopted prior to July first, nineteen hundred eighty-five, if the principal amount of bonds so to be issued when added to the principal amount of bonds previously issued pursuant to any such resolution, except bonds issued to refund or to be substituted for or in lieu of other bonds in relation to city university facilities, will exceed [~~eleven billion seven hundred sixty-three million twenty-two thousand dollars \$11,763,022,000~~] twelve billion six hundred ninety-three million three hundred sixty-eight thousand dollars \$12,693,368,000, excluding bonds issued after April first, two thousand twenty-five to (i) fund one or more debt service reserve funds, (ii) pay costs of issuance of such bonds, and (iii) refund or otherwise repay such bonds or notes previously issued, provided that nothing herein shall affect the exclusion of refunding debt issued prior to such date. The legislature reserves the right to amend or repeal such limit, and the state of New York, the dormitory authority, the city university, and the fund are prohibited from covenanting or making any other agreements with or for the benefit of bondholders which might in any way affect such right.

§ 36. Subdivision 1 of section 1689-i of the public authorities law, as amended by section 32 of part XX of chapter 56 of the laws of 2024, is amended to read as follows:

1. The dormitory authority is authorized to issue bonds, at the request of the commissioner of education, to finance eligible library construction projects pursuant to section two hundred seventy-three-a of the education law, in amounts certified by such commissioner not to exceed a total principal amount of [~~four hundred eleven million dollars \$411,000,000~~] four hundred seventy-nine million dollars \$479,000,000.

§ 37. Paragraph (c) of subdivision 19 of section 1680 of the public authorities law, as amended by section 33 of part XX of chapter 56 of the laws of 2024, is amended to read as follows:

(c) Subject to the provisions of chapter fifty-nine of the laws of two thousand, the dormitory authority shall not issue any bonds for state university educational facilities purposes if the principal amount of bonds to be issued when added to the aggregate principal amount of bonds issued by the dormitory authority on and after July first, nineteen hundred eighty-eight for state university educational facilities will exceed ~~[eighteen billion nine hundred eighty-eight million one hundred sixty-four thousand dollars \$18,988,164,000; provided, however, that bonds issued or to be issued shall be excluded from such limitation if: (1) such bonds are issued to refund state university construction bonds and state university construction notes previously issued by the housing finance agency; or (2) such bonds are issued to refund bonds of the authority or other obligations issued for state university educational facilities purposes and the present value of the aggregate debt service on the refunding bonds does not exceed the present value of the aggregate debt service on the bonds refunded thereby; provided, further that upon certification by the director of the budget that the issuance of refunding bonds or other obligations issued between April first, nineteen hundred ninety-two and March thirty first, nineteen hundred ninety-three will generate long term economic benefits to the state, as assessed on a present value basis, such issuance will be deemed to have met the present value test noted above. For purposes of this subdivision, the present value of the aggregate debt service of the refunding bonds and the aggregate debt service of the bonds refunded, shall be calculated by utilizing the true interest cost of the refunding bonds, which shall be that rate arrived at by doubling the semi-annual interest rate (compounded semi-annually) necessary to discount the debt service payments on the refunding bonds from the payment dates thereof to the date of issue of the refunding bonds to the purchase price of the refunding bonds, including interest accrued thereon prior to the issuance thereof. The maturity of such bonds, other than bonds issued to refund outstanding bonds, shall not exceed the weighted average economic life, as certified by the state university construction fund, of the facilities in connection with which the bonds are issued, and in any case not later than the earlier of thirty years or the expiration of the term of any lease, sublease or other agreement relating thereto; provided that no note, including renewals thereof, shall mature later than five years after the date of issuance of such note]~~ twenty-one billion nine hundred thirty-eight million one hundred sixty-four thousand dollars \$21,938,164,000, excluding bonds issued after April first, two thousand twenty-five to (i) fund one or more debt service reserve funds, (ii) pay costs of issuance of such bonds, and (iii) refund or otherwise repay such bonds or notes previously issued, provided that nothing herein shall affect the exclusion of refunding debt issued prior to such date. The legislature reserves the right to amend or repeal such limit, and the state of New York, the dormitory authority, the state university of New York, and the state university construction fund are prohibited from covenanting or making any other agreements with or for the benefit of bondholders which might in any way affect such right.

§ 38. Subdivision 10-a of section 1680 of the public authorities law, as amended by section 34 of part XX of chapter 56 of the laws of 2024, is amended to read as follows:

10-a. Subject to the provisions of chapter fifty-nine of the laws of two thousand, but notwithstanding any other provision of the law to the contrary, the maximum amount of bonds and notes to be issued after March thirty-first, two thousand two, on behalf of the state, in relation to any locally sponsored community college, shall be ~~[one billion three hundred sixty-five million three hundred eight thousand dollars \$1,365,308,000]~~ one billion four hundred ninety-five million seven hundred seventy-four thousand dollars \$1,495,774,000. Such amount shall be exclusive of bonds and notes issued to fund any reserve fund or funds, costs of issuance and to refund any outstanding bonds and notes, issued on behalf of the state, relating to a locally sponsored community college.

§ 39. Paragraph b of subdivision 2 of section 9-a of section 1 of chapter 392 of the laws of 1973, constituting the New York state medical care facilities finance agency act, as amended by section 35 of part XX of chapter 56 of the laws of 2024, is amended to read as follows:

b. The agency shall have power and is hereby authorized from time to time to issue negotiable bonds and notes in conformity with applicable provisions of the uniform commercial code in such principal amount as, in the opinion of the agency, shall be necessary, after taking into account other moneys which may be available for the purpose, to provide sufficient funds to the facilities development corporation, or any successor agency, for the financing or refinancing of or for the design, construction, acquisition, reconstruction, rehabilitation or improvement of mental health services facilities pursuant to paragraph a of this subdivision, the payment of interest on mental health services improvement bonds and mental health services improvement notes issued for such purposes, the establishment of reserves to secure such bonds and notes, the cost or premium of bond insurance or the costs of any financial mechanisms which may be used to reduce the debt service that would be payable by the agency on its mental health services facilities improvement bonds and notes and all other expenditures of the agency incident to and necessary or convenient to providing the facilities development corporation, or any successor agency, with funds for the financing or refinancing of or for any such design, construction, acquisition, reconstruction, rehabilitation or improvement and for the refunding of mental hygiene improvement bonds issued pursuant to section 47-b of the private housing finance law; provided, however, that the agency shall not issue mental health services facilities improvement bonds and mental health services facilities improvement notes in an aggregate principal amount exceeding ~~[twelve billion nine hundred twenty one million seven hundred fifty six thousand dollars \$12,921,756,000, excluding mental health services facilities improvement bonds and mental health services facilities improvement notes issued to refund outstanding mental health services facilities improvement bonds and mental health services facilities improvement notes; provided, however, that upon any such refunding or repayment of mental health services facilities improvement bonds and/or mental health services facilities improvement notes the total aggregate principal amount of outstanding mental health services facilities improvement bonds and mental health facilities improvement notes may be greater than twelve billion nine hundred twenty one million seven hundred fifty six thousand dollars \$12,921,756,000, only if, except as hereinafter provided with respect to mental health services facilities bonds and mental health services facilities notes issued to refund mental hygiene improvement bonds authorized to be issued pursuant to the provisions of section 47-b of the private housing finance law, the pres-~~

~~ent value of the aggregate debt service of the refunding or repayment bonds to be issued shall not exceed the present value of the aggregate debt service of the bonds to be refunded or repaid. For purposes hereof, the present values of the aggregate debt service of the refunding or repayment bonds, notes or other obligations and of the aggregate debt service of the bonds, notes or other obligations so refunded or repaid, shall be calculated by utilizing the effective interest rate of the refunding or repayment bonds, notes or other obligations, which shall be that rate arrived at by doubling the semi-annual interest rate (compounded semi-annually) necessary to discount the debt service payments on the refunding or repayment bonds, notes or other obligations from the payment dates thereof to the date of issue of the refunding or repayment bonds, notes or other obligations and to the price bid including estimated accrued interest or proceeds received by the authority including estimated accrued interest from the sale thereof. Such bonds, other than bonds issued to refund outstanding bonds, shall be scheduled to mature over a term not to exceed the average useful life, as certified by the facilities development corporation, of the projects for which the bonds are issued, and in any case shall not exceed thirty years and the maximum maturity of notes or any renewals thereof shall not exceed five years from the date of the original issue of such notes. Notwithstanding the provisions of this section, the agency shall have the power and is hereby authorized to issue mental health services facilities improvement bonds and/or mental health services facilities improvement notes to refund outstanding mental hygiene improvement bonds authorized to be issued pursuant to the provisions of section 47 b of the private housing finance law and the amount of bonds issued or outstanding for such purposes shall not be included for purposes of determining the amount of bonds issued pursuant to this section] thirteen billion six hundred thirty-nine million five hundred fifty-four thousand dollars \$13,639,554,000, excluding bonds issued after April first, two thousand twenty-five to (i) fund one or more debt service reserve funds, (ii) pay costs of issuance of such bonds, and (iii) refund or otherwise repay such bonds or notes previously issued, provided that nothing herein shall affect the exclusion of refunding debt issued prior to such date. The director of the budget shall allocate the aggregate principal authorized to be issued by the agency among the office of mental health, office for people with developmental disabilities, and the office of addiction services and supports, in consultation with their respective commissioners to finance bondable appropriations previously approved by the legislature.~~

§ 40. Subdivision (a) of section 48 of part K of chapter 81 of the laws of 2002, relating to providing for the administration of certain funds and accounts related to the 2002-2003 budget, as amended by section 36 of part XX of chapter 56 of the laws of 2024, is amended to read as follows:

(a) Subject to the provisions of chapter 59 of the laws of 2000 but notwithstanding the provisions of section 18 of the urban development corporation act, the corporation is hereby authorized to issue bonds or notes in one or more series in an aggregate principal amount not to exceed ~~[five hundred twenty-two million five hundred thousand dollars \$522,500,000]~~ five hundred sixty million five hundred thousand dollars \$560,500,000, excluding bonds issued to fund one or more debt service reserve funds, to pay costs of issuance of such bonds, and bonds or notes issued to refund or otherwise repay such bonds or notes previously issued, for the purpose of financing capital costs related to homeland

1 security and training facilities for the division of state police, the  
2 division of military and naval affairs, and any other state agency,  
3 including the reimbursement of any disbursements made from the state  
4 capital projects fund, and is hereby authorized to issue bonds or notes  
5 in one or more series in an aggregate principal amount not to exceed  
6 ~~[one billion eight hundred fifty-five million two hundred eighty-six~~  
7 ~~thousand dollars \$1,855,286,000]~~ two billion one hundred sixty-eight  
8 million three hundred thirty-one thousand dollars \$2,168,331,000,  
9 excluding bonds issued to fund one or more debt service reserve funds,  
10 to pay costs of issuance of such bonds, and bonds or notes issued to  
11 refund or otherwise repay such bonds or notes previously issued, for the  
12 purpose of financing improvements to State office buildings and other  
13 facilities located statewide, including the reimbursement of any  
14 disbursements made from the state capital projects fund. Such bonds and  
15 notes of the corporation shall not be a debt of the state, and the state  
16 shall not be liable thereon, nor shall they be payable out of any funds  
17 other than those appropriated by the state to the corporation for debt  
18 service and related expenses pursuant to any service contracts executed  
19 pursuant to subdivision (b) of this section, and such bonds and notes  
20 shall contain on the face thereof a statement to such effect.

21 § 41. Subdivision 1 of section 47 of section 1 of chapter 174 of the  
22 laws of 1968, constituting the New York state urban development corpo-  
23 ration act, as amended by section 37 of part XX of chapter 56 of the  
24 laws of 2024, is amended to read as follows:

25 1. Notwithstanding the provisions of any other law to the contrary,  
26 the dormitory authority and the corporation are hereby authorized to  
27 issue bonds or notes in one or more series for the purpose of funding  
28 project costs for the office of information technology services, depart-  
29 ment of law, and other state costs associated with such capital  
30 projects. The aggregate principal amount of bonds authorized to be  
31 issued pursuant to this section shall not exceed ~~[one billion seven~~  
32 ~~hundred forty-two million seven hundred twelve thousand dollars~~  
33 ~~\$1,742,712,000]~~ one billion eight hundred seventy-eight million four  
34 hundred twelve thousand dollars \$1,878,412,000, excluding bonds issued  
35 to fund one or more debt service reserve funds, to pay costs of issuance  
36 of such bonds, and bonds or notes issued to refund or otherwise repay  
37 such bonds or notes previously issued. Such bonds and notes of the  
38 dormitory authority and the corporation shall not be a debt of the  
39 state, and the state shall not be liable thereon, nor shall they be  
40 payable out of any funds other than those appropriated by the state to  
41 the dormitory authority and the corporation for principal, interest, and  
42 related expenses pursuant to a service contract and such bonds and notes  
43 shall contain on the face thereof a statement to such effect. Except for  
44 purposes of complying with the internal revenue code, any interest  
45 income earned on bond proceeds shall only be used to pay debt service on  
46 such bonds.

47 § 42. Subdivision (b) of section 11 of chapter 329 of the laws of  
48 1991, amending the state finance law and other laws relating to the  
49 establishment of the dedicated highway and bridge trust fund, as amended  
50 by section 38 of part XX of chapter 56 of the laws of 2024, is amended  
51 to read as follows:

52 (b) Any service contract or contracts for projects authorized pursuant  
53 to sections 10-c, 10-f, 10-g and 80-b of the highway law and section  
54 14-k of the transportation law, and entered into pursuant to subdivision  
55 (a) of this section, shall provide for state commitments to provide  
56 annually to the thruway authority a sum or sums, upon such terms and



conditions as shall be deemed appropriate by the director of the budget, to fund, or fund the debt service requirements of any bonds or any obligations of the thruway authority issued to fund or to reimburse the state for funding such projects having a cost not in excess of [~~fourteen billion eight hundred forty-four million five hundred eighty-seven thousand dollars \$14,844,587,000 cumulatively by the end of fiscal year 2024-25~~] fifteen billion eight hundred seventy-two million three hundred eighty-four thousand dollars \$15,872,384,000. Such limit shall exclude bonds issued after April first, two thousand twenty-five to (i) fund one or more debt service reserve funds, (ii) pay costs of issuance of such bonds, and (iii) refund or otherwise repay such bonds or notes previously issued, provided that nothing herein shall affect the exclusion of refunding debt issued prior to such date. For purposes of this subdivision, such projects shall be deemed to include capital grants to cities, towns and villages for the reimbursement of eligible capital costs of local highway and bridge projects within such municipality, where allocations to cities, towns and villages are based on the total number of New York or United States or interstate signed touring route miles for which such municipality has capital maintenance responsibility, and where such eligible capital costs include the costs of construction and repair of highways, bridges, highway-railroad crossings, and other transportation facilities for projects with a service life of ten years or more.

§ 43. Subdivision 1 of section 53 of section 1 of chapter 174 of the laws of 1968, constituting the New York state urban development corporation act, as amended by section 39 of part XX of chapter 56 of the laws of 2024, is amended to read as follows:

1. Notwithstanding the provisions of any other law to the contrary, the dormitory authority and the urban development corporation are hereby authorized to issue bonds or notes in one or more series for the purpose of funding project costs for the acquisition of equipment, including but not limited to the creation or modernization of information technology systems and related research and development equipment, health and safety equipment, heavy equipment and machinery, the creation or improvement of security systems, and laboratory equipment and other state costs associated with such capital projects. The aggregate principal amount of bonds authorized to be issued pursuant to this section shall not exceed [~~five hundred ninety-three million dollars \$593,000,000~~] six hundred ninety-three million dollars \$693,000,000, excluding bonds issued to fund one or more debt service reserve funds, to pay costs of issuance of such bonds, and bonds or notes issued to refund or otherwise repay such bonds or notes previously issued. Such bonds and notes of the dormitory authority and the urban development corporation shall not be a debt of the state, and the state shall not be liable thereon, nor shall they be payable out of any funds other than those appropriated by the state to the dormitory authority and the urban development corporation for principal, interest, and related expenses pursuant to a service contract and such bonds and notes shall contain on the face thereof a statement to such effect. Except for purposes of complying with the internal revenue code, any interest income earned on bond proceeds shall only be used to pay debt service on such bonds.

§ 44. Subdivision 3 of section 1285-p of the public authorities law, as amended by section 40 of part XX of chapter 56 of the laws of 2024, is amended to read as follows:

3. The maximum amount of bonds that may be issued for the purpose of financing environmental infrastructure projects authorized by this

1 section shall be [~~ten billion eight hundred sixty six million five~~  
2 ~~hundred sixty thousand dollars \$10,866,560,000~~] thirteen billion five  
3 hundred nine million one hundred sixty thousand dollars \$13,509,160,000,  
4 exclusive of bonds issued to fund any debt service reserve funds, pay  
5 costs of issuance of such bonds, and bonds or notes issued to refund or  
6 otherwise repay bonds or notes previously issued. Such bonds and notes  
7 of the corporation shall not be a debt of the state, and the state shall  
8 not be liable thereon, nor shall they be payable out of any funds other  
9 than those appropriated by the state to the corporation for debt service  
10 and related expenses pursuant to any service contracts executed pursuant  
11 to subdivision one of this section, and such bonds and notes shall  
12 contain on the face thereof a statement to such effect.

13 § 45. Subdivision 1 and paragraph (a) of subdivision 2 of section 17  
14 of part D of chapter 389 of the laws of 1997, relating to the financing  
15 of the correctional facilities improvement fund and the youth facility  
16 improvement fund, subdivision 1 as amended by section 41 of part XX of  
17 chapter 56 of the laws of 2024, and paragraph (a) of subdivision 2 as  
18 amended by section 20 of part P2 of chapter 62 of the laws of 2003, are  
19 amended to read as follows:

20 1. Subject to the provisions of chapter 59 of the laws of 2000, but  
21 notwithstanding the provisions of section 18 of section 1 of chapter 174  
22 of the laws of 1968, the New York state urban development corporation is  
23 hereby authorized to issue bonds, notes and other obligations in an  
24 aggregate principal amount not to exceed [~~one billion sixty six million~~  
25 ~~seven hundred fifty five thousand dollars \$1,066,755,000, which~~] one  
26 billion two hundred forty-seven million seven hundred fifty-five thou-  
27 sand dollars \$1,247,755,000, excluding bonds issued after April first,  
28 two thousand twenty-five to (a) fund one or more debt service reserve  
29 funds, (b) to pay costs of issuance of such bonds, and (c) refund or  
30 otherwise repay such bonds or notes previously issued, provided that  
31 nothing herein shall affect the exclusion of refunding debt issued prior  
32 to such date. Which authorization increases the aggregate principal  
33 amount of bonds, notes and other obligations authorized by section 40 of  
34 chapter 309 of the laws of 1996, and shall include all bonds, notes and  
35 other obligations issued pursuant to chapter 211 of the laws of 1990, as  
36 amended or supplemented. The proceeds of such bonds, notes or other  
37 obligations shall be paid to the state, for deposit in the youth facili-  
38 ties improvement fund or the capital projects fund, to pay for all or  
39 any portion of the amount or amounts paid by the state from appropri-  
40 ations or reappropriations made to the office of children and family  
41 services from the youth facilities improvement fund or the capital  
42 projects fund for capital projects. [~~The aggregate amount of bonds,~~  
43 ~~notes and other obligations authorized to be issued pursuant to this~~  
44 ~~section shall exclude bonds, notes or other obligations issued to refund~~  
45 ~~or otherwise repay bonds, notes or other obligations theretofore issued,~~  
46 ~~the proceeds of which were paid to the state for all or a portion of the~~  
47 ~~amounts expended by the state from appropriations or reappropriations~~  
48 ~~made to the office of children and family services; provided, however,~~  
49 ~~that upon any such refunding or repayment the total aggregate principal~~  
50 ~~amount of outstanding bonds, notes or other obligations may be greater~~  
51 ~~than one billion sixty six million seven hundred fifty five thousand~~  
52 ~~dollars \$1,066,755,000, only if the present value of the aggregate debt~~  
53 ~~service of the refunding or repayment bonds, notes or other obligations~~  
54 ~~to be issued shall not exceed the present value of the aggregate debt~~  
55 ~~service of the bonds, notes or other obligations so to be refunded or~~  
56 ~~repaid. For the purposes hereof, the present value of the aggregate debt~~



~~service of the refunding or repayment bonds, notes or other obligations and of the aggregate debt service of the bonds, notes or other obligations so refunded or repaid, shall be calculated by utilizing the effective interest rate of the refunding or repayment bonds, notes or other obligations, which shall be that rate arrived at by doubling the semi-annual interest rate (compounded semi-annually) necessary to discount the debt service payments on the refunding or repayment bonds, notes or other obligations from the payment dates thereof to the date of issue of the refunding or repayment bonds, notes or other obligations and to the price bid including estimated accrued interest or proceeds received by the corporation including estimated accrued interest from the sale thereof.]~~

(a) The New York state office of general services shall be responsible for the undertaking of studies, planning, site acquisition, design, construction, reconstruction, renovation and development of youth facilities and the Tonawanda Indian Community House, including the making of any purchases therefor, on behalf of the New York state office of children and family services.

§ 46. Subdivision 1 of section 386-b of the public authorities law, as amended by section 42 of part XX of chapter 56 of the laws of 2024, is amended to read as follows:

1. Notwithstanding any other provision of law to the contrary, the authority, the dormitory authority and the urban development corporation are hereby authorized to issue bonds or notes in one or more series for the purpose of financing peace bridge projects and capital costs of state and local highways, parkways, bridges, the New York state thruway, Indian reservation roads, and facilities, and transportation infrastructure projects including aviation projects, non-MTA mass transit projects, and rail service preservation projects, including work appurtenant and ancillary thereto. The aggregate principal amount of bonds authorized to be issued pursuant to this section shall not exceed ~~[fifteen billion two hundred forty million six hundred sixty nine thousand dollars \$15,240,669,000]~~ seventeen billion one hundred fifty-two million twenty-seven thousand dollars \$ 17,152,027,000, excluding bonds issued to fund one or more debt service reserve funds, to pay costs of issuance of such bonds, and to refund or otherwise repay such bonds or notes previously issued. Such bonds and notes of the authority, the dormitory authority and the urban development corporation shall not be a debt of the state, and the state shall not be liable thereon, nor shall they be payable out of any funds other than those appropriated by the state to the authority, the dormitory authority and the urban development corporation for principal, interest, and related expenses pursuant to a service contract and such bonds and notes shall contain on the face thereof a statement to such effect. Except for purposes of complying with the internal revenue code, any interest income earned on bond proceeds shall only be used to pay debt service on such bonds.

§ 47. Subdivision 1 of section 44 of section 1 of chapter 174 of the laws of 1968, constituting the New York state urban development corporation act, as amended by section 43 of part XX of chapter 56 of the laws of 2024, is amended to read as follows:

1. Notwithstanding the provisions of any other law to the contrary, the dormitory authority and the corporation are hereby authorized to issue bonds or notes in one or more series for the purpose of funding project costs for the regional economic development council initiative, the economic transformation program, state university of New York college for nanoscale and science engineering, projects within the city

1 of Buffalo or surrounding environs, the New York works economic develop-  
2 ment fund, projects for the retention of professional football in west-  
3 ern New York, the empire state economic development fund, the clarkson-  
4 trudeau partnership, the New York genome center, the cornell university  
5 college of veterinary medicine, the olympic regional development author-  
6 ity, projects at nano Utica, onondaga county revitalization projects,  
7 Binghamton university school of pharmacy, New York power electronics  
8 manufacturing consortium, regional infrastructure projects, high tech  
9 innovation and economic development infrastructure program, high tech-  
10 nology manufacturing projects in Chautauqua and Erie county, an indus-  
11 trial scale research and development facility in Clinton county, upstate  
12 revitalization initiative projects, downstate revitalization initiative,  
13 market New York projects, fairground buildings, equipment or facilities  
14 used to house and promote agriculture, the state fair, the empire state  
15 trail, the moynihan station development project, the Kingsbridge armory  
16 project, strategic economic development projects, the cultural, arts and  
17 public spaces fund, water infrastructure in the city of Auburn and town  
18 of Owasco, a life sciences laboratory public health initiative, not-for-  
19 profit pounds, shelters and humane societies, arts and cultural facili-  
20 ties improvement program, restore New York's communities initiative,  
21 heavy equipment, economic development and infrastructure projects,  
22 Roosevelt Island operating corporation capital projects, Lake Ontario  
23 regional projects, Pennsylvania station and other transit projects,  
24 athletic facilities for professional football in Orchard Park, New York,  
25 Rush - NY, New York AI Consortium, New York Creates UEV Tool, and other  
26 state costs associated with such projects. The aggregate principal  
27 amount of bonds authorized to be issued pursuant to this section shall  
28 not exceed [~~twenty billion eight hundred seventy-eight million one~~  
29 ~~hundred ninety-four thousand dollars \$20,878,194,000~~] twenty-three  
30 billion four hundred forty-four million nine hundred fifty-three thou-  
31 sand dollars \$23,444,953,000, excluding bonds issued to fund one or more  
32 debt service reserve funds, to pay costs of issuance of such bonds, and  
33 bonds or notes issued to refund or otherwise repay such bonds or notes  
34 previously issued. Such bonds and notes of the dormitory authority and  
35 the corporation shall not be a debt of the state, and the state shall  
36 not be liable thereon, nor shall they be payable out of any funds other  
37 than those appropriated by the state to the dormitory authority and the  
38 corporation for principal, interest, and related expenses pursuant to a  
39 service contract and such bonds and notes shall contain on the face  
40 thereof a statement to such effect. Except for purposes of complying  
41 with the internal revenue code, any interest income earned on bond  
42 proceeds shall only be used to pay debt service on such bonds.

43 § 48. Subdivision (a) of section 28 of part Y of chapter 61 of the  
44 laws of 2005, relating to providing for the administration of certain  
45 funds and accounts related to the 2005-2006 budget, as amended by  
46 section 44 of part XX of chapter 56 of the laws of 2024, is amended to  
47 read as follows:

48 (a) Subject to the provisions of chapter 59 of the laws of 2000, but  
49 notwithstanding any provisions of law to the contrary, one or more  
50 authorized issuers as defined by section 68-a of the state finance law  
51 are hereby authorized to issue bonds or notes in one or more series in  
52 an aggregate principal amount not to exceed [~~two hundred ninety-seven~~  
53 ~~million dollars \$297,000,000~~] three hundred ninety-seven million dollars  
54 \$397,000,000, excluding bonds issued to finance one or more debt service  
55 reserve funds, to pay costs of issuance of such bonds, and bonds or  
56 notes issued to refund or otherwise repay such bonds or notes previously

1 issued, for the purpose of financing capital projects for public  
2 protection facilities in the Division of Military and Naval Affairs,  
3 debt service and leases; and to reimburse the state general fund for  
4 disbursements made therefor. Such bonds and notes of such authorized  
5 issuer shall not be a debt of the state, and the state shall not be  
6 liable thereon, nor shall they be payable out of any funds other than  
7 those appropriated by the state to such authorized issuer for debt  
8 service and related expenses pursuant to any service contract executed  
9 pursuant to subdivision (b) of this section and such bonds and notes  
10 shall contain on the face thereof a statement to such effect. Except for  
11 purposes of complying with the internal revenue code, any interest  
12 income earned on bond proceeds shall only be used to pay debt service on  
13 such bonds.

14 § 49. Subdivision 1 of section 50 of section 1 of chapter 174 of the  
15 laws of 1968, constituting the New York state urban development corpo-  
16 ration act, as amended by section 45 of part XX of chapter 56 of the  
17 laws of 2024, is amended to read as follows:

18 1. Notwithstanding the provisions of any other law to the contrary,  
19 the dormitory authority and the urban development corporation are hereby  
20 authorized to issue bonds or notes in one or more series for the purpose  
21 of funding project costs undertaken by or on behalf of the state educa-  
22 tion department, special act school districts, state-supported schools  
23 for the blind and deaf, approved private special education schools,  
24 non-public schools, community centers, day care facilities, residential  
25 camps, day camps, Native American Indian Nation schools, and other state  
26 costs associated with such capital projects. The aggregate principal  
27 amount of bonds authorized to be issued pursuant to this section shall  
28 not exceed [~~three hundred ninety six million eight hundred ninety eight~~  
29 ~~thousand dollars \$396,898,000~~] seven hundred one million eight hundred  
30 ninety-seven thousand dollars \$701,897,000, excluding bonds issued to  
31 fund one or more debt service reserve funds, to pay costs of issuance of  
32 such bonds, and bonds or notes issued to refund or otherwise repay such  
33 bonds or notes previously issued. Such bonds and notes of the dormitory  
34 authority and the urban development corporation shall not be a debt of  
35 the state, and the state shall not be liable thereon, nor shall they be  
36 payable out of any funds other than those appropriated by the state to  
37 the dormitory authority and the urban development corporation for prin-  
38 cipal, interest, and related expenses pursuant to a service contract and  
39 such bonds and notes shall contain on the face thereof a statement to  
40 such effect. Except for purposes of complying with the internal revenue  
41 code, any interest income earned on bond proceeds shall only be used to  
42 pay debt service on such bonds.

43 § 50. Subdivision 1 of section 1680-k of the public authorities law,  
44 as amended by section 46 of part XX of chapter 56 of the laws of 2024,  
45 is amended to read as follows:

46 1. Subject to the provisions of chapter fifty-nine of the laws of two  
47 thousand, but notwithstanding any provisions of law to the contrary, the  
48 dormitory authority is hereby authorized to issue bonds or notes in one  
49 or more series in an aggregate principal amount not to exceed [~~forty-one~~  
50 ~~million sixty thousand dollars \$41,060,000~~] forty-one million one  
51 hundred seventy-five thousand dollars \$41,175,000, excluding bonds  
52 issued to finance one or more debt service reserve funds, to pay costs  
53 of issuance of such bonds, and bonds or notes issued to refund or other-  
54 wise repay such bonds or notes previously issued, for the purpose of  
55 financing the construction of the New York state agriculture and markets  
56 food laboratory. Eligible project costs may include, but not be limited

1 to the cost of design, financing, site investigations, site acquisition  
2 and preparation, demolition, construction, rehabilitation, acquisition  
3 of machinery and equipment, and infrastructure improvements. Such bonds  
4 and notes of such authorized issuers shall not be a debt of the state,  
5 and the state shall not be liable thereon, nor shall they be payable out  
6 of any funds other than those appropriated by the state to such author-  
7 ized issuers for debt service and related expenses pursuant to any  
8 service contract executed pursuant to subdivision two of this section  
9 and such bonds and notes shall contain on the face thereof a statement  
10 to such effect. Except for purposes of complying with the internal  
11 revenue code, any interest income earned on bond proceeds shall only be  
12 used to pay debt service on such bonds.

13 § 51. Subdivision 1 of section 1680-r of the public authorities law,  
14 as amended by section 46 of part PP of chapter 56 of the laws of 2023,  
15 is amended to read as follows:

16 1. Notwithstanding the provisions of any other law to the contrary,  
17 the dormitory authority and the urban development corporation are hereby  
18 authorized to issue bonds or notes in one or more series for the purpose  
19 of funding project costs for the capital restructuring financing program  
20 for health care and related facilities licensed pursuant to the public  
21 health law or the mental hygiene law and other state costs associated  
22 with such capital projects, the health care facility transformation  
23 programs, the essential health care provider program, and other health  
24 care capital project costs. The aggregate principal amount of bonds  
25 authorized to be issued pursuant to this section shall not exceed [~~five~~  
26 ~~billion one hundred fifty three million dollars \$5,153,000,000~~] six  
27 billion one hundred sixty-eight million dollars \$6,168,000,000, exclud-  
28 ing bonds issued to fund one or more debt service reserve funds, to pay  
29 costs of issuance of such bonds, and bonds or notes issued to refund or  
30 otherwise repay such bonds or notes previously issued. Such bonds and  
31 notes of the dormitory authority and the urban development corporation  
32 shall not be a debt of the state, and the state shall not be liable  
33 thereon, nor shall they be payable out of any funds other than those  
34 appropriated by the state to the dormitory authority and the urban  
35 development corporation for principal, interest, and related expenses  
36 pursuant to a service contract and such bonds and notes shall contain on  
37 the face thereof a statement to such effect. Except for purposes of  
38 complying with the internal revenue code, any interest income earned on  
39 bond proceeds shall only be used to pay debt service on such bonds.

40 § 52. Subdivision 1 of section 386-a of the public authorities law, as  
41 amended by section 55 of part XX of chapter 56 of the laws of 2024, is  
42 amended to read as follows:

43 1. Notwithstanding any other provision of law to the contrary, the  
44 authority, the dormitory authority and the urban development corporation  
45 are hereby authorized to issue bonds or notes in one or more series for  
46 the purpose of assisting the metropolitan transportation authority in  
47 the financing of transportation facilities as defined in subdivision  
48 seventeen of section twelve hundred sixty-one of this chapter or other  
49 capital projects. The aggregate principal amount of bonds authorized to  
50 be issued pursuant to this section shall not exceed [~~twelve billion five~~  
51 ~~hundred fifteen million eight hundred fifty six thousand dollars~~  
52 ~~\$12,515,856,000~~] fifteen billion five hundred fifteen million eight  
53 hundred fifty-six thousand dollars \$15,515,856,000, excluding bonds  
54 issued to fund one or more debt service reserve funds, to pay costs of  
55 issuance of such bonds, and to refund or otherwise repay such bonds or  
56 notes previously issued. Such bonds and notes of the authority, the

1 dormitory authority and the urban development corporation shall not be a  
2 debt of the state, and the state shall not be liable thereon, nor shall  
3 they be payable out of any funds other than those appropriated by the  
4 state to the authority, the dormitory authority and the urban develop-  
5 ment corporation for principal, interest, and related expenses pursuant  
6 to a service contract and such bonds and notes shall contain on the face  
7 thereof a statement to such effect. Except for purposes of complying  
8 with the internal revenue code, any interest income earned on bond  
9 proceeds shall only be used to pay debt service on such bonds. Notwith-  
10 standing any other provision of law to the contrary, including the limi-  
11 tations contained in subdivision four of section sixty-seven-b of the  
12 state finance law, (A) any bonds and notes issued prior to April first,  
13 two thousand twenty-seven pursuant to this section may be issued with a  
14 maximum maturity of fifty years, and (B) any bonds issued to refund such  
15 bonds and notes may be issued with a maximum maturity of fifty years  
16 from the respective date of original issuance of such bonds and notes.

17 § 53. Subdivision (a) of section 27 of part Y of chapter 61 of the  
18 laws of 2005, relating to providing for the administration of certain  
19 funds and accounts related to the 2005-2006 budget, as amended by  
20 section 28 of part PP of chapter 56 of the laws of 2023, is amended to  
21 read as follows:

22 (a) Subject to the provisions of chapter 59 of the laws of 2000, but  
23 notwithstanding any provisions of law to the contrary, the urban devel-  
24 opment corporation is hereby authorized to issue bonds or notes in one  
25 or more series in an aggregate principal amount not to exceed [~~five~~  
26 ~~hundred thirty eight million one hundred thousand dollars \$538,100,000~~]  
27 five hundred fifty million one hundred thousand dollars \$550,100,000,  
28 excluding bonds issued to finance one or more debt service reserve  
29 funds, to pay costs of issuance of such bonds, and bonds or notes issued  
30 to refund or otherwise repay such bonds or notes previously issued, for  
31 the purpose of financing capital projects including IT initiatives for  
32 the division of state police, debt service and leases; and to reimburse  
33 the state general fund for disbursements made therefor. Such bonds and  
34 notes of such authorized issuer shall not be a debt of the state, and  
35 the state shall not be liable thereon, nor shall they be payable out of  
36 any funds other than those appropriated by the state to such authorized  
37 issuer for debt service and related expenses pursuant to any service  
38 contract executed pursuant to subdivision (b) of this section and such  
39 bonds and notes shall contain on the face thereof a statement to such  
40 effect. Except for purposes of complying with the internal revenue code,  
41 any interest income earned on bond proceeds shall only be used to pay  
42 debt service on such bonds.

43 § 54. Intentionally omitted.

44 § 55. Subdivision 1 of section 16 of part D of chapter 389 of the laws  
45 of 1997, relating to the financing of the correctional facilities  
46 improvement fund and the youth facility improvement fund, as amended by  
47 section 28 of part XX of chapter 56 of the laws of 2024, is amended to  
48 read as follows:

49 1. Subject to the provisions of chapter 59 of the laws of 2000, but  
50 notwithstanding the provisions of section 18 of section 1 of chapter 174  
51 of the laws of 1968, the New York state urban development corporation is  
52 hereby authorized to issue bonds, notes and other obligations in an  
53 aggregate principal amount not to exceed [~~ten billion two hundred nine~~  
54 ~~ty nine million three hundred fifty nine thousand dollars~~  
55 ~~\$10,299,359,000, and shall include all bonds, notes and other obli-~~  
56 ~~gations issued pursuant to chapter 56 of the laws of 1983, as amended or~~



~~supplemented. The proceeds of such bonds, notes or other obligations shall be paid to the state, for deposit in the correctional facilities capital improvement fund to pay for all or any portion of the amount or amounts paid by the state from appropriations or reappropriations made to the department of corrections and community supervision from the correctional facilities capital improvement fund for capital projects. The aggregate amount of bonds, notes or other obligations authorized to be issued pursuant to this section shall exclude bonds, notes or other obligations issued to refund or otherwise repay bonds, notes or other obligations theretofore issued, the proceeds of which were paid to the state for all or a portion of the amounts expended by the state from appropriations or reappropriations made to the department of corrections and community supervision; provided, however, that upon any such refunding or repayment the total aggregate principal amount of outstanding bonds, notes or other obligations may be greater than ten billion two hundred ninety nine million three hundred fifty nine thousand dollars \$10,299,359,000, only if the present value of the aggregate debt service of the refunding or repayment bonds, notes or other obligations to be issued shall not exceed the present value of the aggregate debt service of the bonds, notes or other obligations so to be refunded or repaid. For the purposes hereof, the present value of the aggregate debt service of the refunding or repayment bonds, notes or other obligations and of the aggregate debt service of the bonds, notes or other obligations so refunded or repaid, shall be calculated by utilizing the effective interest rate of the refunding or repayment bonds, notes or other obligations, which shall be that rate arrived at by doubling the semi-annual interest rate (compounded semi-annually) necessary to discount the debt service payments on the refunding or repayment bonds, notes or other obligations from the payment dates thereof to the date of issue of the refunding or repayment bonds, notes or other obligations and to the price bid including estimated accrued interest or proceeds received by the corporation including estimated accrued interest from the sale thereof]~~ eleven billion one hundred forty-seven million three hundred fifty-nine thousand dollars \$11,147,359,000, excluding bonds issued after April first, two thousand twenty-five to (i) fund one or more debt service reserve funds, (ii) pay costs of issuance of such bonds, and (iii) refund or otherwise repay such bonds or notes previously issued, provided that nothing herein shall affect the exclusion of refunding debt issued prior to such date.

§ 55-a. 1. Notwithstanding the provisions of any other law to the contrary, the dormitory authority and the urban development corporation are hereby authorized to issue bonds or notes in one or more series for the purpose of funding project costs for the nonprofit infrastructure capital investment program and other state costs associated with such capital projects. The aggregate principal amount of bonds authorized to be issued pursuant to this section shall not exceed two hundred twenty million dollars \$220,000,000, excluding bonds issued to fund one or more debt service reserve funds, to pay costs of issuance of such bonds, and bonds or notes issued to refund or otherwise repay such bonds or notes previously issued. Such bonds and notes of the dormitory authority and the urban development corporation shall not be a debt of the state, and the state shall not be liable thereon, nor shall they be payable out of any funds other than those appropriated by the state to the dormitory authority and the urban development corporation for principal, interest, and related expenses pursuant to a service contract and such bonds and notes shall contain on the face thereof a statement to such effect.



1 Except for purposes of complying with the internal revenue code, any  
2 interest income earned on bond proceeds shall only be used to pay debt  
3 service on such bonds.

4 2. Notwithstanding any other provision of law to the contrary, in  
5 order to assist the dormitory authority and the urban development corpo-  
6 ration in undertaking the financing for project costs for the nonprofit  
7 infrastructure capital investment program and other state costs associ-  
8 ated with such capital projects, the director of the budget is hereby  
9 authorized to enter into one or more service contracts with the dormito-  
10 ry authority and the urban development corporation, none of which shall  
11 exceed thirty years in duration, upon such terms and conditions as the  
12 director of the budget and the dormitory authority and the urban devel-  
13 opment corporation agree, so as to annually provide to the dormitory  
14 authority and the urban development corporation, in the aggregate, a sum  
15 not to exceed the principal, interest, and related expenses required for  
16 such bonds and notes. Any service contract entered into pursuant to this  
17 section shall provide that the obligation of the state to pay the amount  
18 therein provided shall not constitute a debt of the state within the  
19 meaning of any constitutional or statutory provision and shall be deemed  
20 executory only to the extent of monies available and that no liability  
21 shall be incurred by the state beyond the monies available for such  
22 purpose, subject to annual appropriation by the legislature. Any such  
23 contract or any payments made or to be made thereunder may be assigned  
24 and pledged by the dormitory authority and the urban development corpo-  
25 ration as security for its bonds and notes, as authorized by this  
26 section.

27 § 55-b. Subdivision 1 of section 1680-r of the public authorities law,  
28 as amended by section 46 of part PP of chapter 56 of the laws of 2023,  
29 is amended to read as follows:

30 1. Notwithstanding the provisions of any other law to the contrary,  
31 the dormitory authority and the urban development corporation are hereby  
32 authorized to issue bonds or notes in one or more series for the purpose  
33 of funding project costs for the capital restructuring financing program  
34 for health care and related facilities licensed pursuant to the public  
35 health law or the mental hygiene law and other state costs associated  
36 with such capital projects, the health care facility transformation  
37 programs, the essential health care provider program, and other health  
38 care capital project costs. The aggregate principal amount of bonds  
39 authorized to be issued pursuant to this section shall not exceed [~~five~~  
40 ~~six~~ billion one hundred fifty-three million dollars [~~\$5,153,000,000~~  
41 ~~\$6,153,000,000~~, excluding bonds issued to fund one or more debt service  
42 reserve funds, to pay costs of issuance of such bonds, and bonds or  
43 notes issued to refund or otherwise repay such bonds or notes previously  
44 issued. Such bonds and notes of the dormitory authority and the urban  
45 development corporation shall not be a debt of the state, and the state  
46 shall not be liable thereon, nor shall they be payable out of any funds  
47 other than those appropriated by the state to the dormitory authority  
48 and the urban development corporation for principal, interest, and  
49 related expenses pursuant to a service contract and such bonds and notes  
50 shall contain on the face thereof a statement to such effect. Except for  
51 purposes of complying with the internal revenue code, any interest  
52 income earned on bond proceeds shall only be used to pay debt service on  
53 such bonds.

54 § 55-c. Paragraph (b) of subdivision 3 and clause (B) of subparagraph  
55 (iii) of paragraph (j) of subdivision 4 of section 1 of part D of chap-  
56 ter 63 of the laws of 2005, relating to the composition and responsibil-

ities of the New York state higher education capital matching grant board, as amended by section 47 of part XX of chapter 56 of the laws of 2024, are amended to read as follows:

(b) Within amounts appropriated therefor, the board is hereby authorized and directed to award matching capital grants totaling [~~four hundred twenty-five million dollars \$425,000,000~~] four hundred sixty-five million dollars \$465,000,000. Each college shall be eligible for a grant award amount as determined by the calculations pursuant to subdivision five of this section. In addition, such colleges shall be eligible to compete for additional funds pursuant to paragraph (h) of subdivision four of this section.

(B) The dormitory authority shall not issue any bonds or notes in an amount in excess of [~~four hundred twenty-five million dollars \$425,000,000~~] four hundred sixty-five million dollars \$465,000,000 for the purposes of this section; excluding bonds or notes issued to fund one or more debt service reserve funds, to pay costs of issuance of such bonds, and bonds or notes issued to refund or otherwise repay such bonds or notes previously issued. Except for purposes of complying with the internal revenue code, any interest on bond proceeds shall only be used to pay debt service on such bonds.

§ 56. The opening paragraph of section 3573 of the public authorities law, as added by chapter 5 of the laws of 1997, is amended to read as follows:

Notwithstanding any provision of this article or any other provision of law to the contrary, so long as bonds issued by the dormitory authority [~~to finance facilities for~~] on or before March thirty-first, two thousand twenty-five to make loans to the department of health of the state of New York to finance state hospital facilities listed in section four hundred three of the public health law remain outstanding as defined in the bond resolution under which such bonds were issued, the following provisions shall be applicable:

§ 57. Paragraph (a) of subdivision 2 of section 409 of the public health law, as amended by chapter 5 of the laws of 1997, is amended and a new subdivision 6 is added to read as follows:

(a) The commissioner shall, after the first day of July, nineteen hundred seventy-one, pay over moneys received by the department including, subject to subdivision six of this section, moneys received from the Roswell Park Cancer Institute corporation for the care, maintenance and treatment of patients at state hospitals in the department as enumerated in section four hundred three of this chapter, together with money received from fees, including parking fees, refunds, reimbursements, payments received pursuant to leases, sales of property and miscellaneous receipts of such hospitals other than gifts, grants, bequests and moneys received under research contracts, and clinical practice income received pursuant to a clinical practice plan established pursuant to subdivision fourteen of section two hundred six of this chapter except for the amount of money required by the comptroller to be maintained on deposit in the department of health income fund pursuant to paragraph (c) of this subdivision less payments required to be made into pools created by this chapter and for assessments established pursuant to this chapter and less refunds made pursuant to law, to the comptroller to be deposited by [~~him~~] the comptroller in the department of health income fund. Such moneys shall be kept separate and shall not be commingled with any other moneys in the hands of the comptroller. All deposits of such money shall, if required by the comptroller, be secured by obligations of the United States or of the state

1 of market value equal at all times to the amount of the deposit and all  
2 banks and trust companies are authorized to give such securities for  
3 such deposits. The commissioner shall identify to the comptroller moneys  
4 received from Roswell Park Cancer Institute corporation or its subsid-  
5 iaries.

6 6. Notwithstanding the foregoing provisions of this section, upon the  
7 payment or provision for payment of all outstanding bonds issued on or  
8 before March thirty-first, two thousand twenty-five by the dormitory  
9 authority to make loans to the department to finance or refinance state  
10 hospital facilities in accordance with the terms of the bond resolution  
11 under which such bonds were issued, the provisions of subdivisions two  
12 and five of this section requiring (i) the payment and identification by  
13 the department to the comptroller of moneys received from the Roswell  
14 Park Cancer Institute corporation, (ii) the deposit and maintenance of  
15 such moneys from the Roswell Park Cancer Institute corporation by the  
16 comptroller in the department of health income fund, and (iii) the  
17 release of excess moneys in the department of health income fund attri-  
18 buted to the operation of the Roswell Park Cancer Institute corporation  
19 or its subsidiaries, shall no longer be applicable and, thereafter, all  
20 such moneys from the operation of the Roswell Park Cancer Institute  
21 corporation shall remain in the custody and/or control of the corpo-  
22 ration and/or its subsidiaries.

23 § 58. Intentionally omitted.

24 § 59. Subdivision 8 of section 68-b of the state finance law, as  
25 amended by section 60 of part JJJ of chapter 59 of the laws of 2021, is  
26 amended to read as follows:

27 8. Revenue bonds may only be issued for authorized purposes, as  
28 defined in section sixty-eight-a of this article. Notwithstanding the  
29 foregoing, the dormitory authority of the state of New York, the urban  
30 development corporation and the New York state thruway authority may  
31 issue revenue bonds for any authorized purpose of any other such author-  
32 ized issuer through March thirty-first, two thousand [~~twenty-five~~] twen-  
33 ty-nine. Any such revenue bonds issued by the New York state thruway  
34 authority shall be subject to the approval of the New York state public  
35 authorities control board, pursuant to section fifty-one of the public  
36 authorities law. The authorized issuers shall not issue any revenue  
37 bonds in an amount in excess of statutory authorizations for such  
38 authorized purposes. Authorizations for such authorized purposes shall  
39 be reduced in an amount equal to the amount of revenue bonds issued for  
40 such authorized purposes under this article. Such reduction shall not be  
41 made in relation to revenue bonds issued to fund reserve funds, if any,  
42 and costs of issuance, [~~if these items are not counted under existing~~  
43 ~~authorizations,~~] nor shall revenue bonds issued to refund bonds issued  
44 under existing authorizations reduce the amount of such authorizations.

45 § 60. Intentionally omitted.

46 § 61. This act shall take effect immediately and shall be deemed to  
47 have been in full force and effect on and after April 1, 2025; provided,  
48 however, that the provisions of sections one, two, three, four, five,  
49 six, seven, eight, thirteen, fourteen, fifteen, sixteen, seventeen,  
50 eighteen, nineteen, twenty and twenty-one of this act shall expire March  
51 31, 2026.

1 Section 1. Section 13-638.2 of the administrative code of the city of  
2 New York is amended by adding two new subdivisions k-3 and k-4 to read  
3 as follows:

4 k-3. For NYCERS, NYCTRS and BERS, all installments of contribution  
5 resulting from any unfunded accrued liability established for any such  
6 retirement system prior to the establishment of the unfunded accrued  
7 liability as of June thirtieth, two thousand twenty-three for such  
8 retirement systems pursuant to the provisions of paragraph one of subdivi-  
9 sion k-4 of this section which are payable to such retirement system  
10 on or after July first, two thousand twenty-four are hereby canceled and  
11 shall not be due and payable on or after such July first.

12 k-4. (1) (i) The actuary for each of such retirement systems, upon the  
13 basis of the latest mortality and other tables applicable at the time  
14 such actuary performs the calculations, and the valuation rate of inter-  
15 est (as defined in paragraph eleven of subdivision a of this section),  
16 shall calculate separately for NYCERS, NYCTRS and BERS, as of June thir-  
17 tieth, two thousand twenty-three and as of each succeeding June thirti-  
18 eth, an unfunded accrued liability for each retirement system in accord-  
19 ance with the succeeding subparagraphs of this paragraph.

20 (ii) The actuary shall calculate, as of the applicable June thirtieth,  
21 an amount equal to the sum of (A) the total actuarial present value of  
22 all benefits payable by NYCERS, NYCTRS and BERS pursuant to applicable  
23 law, as determined by the actuary, and (B) the liability of each retire-  
24 ment system, as determined by the actuary, for amounts which the retire-  
25 ment system may be required by applicable law to pay to any other fund  
26 on account of related benefits financed through the retirement system,  
27 without a corresponding offset in the liabilities of the retirement  
28 system.

29 (iii) The unfunded accrued liability of each of such retirement  
30 systems as of the applicable June thirtieth shall be the amount obtained  
31 by deducting from the amount of such total liability of the retirement  
32 system on account of benefits, as determined by the actuary pursuant to  
33 subparagraph (ii) of this paragraph, the sum of:

34 (A) the actuarial present value of entry age normal contributions  
35 payable to such retirement system, as determined by the actuary as of  
36 the applicable June thirtieth in a manner consistent with the entry age  
37 actuarial cost method, and with the applicable methodologies set forth  
38 for NYCERS in subparagraph (d) of paragraph two of subdivision b of  
39 section 13-127 of this title, for the NYCTRS in paragraph five of subdivi-  
40 sion b of section 13-527 of this title or for BERS in item (v) of  
41 subparagraph four of paragraph (c) of subdivision sixteen of section  
42 twenty-five hundred seventy-five of the education law;

43 (B) the present value of future member contributions of all members of  
44 such retirement system, as determined by the actuary as of the applica-  
45 ble June thirtieth;

46 (C) the total funds on hand of such retirement system for valuation  
47 purposes, as determined by the actuary as of the applicable June thirti-  
48 eth;

49 (D) the present value of future installments of unfunded accrued  
50 liability contributions to be paid to such retirement system as of the  
51 applicable June thirtieth;

52 (E) the present value of the pending normal contribution to such  
53 retirement system as of the applicable June thirtieth as determined by  
54 the actuary and established in the valuation for the prior year; and

55 (F) the present value of pending contributions to such retirement  
56 system for administrative expenses in accordance with the provisions of

1 subdivision f of section 13-103 of this title for NYCERS, subdivision d  
2 of section 13-518 of this title for the NYCTRS or paragraph (e) of  
3 subdivision twenty-three of section twenty-five hundred seventy-five of  
4 the education law for BERS.

5 (iv) The actuary, in determining the unfunded accrued liability pursu-  
6 ant to this paragraph, may make any adjustments which such actuary deems  
7 appropriate due to the calculation of the unfunded accrued liability as  
8 of the second June thirtieth preceding the fiscal year in which the  
9 first installment of such unfunded accrued liability becomes payable or  
10 creditable.

11 (2) (i) The unfunded accrued liability calculated by the actuary as of  
12 June thirtieth, two thousand twenty-three shall be known as the "2023  
13 UAL" or, with respect to NYCERS as the "NYCERS 2023 UAL", with respect  
14 to NYCTRS as the "NYCTRS 2023 UAL", and with respect to BERS as the  
15 "BERS 2023 UAL".

16 (ii) The 2023 UAL for NYCERS, NYCTRS and BERS shall be amortized in  
17 twenty annual installments, as determined by the actuary, with payments  
18 commencing with the two thousand twenty-four--two thousand twenty-five  
19 fiscal year. The actuary for each of such retirement systems shall  
20 determine the schedule of contribution installments such that each  
21 installment after the first shall decline, relative to the next preced-  
22 ing installment, by a constant dollar amount equal to five percent of  
23 such first installment.

24 (3) (i) Notwithstanding paragraph three of subdivision k-2 of this  
25 section or any other law to the contrary, the unfunded accrued liability  
26 calculated pursuant to paragraph one of this subdivision by the actuary  
27 as of June thirtieth, two thousand twenty-four, and as of each succeed-  
28 ing June thirtieth, shall be known as a "post-2023 UAL adjustment". With  
29 respect to NYCERS, NYCTRS and BERS, such unfunded accrued liability  
30 shall be known by the name consisting of the applicable abbreviation for  
31 each retirement system, as defined in paragraph three, four or seven of  
32 subdivision a of this section, followed by the calendar year as of which  
33 the unfunded accrued liability was established, followed by the term  
34 "UAL adjustment".

35 (ii) Notwithstanding paragraph three of subdivision k-2 of this  
36 section or any other law to the contrary, each post-2023 UAL adjustment  
37 for NYCERS, NYCTRS and BERS, excluding adjustments due to investment  
38 gains and losses or enacted changes in benefits as described in subpara-  
39 graphs (iii) and (iv) respectively of this paragraph, shall be amortized  
40 in twenty equal annual installments, as determined by the actuary, with  
41 payments or credits commencing with the second fiscal year succeeding  
42 the June thirtieth as of which the unfunded accrued liability was estab-  
43 lished.

44 (iii) Post-2023 UAL adjustments due to investment gains and losses  
45 shall be amortized over twenty installments such that installments one  
46 through five increase by a constant dollar amount, installments seven-  
47 teen through twenty decrease by that same amount, and installments six  
48 through sixteen equal installment five, as determined by the actuary.  
49 Deferred investment gains and losses established prior to the Post-2023  
50 UAL adjustments will continue to be recognized based on their existing  
51 recognition schedule and amortized in twenty equal annual installments,  
52 as determined by the actuary, with payments or credits commencing with  
53 the second fiscal year succeeding the June thirtieth as of which they  
54 are recognized.

55 (iv) Post-2023 UAL adjustments due to enacted changes in benefits  
56 shall be amortized over a number of installments equal to the rounded



number of years of the remaining working lifetimes of those covered by the benefit changes. Where the length of the amortization period for an UAL adjustment is not specified in the law, the actuary, in such actuary's discretion, may select an amortization period that is reasonably consistent with past practice for amortizing UAL adjustments attributable to the particular type of changes.

(v) In the event that the total unfunded accrued liability as of June thirtieth for NYCERS, NYCTRS or BERS, as determined by the actuary, is less than or equal to zero based on the market value of assets, results in the total amortization installment being negative while the total unfunded accrued liability is positive, or results in any other mathematical inconsistency as determined by the actuary, the actuary, in their discretion, shall void all previously established remaining amortization installments scheduled for or after the second fiscal year succeeding the June thirtieth as of which the determination was made and shall establish a new amortization schedule of twenty installments that will be applied as charges or credits against the normal contribution of any such retirement system's obligors commencing in that second fiscal year.

§ 2. This act shall take effect immediately and shall be deemed to have been in full force and effect on and after July 1, 2024.

FISCAL NOTE.--Pursuant to Legislative Law, Section 50:

SUMMARY: This proposed legislation (see Appendix) would modify existing statutory language to amortize the Unfunded Accrued Liabilities (UAL) for the New York City Employees' Retirement System (NYCERS), the New York City Teachers' Retirement System (TRS), and the New York City Board of Education Retirement System (BERS) on an alternate schedule effective upon enactment and deemed to have been in effect on and after July 1, 2024.

EXPECTED INCREASE (DECREASE) IN EMPLOYER CONTRIBUTIONS  
by Fiscal Year for the first 25 years (\$ in Millions)

| Year | NYCERS    | TRS     | BERS   | TOTAL     |
|------|-----------|---------|--------|-----------|
| 2025 | 48.2      | (523.8) | (36.2) | (511.8)   |
| 2026 | (129.2)   | (661.4) | (41.0) | (831.6)   |
| 2027 | (338.3)   | (644.0) | (67.5) | (1,049.8) |
| 2028 | (526.5)   | (693.8) | (64.3) | (1,284.6) |
| 2029 | (682.2)   | (582.9) | (31.0) | (1,296.1) |
| 2030 | (1,020.3) | (611.7) | (26.4) | (1,658.4) |
| 2031 | (1,258.7) | (673.4) | (16.7) | (1,948.8) |
| 2032 | (1,477.0) | (924.6) | (9.6)  | (2,411.2) |
| 2033 | 1,162.3   | 1,526.3 | 128.5  | 2,817.1   |
| 2034 | 1,010.7   | 1,382.9 | 120.1  | 2,513.7   |
| 2035 | 1,170.1   | 1,329.6 | 72.3   | 2,572.0   |
| 2036 | 1,075.1   | 1,253.5 | 84.2   | 2,412.8   |
| 2037 | 727.7     | 880.5   | 42.1   | 1,650.3   |
| 2038 | 709.9     | 722.6   | 32.2   | 1,464.7   |
| 2039 | 782.4     | 674.5   | 18.3   | 1,475.2   |
| 2040 | 553.0     | 250.1   | (33.2) | 769.9     |
| 2041 | 442.4     | 278.0   | 2.0    | 722.4     |
| 2042 | 331.8     | 209.4   | 1.5    | 542.7     |
| 2043 | 221.2     | 139.6   | 1.0    | 361.8     |
| 2044 | 110.6     | 69.8    | 0.5    | 180.9     |
| 2045 | 0.0       | 0.0     | 0.0    | 0.0       |
| 2046 | 0.0       | 0.0     | 0.0    | 0.0       |
| 2047 | 0.0       | 0.0     | 0.0    | 0.0       |



|      |     |     |     |     |
|------|-----|-----|-----|-----|
| 2048 | 0.0 | 0.0 | 0.0 | 0.0 |
| 2049 | 0.0 | 0.0 | 0.0 | 0.0 |

Allocation of the impact above to New York City and other obligors will vary by year.

**IMPACT ON EMPLOYER CONTRIBUTIONS:** For NYCERS, TRS, and BERS, the proposed legislation would amend the UAL amortization schedule; change the smoothing method used for investment gains and losses; and allow a reset of the UAL amortization schedule under certain scenarios. While the proposed changes will impact the timing of employer contributions, there is no change to the benefits paid and therefore no ultimate savings or cost.

**PRESENT VALUE OF BENEFITS:** The Present Value of Benefits is the discounted expected value of benefits paid to current members if all assumptions are met, including future service accrual and pay increases.

INITIAL INCREASE (DECREASE) IN ACTUARIAL PRESENT VALUES  
as of June 30, 2023 (\$ in Millions)

| Present Value (PV)                | NYCERS     | TRS        | BERS       |
|-----------------------------------|------------|------------|------------|
| (1) PV of Employer Contributions: | 0.0        | 0.0        | 0.0        |
| (2) PV of Employee Contributions: | <u>0.0</u> | <u>0.0</u> | <u>0.0</u> |
| Total PV of Benefits (1) + (2):   | 0.0        | 0.0        | 0.0        |

**IMPACT ON UAL AMORTIZATION:** Pursuant to Chapter 3 of the Laws of 2013, an Initial UAL amortization base was established for each of the New York City Retirement Systems and Pension Funds (NYCRS) such that the annual amortization payments would increase by 3% per year consistent with the expected annual increases in total payroll, with the final payment scheduled to occur in Fiscal Year 2032. Subsequent changes in the UAL have their own statutorily defined amortization period, generally amortized using level dollar payments.

The proposed legislation would re-amortize all outstanding UAL balances for NYCERS, TRS, and BERS as of June 30, 2023, adjusted for pending employer contributions, over a 20-year period such that the amortization payments decrease by a constant dollar amount annually. New amortization bases would be added on an annual basis using level dollar amortization. Actuarial gains and losses (currently amortized over 14 payments), assumption and method changes (currently amortized over 19 payments) would be amortized over 20 payments. Future benefit changes would be amortized over the expected future working lifetime of the impacted population.

This legislation also includes provisions that allow the NYCERS Actuary to reset the amortization schedule over a 20-year period when a NYCERS, TRS, or BERS plan becomes overfunded based on the Market Value of Assets (MVA) or if the Actuary observes any anomalies in the amortization schedule, such as a negative net amortization payment being applied to a positive UAL.

**IMPACT ON ASSET SMOOTHING:** This legislation modifies the approach used to smooth investment gains and losses. The current asset smoothing method phases in the recognition of investment gains and losses over a five-year period producing an Actuarial Value of Assets (AVA) used to determine the UAL and related amortization payments that is different from the Market Value of Assets (MVA).

The proposed legislation would recognize the full investment gain or loss immediately with a five-year phase-in and five-year phase-out of the payments over a twenty-year period in total. This alternate method

produces a contribution smoothing effect similar to the current method and eliminates the need to calculate an AVA different from the MVA. The smoothing corridor currently used to constrain the AVA within plus or minus twenty percent of the MVA becomes obsolete under this legislation.

Unrecognized investment gains and losses as of June 30, 2023 will be recognized in future valuations based on their recognition schedule established prior to this legislation, though those deferred gains and losses will be amortized over 20 payments instead of the current 14 payments. This Fiscal Note does not reflect the difference in timing of recognizing currently deferred investment gains and losses, though the net impact of this difference is zero on a present value basis.

**COST BASIS:** The estimates presented herein are based on census data collected as of June 30, 2023 and the Preliminary June 30, 2023 Actuarial Valuation. The Final June 30, 2023 Actuarial Valuation may reflect subsequent events, such as data corrections or other legislative changes that impact the timing of employer contributions shown in this Fiscal Note.

**ASSUMPTIONS AND METHODS:** The estimates presented herein, except for those changes described in this Fiscal Note, have been calculated based on the Revised 2021 Actuarial Assumptions and Methods of the impacted NYCERS.

**RISK AND UNCERTAINTY:** The costs presented in this Fiscal Note depend highly on the actuarial assumptions, methods, and models used, demographics of the impacted population, and other factors such as investment, contribution, and other risks. If actual experience deviates from actuarial assumptions, the actual costs could differ from those presented herein. Quantifying these risks is beyond the scope of this Fiscal Note.

This Fiscal Note is intended to measure pension-related impacts and does not include other potential costs (e.g., administrative and Other Postemployment Benefits). This Fiscal Note does not reflect any chapter laws that may have been enacted during the current legislative session.

**STATEMENT OF ACTUARIAL OPINION:** Marek Tyszkiewicz and Gregory Zelikovsky are members of the Society of Actuaries and the American Academy of Actuaries. We are members of NYCERS, but do not believe it impairs our objectivity, and we meet the Qualification Standards of the American Academy of Actuaries to render the actuarial opinion contained herein. To the best of our knowledge, the results contained herein have been prepared in accordance with generally accepted actuarial principles and procedures and with the Actuarial Standards of Practice issued by the Actuarial Standards Board.

**FISCAL NOTE IDENTIFICATION:** This Fiscal Note 2025-16 dated February 19, 2025 was prepared by the Chief Actuary for the New York City Retirement Systems and Pension Funds and is intended for use only during the 2025 Legislative Session.

1

## PART GG

2 Section 1. The correction law is amended by adding a new section 135  
3 to read as follows:

4 § 135. New York state department of corrections and community super-  
5 vision body-worn cameras program. 1. There is hereby created within the  
6 department a body-worn cameras program. The purpose of such program is  
7 to increase accountability and evidence for departmental and law  
8 enforcement purposes, department staff, residents of the state, and  
9 those under the department's care by providing body-worn cameras to all

1 correction officers, security supervisors, and any civilian staff as  
2 identified by the commissioner.

3 2. The department shall provide body-worn cameras that will be powered  
4 on and worn by correction officers and security supervisors at all  
5 times, while on duty. Incidents and activities that require staff to  
6 manually activate their body-worn cameras, regardless of the presence of  
7 fixed cameras, include but are not limited to:

8 (a) during any interaction with an incarcerated individual or visitor,  
9 in any location. This paragraph shall not apply when the office of  
10 special investigations or crisis intervention unit is conducting an  
11 interview with an incarcerated individual providing confidential infor-  
12 mation where a record of interview is completed;

13 (b) when staff observe unauthorized activity by an incarcerated indi-  
14 vidual, a department employee or any other person in the facility;

15 (c) during general movement of incarcerated individuals;

16 (d) when staff is responding to an emergency call for assistance;

17 (e) during all incarcerated individual escorts;

18 (f) during incarcerated individual transports, as directed by the  
19 facility watch commander or higher-ranking supervisor. When an employee  
20 enters a non-department facility, the employee will comply with the  
21 facility local policy on wearing the camera and recording. If a local  
22 policy does not exist, the employee shall default to department policy;

23 (g) when a firearm, oleoresin capicum spray, or a baton is removed  
24 from its holster or holder;

25 (h) any instance where department staff feels there is an imminent  
26 threat or the need to document their time on duty;

27 (i) during all uses of force, including any physical aggression or use  
28 of a non-lethal or lethal weapon;

29 (j) during a disciplinary hearing when fixed video monitoring systems  
30 are not available where the disciplinary hearing is conducted. Such  
31 recordings will be securely preserved as part of the official hearing  
32 record for all Tier II and Tier III hearings pursuant to section 270.3  
33 of the New York codes, rules and regulations. Audio recordings of all  
34 hearings will continue to be made regardless of whether the video moni-  
35 toring system captures audio;

36 (k) as directed by the deputy commissioner or chief of investigations  
37 for the office of special investigations, or such deputy commissioner's  
38 or chief of investigations' designee, office of special investigations  
39 investigators may utilize body-worn camera systems pursuant to the  
40 office of special investigations policy. The use of such cameras by the  
41 office of special investigations investigators may include but is not  
42 limited to absconder/fugitive operations, facility inspections, monitor-  
43 ing of frisks, canine operations, high-risk in-state transports of  
44 incarcerated individuals or releasees, and investigative activities  
45 which are deemed appropriate to record;

46 (l) in congregate shower areas; provided, however, that staff shall  
47 provide a verbal announcement that a body-worn camera is in use and  
48 avoid intentional recording of an incarcerated individual in a state of  
49 undress unless they are required to do so as part of the performance of  
50 their duties;

51 (m) during all correctional emergency response team activations; and

52 (n) during a strip search or strip frisk; provided, however, that  
53 incarcerated individuals shall be given verbal notice that they are  
54 being recorded, and the following rules apply:

55 (i) The wearer of the body-worn camera shall be of the same gender as  
56 the gender designation of the facility. Video recordings of strip frisks

1 or strip searches shall not be viewed by anyone, except as expressly  
2 authorized in writing by the facility's deputy superintendent for secu-  
3 rity or higher authority. If the recording is approved for review, the  
4 deputy superintendent for security shall assure this fact is documented  
5 to include date, time, authorization, reviewer name, explanation of why  
6 the review is necessary, and the result of such review.

7 (ii) A body-worn camera recording of any strip search or strip frisk  
8 shall immediately be turned over to an officer assigned to upload,  
9 charge, and issue such cameras to assigned staff for uploading and stor-  
10 age.

11 (iii) The video footage of a strip frisk or other incident depicting  
12 an incarcerated individual in a state of complete undress shall only be  
13 viewed by department staff who are of the same gender as the gender  
14 designation of the facility.

15 3. The commissioner shall have the authority to require civilian staff  
16 assigned to a correctional facility to wear body-worn cameras while on  
17 duty where the civilian employee has direct supervision of an incarcer-  
18 ated individual with only intermittent security supervision. In  
19 instances where the commissioner has required a civilian to wear a body-  
20 worn camera while on duty, such cameras shall be activated and shall  
21 record:

22 (a) while interacting with an incarcerated individual, regardless of  
23 the existence of fixed-video monitoring; and

24 (b) while such employee is in the area of a use of force incident,  
25 including any physical aggression or use of a non-lethal or lethal weap-  
26 on.

27 4. The department shall preserve recordings of such body-worn cameras  
28 for at least ninety days.

29 5. The department shall perform all necessary maintenance on the  
30 equipment used in such body-worn camera program established pursuant to  
31 this section.

32 6. The commissioner of the department shall solely determine the  
33 timing and appropriateness of any review or provision of body-worn  
34 camera footage to an employee prior to that employee being required to  
35 answer questions subject to paragraph (g) of subdivision one of section  
36 two hundred nine-a of the civil service law, or prior to an employment  
37 disciplinary hearing regarding the potential misconduct of such employ-  
38 ee.

39 § 2. This act shall take effect on the sixtieth day after it shall  
40 have become a law. Effective immediately, the addition, amendment and/or  
41 repeal of any rule or regulation necessary for the implementation of  
42 this act on its effective date are authorized to be made and completed  
43 on or before such effective date.

44 PART HH

45 Section 1. Subdivision 1 of section 41 of the correction law, as added  
46 by chapter 865 of the laws of 1975, is amended to read as follows:

47 1. There shall be within the executive department a state commission  
48 of correction. It shall consist of three persons to be appointed by the  
49 governor, by and with the advice and consent of the senate. The governor  
50 shall designate one of the appointed members as ~~chairman~~ chair to  
51 serve as such at the pleasure of the governor. The members shall devote  
52 full time to their duties and shall hold no other salaried public posi-  
53 tion.

1 § 2. Paragraph 3 of subdivision (a) of section 42 of the correction  
2 law, as added by chapter 865 of the laws of 1975, is amended to read as  
3 follows:

4 3. Any member chosen to fill in a vacancy created other than by expi-  
5 ration of term shall be appointed for the unexpired term of the  
6 ~~succeeded~~ member [~~whom he is to succeed~~]. Vacancies caused by the expi-  
7 ration of term or otherwise shall be filled in the same manner as  
8 original appointments.

9 § 3. Paragraph 4 of subdivision (a) of section 42 of the correction  
10 law, as amended by chapter 55 of the laws of 1992, is amended to read as  
11 follows:

12 4. The members of the council other than the [~~chairman~~] ~~chair~~ shall  
13 receive no compensation for their services but each member other than  
14 the [~~chairman~~] ~~chair~~ shall be entitled to receive [~~his or her~~] actual  
15 and necessary expenses incurred in the performance of [~~his or her~~] ~~coun-~~  
16 ~~cil~~ duties.

17 § 4. Paragraph 5 of subdivision (a) of section 42 of the correction  
18 law, as amended by section 14 of subpart A of part C of chapter 62 of  
19 the laws of 2011, is amended to read as follows:

20 5. No appointed member of the council shall qualify or enter upon the  
21 duties of [~~his~~] office, or remain therein, while [~~he is~~] an officer or  
22 employee of the department of corrections and community supervision or  
23 any correctional facility or is in a position [~~where he exercises~~] ~~to~~  
24 ~~exercise~~ administrative supervision over any correctional facility. The  
25 council shall have such staff as shall be necessary to assist it in the  
26 performance of its duties within the amount of the appropriation there-  
27 for as determined by the [~~chairman~~] ~~chair~~ of the commission.

28 § 5. Paragraph 1 of subdivision (c) of section 42 of the correction  
29 law, as added by chapter 865 of the laws of 1975, is amended to read as  
30 follows:

31 1. Advise and assist the commission in developing policies, plans and  
32 programs for improving the commission's performance of its duties and  
33 for coordinating the efforts of the commission and of correctional offi-  
34 cials to improve conditions of care, treatment, safety, supervision,  
35 rehabilitation, recreation, training and education in correctional  
36 facilities. Such advice and assistance shall minimally consist of an  
37 annual report of the council to the commission;

38 § 6. Paragraph 3 of subdivision (c) of section 42 of the correction  
39 law, as added by chapter 865 of the laws of 1975, is amended to read as  
40 follows:

41 3. Meet at least once per calendar month at a time and place desig-  
42 nated by the [~~chairman~~] ~~chair~~ of the council.

43 § 7. Subdivision 1 of section 43 of the correction law, as amended by  
44 chapter 379 of the laws of 1988, is amended to read as follows:

45 1. There shall be within the commission a correction medical review  
46 board. It shall consist of six persons to be appointed by the governor  
47 by and with the advice and consent of the senate. In addition, the  
48 governor shall designate one of the full-time members other than the  
49 [~~chairman~~] ~~chair~~ of the commission and the [~~chairman~~] ~~chair~~ of the coun-  
50 cil as [~~chairman~~] ~~chair~~ of the board to serve as such at the pleasure of  
51 the governor. Of the appointed members of the board one shall be a  
52 physician duly licensed to practice in this state; one shall be a physi-  
53 cian duly licensed to practice in this state and a board certified  
54 forensic pathologist; one shall be a physician duly licensed to practice  
55 in this state and shall be a board certified forensic psychiatrist; one



1 shall be an attorney admitted to practice in this state; two shall be  
2 members appointed at large.

3 § 8. Subdivision 3 of section 43 of the correction law, as added by  
4 chapter 865 of the laws of 1975, is amended to read as follows:

5 3. Any member chosen to fill a vacancy created other than by expira-  
6 tion of term shall be appointed for the unexpired term of the succeeded  
7 member ~~[whom he is to succeed]~~. Vacancies caused by expiration of term  
8 or otherwise shall be filled in the same manner as original appoint-  
9 ments.

10 § 9. Section 44 of the correction law, as added by chapter 865 of the  
11 laws of 1975, is amended to read as follows:

12 § 44. ~~[Chairman]~~ Chair of commission. 1. The ~~[chairman]~~ chair shall be  
13 the executive officer of the commission, the board and the council, and  
14 may serve as the chair of the board or council at any time necessitated  
15 by a commission member vacancy.

16 2. The ~~[chairman]~~ chair may appoint such assistants, officers and  
17 employees, committees and consultants for the board and the council as  
18 ~~[he may determine]~~ necessary, prescribe their powers and duties, fix  
19 their compensation and provide for reimbursement of their expenses with-  
20 in amounts appropriated therefor.

21 3. The ~~[chairman]~~ chair may, from time to time, create, abolish,  
22 transfer and consolidate bureaus and other units within the commission,  
23 the board and the council not expressly established by law as ~~[he may~~  
24 ~~determine]~~ necessary for the efficient operation of the commission, the  
25 board and the council, subject to the approval of the director of the  
26 budget.

27 4. The ~~[chairman]~~ chair may request and receive from any department,  
28 division, board, bureau, commission or other agency of the state or any  
29 political subdivision thereof or any public authority such assistance,  
30 information and data as will enable the commission, the board and the  
31 council properly to carry out its functions, powers and duties.

32 § 10. Subdivision 3 of section 45 of the correction law, as amended by  
33 chapter 322 of the laws of 2021, is amended to read as follows:

34 3. ~~[Except in circumstances involving health, safety or alleged~~  
35 ~~violations of established standards of the commission, visit]~~ Visit,  
36 [and] inspect [correctional facilities consistent with a schedule deter-  
37 mined by the chairman of the commission, taking into consideration  
38 available resources, workload and staffing,] and appraise the management  
39 of ~~[such]~~ correctional facilities with specific attention to matters  
40 such as safety, security, health of incarcerated individuals, sanitary  
41 conditions, rehabilitative programs, disturbance and fire prevention and  
42 control preparedness, and adherence to laws and regulations governing  
43 the rights of incarcerated individuals. Such visits, inspections and  
44 appraisals shall occur, at a minimum, annually for jails, specialized  
45 secure juvenile detention facilities for older youth, facilities oper-  
46 ated by the department, and secure facilities operated by the office of  
47 children and family services.

48 § 11. Subdivision 4 of section 45 of the correction law, as amended by  
49 chapter 322 of the laws of 2021, is amended to read as follows:

50 4. Establish procedures to assure effective investigation of griev-  
51 ances of, and conditions affecting, incarcerated individuals of local  
52 correctional facilities. Such procedures shall include but not be limit-  
53 ed to receipt of written complaints, interviews of persons, and on-site  
54 monitoring of conditions. In addition, the commission shall establish  
55 procedures for the speedy and impartial review of grievances referred to  
56 it by the commissioner ~~[of the department of corrections and community~~



1 supervision]. The commission shall maintain a website that allows for  
2 the submission of written complaints regarding any correctional facili-  
3 ty, and provides the commission's address for the receipt of complaints  
4 by mail. The commission shall promulgate rules and regulations requiring  
5 correctional facilities to provide incarcerated individuals, in writing,  
6 the commission's website and mailing address.

7 § 12. Subdivision 17 of section 45 of the correction law, as amended  
8 by chapter 322 of the laws of 2021, is amended to read as follows:

9 17. Make an annual report to the governor, the ~~[chairman]~~ chair of the  
10 assembly committee on correction and the ~~[chairman]~~ chair of the senate  
11 committee on crime victims, crime and correction concerning incarcerated  
12 individuals confined in local correctional facilities pursuant to an  
13 agreement authorized by section five hundred-o of this chapter. Such  
14 report shall include but not be limited to the number of counties main-  
15 taining such agreements and the number of incarcerated individuals  
16 confined pursuant to such agreements.

17 § 13. Subdivision 1 of section 46 of the correction law, as amended by  
18 chapter 322 of the laws of 2021, is amended to read as follows:

19 1. The commission, any member or any employee designated by the  
20 commission must be granted access at any and all times to any correc-  
21 tional facility or part thereof and to all books, records, medical and  
22 substance use disorder treatment and transition services records of  
23 incarcerated individuals and data pertaining to any correctional facili-  
24 ty deemed necessary for carrying out the commission's functions, powers  
25 and duties. The commission, any member or any employee designated by the  
26 ~~[chairman]~~ chair may require from the officers or employees of a correc-  
27 tional facility any information deemed necessary for the purpose of  
28 carrying out the commission's functions, powers and duties. Commission  
29 members and employees may conduct private interviews of correctional  
30 facility officers and employees, who shall have the right to be accompa-  
31 nied by counsel or a union representative acting on such officer or  
32 employee's behalf. Commission members and employees may also conduct  
33 private interviews of incarcerated individuals, provided that partici-  
34 ipation in such interviews shall be voluntary and the incarcerated indi-  
35 vidual shall have the right to be accompanied by counsel.

36 § 14. Paragraph (d) of subdivision 1 of section 47 of the correction  
37 law, as amended by chapter 322 of the laws of 2021, is amended to read  
38 as follows:

39 (d) Upon review of the cause of death and circumstances surrounding  
40 the death of any incarcerated individual, the board shall submit its  
41 report thereon to the commission and to the governor, the ~~[chairman]~~  
42 chair of the assembly committee on correction and the ~~[chairman]~~ chair  
43 of the senate committee on crime victims, crime and correction and,  
44 where appropriate, make recommendations to prevent the recurrence of  
45 such deaths to the commission and the administrator of the appropriate  
46 correctional facility. The report provided to the governor, the ~~[chair-~~  
47 ~~man]~~ chair of the assembly committee on correction and the ~~[chairman]~~  
48 chair of the senate committee on crime victims, crime and correction  
49 shall not be redacted except as otherwise required to protect confiden-  
50 tial medical records and behavioral health records in accordance with  
51 state and federal laws, rules, and regulations.

52 § 15. Subparagraph (i) of paragraph (e) of subdivision 1 of section 47  
53 of the correction law, as amended by chapter 322 of the laws of 2021, is  
54 amended to read as follows:

55 (i) Investigate and report to the commission on the condition of  
56 systems for the delivery of medical care to incarcerated individuals of

1 correctional facilities and where appropriate recommend such changes as  
2 it shall deem necessary and proper to improve the quality and availabil-  
3 ity of such medical care. Such report and recommendation shall minimally  
4 consist of an annual report of the board to the commission.

5 § 16. This act shall take effect one year after it shall have become a  
6 law; provided, however, that the amendments to subdivision 17 of section  
7 45 of the correction law made by section twelve of this act shall not  
8 affect the repeal of such subdivision and shall expire and be deemed  
9 repealed therewith.

10 PART II

11 Section 1. Notwithstanding the provisions of sections 79-a and 79-b of  
12 the correction law, the governor is authorized to close up to five  
13 correctional facilities of the department of corrections and community  
14 supervision, in the state fiscal year 2025--2026, as the governor deter-  
15 mines to be necessary for the cost-effective and efficient operation of  
16 the correctional system, provided that the governor provides at least 90  
17 days' notice prior to any such closures to the temporary president of  
18 the senate and the speaker of the assembly. Such notice shall include  
19 the list of facilities the governor plans to close, the number of incar-  
20 cerated individuals in said facilities, and the number of staff working  
21 in said facilities. The commissioner of corrections and community super-  
22 vision shall also report in detail to the temporary president of the  
23 senate and the speaker of the assembly on the results of staff relo-  
24 cation efforts within 60 days after such closures.

25 § 2. This act shall take effect immediately and shall be deemed to  
26 have been in full force and effect on and after April 1, 2025; provided,  
27 however that this act shall expire and be deemed repealed March 31,  
28 2026.

29 PART JJ

30 Section 1. Subdivision c of section 3 of chapter 729 of the laws of  
31 2023, constituting the New York State community commission on repara-  
32 tions remedies, is amended to read as follows:

33 c. Report to the legislature. The commission shall submit a written  
34 report of its findings and recommendations to the temporary president of  
35 the senate, the speaker of the assembly, the minority leaders of the  
36 senate and the assembly and the governor not later than [~~one-year~~] thir-  
37 ty months after the date of the first meeting of the commission held  
38 pursuant to subdivision c of section four of this act.

39 § 2. This act shall take effect immediately; provided however, that  
40 the amendments to chapter 729 of the laws of 2023 made by section one of  
41 this act shall not affect the expiration of such chapter and shall  
42 expire and be deemed repealed therewith.

43 PART KK

44 Section 1. Section 13 of chapter 141 of the laws of 1994, amending the  
45 legislative law and the state finance law relating to the operation and  
46 administration of the legislature, as amended by section 1 of part YY of  
47 chapter 56 of the laws of 2024, is amended to read as follows:

48 § 13. This act shall take effect immediately and shall be deemed to  
49 have been in full force and effect as of April 1, 1994, provided that,  
50 the provisions of section 5-a of the legislative law as amended by

sections two and two-a of this act shall take effect on January 1, 1995, and provided further that, the provisions of article 5-A of the legislative law as added by section eight of this act shall expire June 30, ~~2025~~ 2026 when upon such date the provisions of such article shall be deemed repealed; and provided further that section twelve of this act shall be deemed to have been in full force and effect on and after April 10, 1994.

§ 2. This act shall not supersede the findings and determinations made by the compensation committee as authorized pursuant to part HHH of chapter 59 of the laws of 2018 unless a court of competent jurisdiction determines that such findings and determinations are invalid or otherwise not applicable or in force.

§ 3. This act shall take effect immediately, provided, however, if this act shall take effect on or after June 30, 2025, this act shall be deemed to have been in full force and effect on and after June 30, 2025.

#### PART LL

Section 1. Section 112 of the correction law is amended by adding a new subdivision 7 to read as follows:

7. (a) The commissioner shall collect data from the office of special investigations established by the department and report quarterly to the speaker of the assembly, the temporary president of the senate, and the governor regarding complaints received by the office. Such data and report shall include, but not be limited to:

(i) the number of complaints received by the office of special investigations categorized by facility the complaint originated from, housing type of the complainant, complaint type or allegation, subject of the complaint (i.e. incarcerated individual, security staff, or civilian staff), and how the complaint was received by the office;

(ii) the total number of complaints: assigned for an investigation by the office of special investigations; referred to the appropriate central office division head; referred to a facility superintendent or community supervision bureau chief for investigation; referred to a facility superintendent or community supervision bureau chief for other appropriate action; and referred to a state, local, or federal agency with jurisdiction. Such data shall include the facility the complaint originated from and the complaint type or allegation;

(iii) the total number of complaints referred to each of the following office of special investigations divisions: the criminal intelligence division; the fugitive investigations division; the internal affairs division; the narcotics investigations division; and the sex crimes division;

(iv) the total number of investigations closed by each office of special investigations division;

(v) the total number of referrals for criminal prosecution. Such data shall include the facility the complaint originated from, the complaint type or allegation, and the subject of the complaint (i.e. incarcerated individual, security staff, or civilian staff);

(vi) the total number of referrals to the department's bureau of labor relations for consideration of employee disciplinary charges including which facility the referral originated from;

(vii) the average length of investigations in each facility and the complaint type or allegation; and

(viii) office of special investigations staffing data including the total number of staff, position type, and number of open positions.

(b) The commissioner shall report annually any recommendations made by the office of special investigations to the relevant departmental program areas for consideration of a revision to a policy or procedure. Such report shall categorize such recommendations by facility, the nature of the recommendation, and any action taken in response to the recommendation.

§ 2. This act shall take effect immediately.

PART MM

Section 1. The executive law is amended by adding a new section 837-y to read as follows:

§ 837-y. New York state office of gun violence prevention. 1. Establishment and organization. There is hereby established within the division of criminal justice services an office of gun violence prevention, hereinafter "office".

2. Duties and responsibilities. The office shall have the following duties and responsibilities:

(a) advance efforts to prevent and address gun violence impacting state residents. "Gun violence" shall include, but is not limited to, any attempted crime, crime, attempted suicide, suicide, unintentional injury, or death involving a firearm.

(b) establish and maintain an investigative unit to identify funding available to local governments and community stakeholders relating to gun violence and gun violence prevention.

(c) coordinate with the department of health and office of mental health to prevent and respond to gun violence including, but not limited to, state hospital violence prevention initiatives.

(d) direct and strengthen timely data collection and data infrastructure and research regarding firearm-related injuries, fatalities, and incidents by focusing on data informed surveillance, prevention, and intervention of gun violence statewide including but not limited to the coordination with the state gun violence research institute.

(e) collaborate with various political subdivisions and stakeholders to develop and implement a public awareness campaign to educate the public on gun violence prevention and the various types of gun violence that impact New York state. The public awareness campaign shall include, resources available to individuals who have been impacted by gun violence, education for individuals at risk, and gun violence prevention best practices.

(f) create resources and training materials on violence intervention and prevention strategies and best practices.

(g) provide recommendations to the speaker of the assembly, temporary president of the senate and the governor regarding the development of policies and programs designed to reduce gun violence and create a sustainable approach to the prevention of gun violence.

(h) cooperate with and assist political subdivisions of the state and not-for-profit organizations in the development of local programs and intervention initiatives for gun violence.

(i) on or before July first, two thousand twenty-five, develop and implement a public awareness campaign to educate the public on the safe storage of firearms, rifles and shotguns and child access and prevention. The public awareness campaign shall include, but not be limited to, educational materials, resources and information related to New York state child access prevention laws and laws relating to the safe storage and transport of firearms, rifles and shotguns including

sections 265.45, 265.46, and 400.00 of the penal law, available methods for the safe storage of firearms, rifles and shotguns designed to prevent child access, firearm violence prevention resources, and county and local specific laws and regulations related to child access prevention and safe storage of firearms, rifles and shotguns.

3. Annual report. The office shall issue an annual report including, but not limited to, information on the state of gun violence in the state, recommendations for policy and programmatic initiatives to reduce gun violence in the state, and a description of the efforts of the office to carry out the duties and objectives of the office under this subdivision. Such report shall be delivered to the governor, the temporary president of the senate and the speaker of the assembly no later than one year after the effective date of this section, and annually thereafter. Such report shall be published on the division's website.

4. Interagency collaboration. To comprehensively address gun violence in New York state, the following state executive agencies shall collaborate with the office to support prevention, intervention, and policy implementation strategies including but not limited to the department of health, department of education, department of labor, office of mental health, office of children and family services, office of victim services, office of temporary and disability assistance, office for the prevention of domestic violence, office of the New York state attorney general, division of homeland security, state police, and all other divisions and offices within the division of criminal justice services.

§ 2. Subdivision 32 of section 206 of the public health law is REPEALED.

§ 3. The executive law is amended by adding a new section 631-b to read as follows:

§ 631-b. Mass violence response unit. 1. The office shall establish a unit dedicated to supporting communities that have been subject to mass violence, hereafter in this section referred to as "unit".

2. For the purposes of this section, "mass violence" shall include:

(a) a mass shooting, as defined in subdivision eleven of section eight hundred thirty-five of this chapter;

(b) a shooting incident in which four or more people are injured; and

(c) three or more shooting incidents in which one or more people are injured and which occur within one week of each other.

3. The office shall make grants, within amounts appropriated for such purpose, for community support programs to provide services to communities impacted by incidents of mass violence. Such programs shall be operated at the community level by not-for-profit organizations, by agencies of local government or by any combination thereof. Community support service programs may be designed to address the psychological, economic, or social impacts of mass violence and may be intended for short term or long term support of impacted communities. Communities served can include the municipality in which the incident of mass violence occurred, or directly neighboring municipalities.

4. (a) The director shall promulgate regulations, relating to such grants, including guidelines for its determinations.

(b) Such regulations shall be designed to promote:

(i) alternative funding sources other than the state, including local government and private sources;

(ii) coordination of public and private efforts to aid impacted communities;

(iii) long range development of services impacted communities; and

(iv) mass violence prevention.



(c) Such regulations shall also provide for services including, but not limited to:

(i) economic support for impacted businesses;

(ii) referrals, crisis intervention and other counseling services for members of the community; and

(iii) outreach to the community on available economic development resources.

5. The unit shall collaborate with the office of gun violence prevention, the division of criminal justice services, the urban development corporation, and the department of economic development for the purposes of community support and mass violence prevention and in order to effectuate the efforts of the unit.

§ 4. This act shall take effect on the ninetieth day after it shall have become a law. Effective immediately, the addition, amendment and/or repeal of any rule or regulation necessary for the implementation of this act on its effective date are authorized to be made and completed on or before such effective date.

#### PART NN

Section 1. Section 54-m of the state finance law, as added by section 104 of part WWW of chapter 59 of the laws of 2017, is amended to read as follows:

§ 54-m. 1. Local share requirements associated with increasing the age of juvenile jurisdiction above fifteen years of age. Notwithstanding any other provision of law to the contrary, counties and the city of New York shall not be required to contribute a local share of eligible expenditures that would not have been incurred absent the provisions of ~~[a] part WWW of chapter fifty-nine of the laws of two thousand seventeen that added this section [unless the most recent budget adopted by a county that is subject to the provisions of section three-c of the general municipal law exceeded the tax levy limit prescribed in such section or the local government is not subject to the provisions of section three-c of the general municipal law; provided, however, that the state budget director shall be authorized to waive any local share of expenditures associated with a chapter of the laws of two thousand seventeen that increased the age of juvenile jurisdiction above fifteen years of age, upon a showing of financial hardship by a county or the city of New York upon application in the form and manner prescribed by the division of the budget. In evaluating an application for a financial hardship waiver, the budget director shall consider the incremental cost to the locality related to increasing the age of juvenile jurisdiction, changes in state or federal aid payments, and other extraordinary costs, including the occurrence of a disaster as defined in paragraph a of subdivision two of section twenty of the executive law, repair and maintenance of infrastructure, annual growth in tax receipts, including personal income, business and other taxes, prepayment of debt service and other expenses, or such other factors that the director may determine]~~.

2. A municipality shall submit a plan to cover costs which shall include, but not be limited to, costs related to the immediate risk and needs assessment of the juvenile to determine suitable and individualized programming and referrals, stabilization process including supervision provided by county probation departments and referral for treatment services.



1 3. A plan submitted under subdivision two of this section shall  
2 include, at a minimum, requirements for the following:

3 a. For probation intake, upon receiving notification of a juvenile  
4 arrest, gathering information related to the arrest that shall include  
5 but not be limited to the following information:

6 (i) name and date of birth of the juvenile;

7 (ii) contact information and address of the juvenile's parent or other  
8 person legally responsible for the juvenile's care;

9 (iii) details of the offense committed that led to the juvenile's  
10 arrest;

11 (iv) name and contact information, if available, of any relevant  
12 victim of the offense committed by the juvenile;

13 (v) names of co-respondents or co-defendants; and

14 (vi) whether a weapon was involved in the offense committed by the  
15 juvenile.

16 b. Assigning the case to a probation officer within twenty-four hours  
17 of receipt.

18 c. The probation officer assigned to the juvenile shall implement  
19 stabilization and enhanced diversion procedures, which shall include at  
20 least the following:

21 (i) conducting an initial assessment of the juvenile, including  
22 obtaining relevant case details from law enforcement, information on  
23 household circumstances, and any prior involvement with the justice  
24 system. The initial assessment shall include an in-person interview with  
25 the juvenile and an interview with the juvenile's parent or other person  
26 legally responsible for the juvenile's care;

27 (ii) implementing an intensive stabilization plan lasting at a minimum  
28 up to two weeks, during which the assigned probation officer may main-  
29 tain daily contact with the juvenile;

30 (iii) ensuring that probation officers document all interactions and  
31 changes in the juvenile's status throughout the stabilization period;  
32 and

33 (iv) referring the juvenile to necessary services available.

34 d. Upon successful completion of the stabilization period, the juve-  
35 nille shall continue to be supervised under traditional diversion prac-  
36 tices as determined by the probation intake service. The assigned  
37 probation officer shall remain responsible for reporting any changes in  
38 the juvenile's case status, new arrests, or any other relevant develop-  
39 ments to the probation supervisor.

40 § 2. Section 305.2 of the family court act is amended by adding a new  
41 subdivision 3-a to read as follows:

42 3-a. Upon taking a child into custody under this section, an officer  
43 shall immediately notify the designated probation intake service for  
44 assessment and for a determination of eligibility for diversion and  
45 stabilization services.

46 § 3. Subdivision 1 of section 722.00 of the criminal procedure law, as  
47 added by section 1-a of part WWW of chapter 59 of the laws of 2017, is  
48 amended to read as follows:

49 1. All juvenile offenders and adolescent offenders shall be notified  
50 immediately following arrest of the availability of services through the  
51 local probation department. Such services shall include the ability of  
52 the probation department to conduct a risk and needs assessment, utiliz-  
53 ing a validated risk assessment tool, in order to help determine suit-  
54 able and individualized programming and referrals. Participation in such  
55 risk and needs assessment shall be voluntary and the adolescent offender  
56 or juvenile offender may be accompanied by counsel during any such

1 assessment. Based upon the assessment findings, the probation department  
2 shall refer the adolescent offender or juvenile offender to available  
3 and appropriate services.

4 § 4. This act shall take effect April 1, 2025.

5 § 2. Severability clause. If any clause, sentence, paragraph, subdivi-  
6 sion, section or part of this act shall be adjudged by any court of  
7 competent jurisdiction to be invalid, such judgment shall not affect,  
8 impair, or invalidate the remainder thereof, but shall be confined in  
9 its operation to the clause, sentence, paragraph, subdivision, section  
10 or part thereof directly involved in the controversy in which such judg-  
11 ment shall have been rendered. It is hereby declared to be the intent of  
12 the legislature that this act would have been enacted even if such  
13 invalid provisions had not been included herein.

14 § 3. This act shall take effect immediately provided, however, that  
15 the applicable effective date of Parts A through NN of this act shall be  
16 as specifically set forth in the last section of such Parts.